

AMERICAN INJUSTICE

Matthew Oliver Reardon, writing as Don Matthews

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A Memoir of Constitutional Warfare

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writing as **Don Matthews**

First Edition • 2026

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American Injustice: A Memoir of Constitutional Warfare

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This is a work of nonfiction. It is written from the author's lived experience and from records identified in the manuscript and its evidentiary materials, including court filings and orders, police and public records, transcripts, recordings, correspondence, and other documents in the author's archive. Material allegations are tied to identified source material wherever the available record permits. Statements that rest only on the author's recollection, interpretation, belief, or unresolved inference are identified as such rather than presented as independently established fact.

The author's children are named in the dedication and, where necessary to the chronology, in the narrative. Unnecessary identifying information concerning children and other private persons is omitted. Certain other individuals are described without being identified.

Discussion of testimony given in a sealed hearing in the author's federal criminal case is omitted in compliance with the governing court order. Where that dispute is discussed, the book relies on the public record.

Nothing in this book is legal advice. Descriptions of court rulings, statutes, constitutional doctrines, and litigation positions are provided as part of the historical record and narrative of the author's cases.

First Edition, 2026.

DEDICATION

For **Lydia Elise, Anna Claire, McKenna Rose, Ethan Oliver, and Meri-Emmelyn** —

who lived through consequences they did not create.

This book is my attempt to leave you a record: what happened, what the documents prove, what I got wrong, and why I kept fighting.



For **Andy Arant** —

attorney, friend, and mentor,

lost to cancer.

Your place in this story remains permanent.



And for **PFC Bradley Foust** —

where this record begins.

Rest in peace.

Semper Fidelis.

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A NOTE FROM THE AUTHOR

I need to tell you how this book was built before you read a word of it, because the way it was built is the strongest reason to take it seriously.

I am Matthew Oliver Reardon. I write under the name Don Matthews. Everything in these pages is told from my lived perspective, but I am an interested narrator, and memory alone is not evidence. I was angry for much of this history, drinking during part of it, and wrong about some pieces of it for years. So I did not build this book from memory alone. I went back to the paper.

The documentary backbone of this book is made up of court filings and orders, police and public records, transcripts, recordings, correspondence, and other source material preserved in my archive. Where I quote a document, the goal is to quote the document itself rather than a summary of it. Where the only source for something is my recollection, the sentence says so. Where the record does not answer a question, I say that too. And where later records corrected something I had previously believed or said, the correction belongs in this book rather than outside it.

That distinction matters because not every sentence in a memoir can be independently proved by a court record. Some events were recorded. Some were documented only later. Some survive in the competing accounts of

the people who were there. The standard I have tried to follow is simpler and harder: never present my recollection, inference, or suspicion as though an independent record established it.

I want to be direct about the discipline that governs the rest of these pages, because it will occasionally make me look bad and that is intentional.

Two things are true in this story at the same time.

The first is that institutions in Mississippi, Texas, Utah, and Louisiana did things to me that I contend were unlawful, retaliatory, dishonest, or some combination of those things — and a substantial part of that contention is supported by documentary records, recordings, and court findings described in the chapters that follow. The second is that I made a considerable amount of my own situation worse. I was armed inside a city hall meeting and pointed at seated officials while calling them Cultural Marxists. I posted things while drunk and upset that a lawyer later put in front of a judge, and he was not wrong to say I had written them. I called a bar owner a bitch on a livestream over a tray of chicken wings and asked my viewers to boycott her business. I swore at the mother of my child on her own front step on Father's Day. I named a broadcast after an obscenity directed at the United States Marshals Service and told a federal officer he would get sprayed down, hours before marshals arrested me in a federal courthouse.

I am not going to explain those facts away, and I am not asking to be forgiven for them on the page. Context matters, but context is not an eraser. Some of those moments I would take back if I could. They remain here because a book that leaves them out is a book that can be destroyed the first time somebody produces the video — and because the constitutional question does not disappear when the person asserting a right is difficult, angry, profane, or wrong about something else.

The same rule applies to the people in these pages. I have tried to distinguish public officials and participants whose identities are necessary to understand the record from bystanders and private people who do not need to be exposed merely because they crossed my path. My children are named in the dedication and, where necessary to the chronology, in the narrative; unnecessary identifying details about them are omitted. A woman

serving a lengthy sentence under Mississippi's habitual-offender law is discussed but not identified because her case is not mine to publish. A court clerk who was kind to me on a recorded call is simply a court clerk. Bystanders stay bystanders.

Where I believe an official did something wrong, the strongest version of the book is not the loudest accusation. It is the document, recording, transcript, or ruling that lets the reader evaluate the conduct directly. Where I only suspect a motive or connection, I try to say that I only suspect it. I have removed accusations from earlier versions of this story when I could not support them.

A word about the evidence system used behind the manuscript.

I do not want the publication copy to read like a spreadsheet, so the body text does not place an evidence code after every sentence. Instead, the evidentiary weight of a claim should be visible from the way the sentence is written: a filed document is identified as a filed document; a recorded statement is identified as recorded; my own recollection is identified as mine; and an unresolved question is left unresolved. Automatic speech-recognition quotations that have not yet been checked against the audio are not treated as verbatim quotations.

Behind the publication text is a working evidence ledger tying material claims to the records used to support them. The Appendix and Evidence Index are intended to give a skeptical reader a path back into that source archive. They also identify gaps. An evidence system that hides what it does not have is worse than no evidence system at all.

At the back of this book there is also a Legal Analysis explaining the doctrines that recur throughout the story — retaliatory arrest, qualified and absolute immunity, civil commitment, spoliation, banishment, and related issues. It is included to explain the litigation record, not to provide legal advice. Several of those doctrines are also part of why cases I believed should succeed did not.

There is a list of standing corrections as well: claims I made in earlier drafts, filings, interviews, or livestreams that I no longer make in the same form. Some are factual corrections. Some are theories I once believed but

could not prove. I have chosen to preserve those corrections because a book demanding accountability from official records should be equally willing to correct its own.

There is one subject I cannot write about freely. A federal court entered an order restricting discussion of testimony given in a sealed hearing in my own criminal case. I have not asked this book to test the edges of that order. Where that dispute must be described, it is described from the public docket and public proceedings.

Finally, the thing I did not expect when this story began: in 2017 I fought for states' rights, for a state flag, and for monuments, and I believed the people I was fighting were the radicals. By 2023 I had told a federal court, in writing, that I no longer advocated for states' rights at all — and that the reason was the State itself. What happened between those points is part of this book. I am not asking the reader to share my politics, then or now. I am asking the reader to look at what changed them.

Read the documents. Read the parts that help me and the parts that do not. That is the standard I am asking to be judged by.

— *M.O.R.*

PROLOGUE — THE FIRST DOMINO

Before Oxford. Before the flag. Before any of the names in this book had reason to know mine, there was the Marine Corps.

I entered the Corps in 2008 and went through the East Coast training pipeline from Parris Island to Marine Combat Training at Camp Lejeune, North Carolina. I was twenty years old. Whatever happened to me later, I have never stopped being proud that I earned the title Marine.

In May 2008, while I was at Marine Combat Training, a young Marine named Bradley Foust died at School of Infantry East.

I did not know Foust personally. That matters. It would be easy to make the opening of this book more intimate by turning him into a friend, but he was not. We were Marines in the same training environment, moving through a place built to teach people quickly and send them onward.

My own account, repeated years later on recordings, is that I was on roving post that night and experienced the incident as a suicide involving an M16 fired on three-round burst. I have described it publicly as a gruesome suicide and as the event that stayed with me afterward. I am identifying that as my recollection because the official records I later obtained do not themselves use the word “suicide.”

There is independent corroboration for the core event from another Marine who was there. In a recorded 2025 conversation with me, Jay Andrews described hearing a three-round burst at Camp Devil Dog that night. Andrews later provided a written account stating that he was questioned by NCIS and that, the following morning, a Marine sergeant showed him the scene and told him that Foust had put the rifle on three-round burst and killed himself. Andrews's account is his own eyewitness account. It does not turn every detail of my memory into an official finding, but it matters because it exists independently of me.

The Marine Corps casualty material I later obtained identifies Foust as an active-duty, nonhostile death at School of Infantry East. Public accounts I found over the years described his death as a training accident. That mismatch — between what I experienced, what Andrews separately described, and the way the death was publicly characterized — is what kept pulling me back to the records.

I need to correct one claim from an earlier draft of this book. I previously wrote that a suicide classification would necessarily have cost Foust's family death benefits and that an accident classification preserved them. That was a theory I held and discussed on recordings; I do not have a source in this record sufficient to state it as fact. It is not necessary to the point I can document, so I am not going to use it as an explanation for why the death was characterized the way it was.

What I can document is a change in Marine Corps sentry procedure after Foust's death.

The preexisting School of Infantry East order dated December 14, 2007 allowed students to serve as armed guards or sentries at the ammunition-storage area and Camp Devil Dog. It required the armed sentry to carry an M16A2 or M9 with security ammunition and prescribed how that ammunition was to be controlled.

A later version of that same order, dated August 25, 2008, changed the rule for entry-level students. It states that student guards or sentries "may not be issued security ammunition" and requires armed permanent personnel to support the post in the immediate vicinity.

An earlier draft of this book said that change was made in May 2008, the same month Foust died. The document in my possession is dated August 25, 2008. That is the date I can prove, and that is the date this book will use.

The policy change does not contain a sentence saying, “This was changed because Bradley Foust committed suicide.” I infer a connection because the change followed his death at that training command and directly removed live security ammunition from entry-level student sentries. Jay Andrews independently drew the same inference in our recorded conversation. But an inference, even a strong one, is not the same thing as an official admission. I will not write it as one.

The incident nevertheless became part of my own life. I have repeatedly said that I began using alcohol to manage what I experienced and that the Marine Corps later discharged me early after alcohol-rehabilitation failure. I have also said, repeatedly and publicly, that I stopped drinking in 2018. Those are facts about my own conduct and my own understanding of it. I am not asking a military record to diagnose the reason I drank; I am telling the reader how I understood the connection.

Years later, in 2017, I went back to the Marine Corps through the Freedom of Information Act. One of my requests sought the School of Infantry/MCT standard operating procedures. The records I obtained gave me something memory could not: a before-and-after paper trail showing that entry-level student sentries had been allowed to carry security ammunition before Foust’s death and, by August 25, 2008, were expressly prohibited from being issued it.

That paper trail is why the episode belongs at the front of this book.

It taught me a habit that would later become obsessive: compare what people say happened with what the documents actually say; compare the first version of a record with the later version; and pay attention to the places where a rule changes after an event even when nobody explains the connection in writing.

I have reached out to Foust’s family over the years. I have tried not to treat their loss as material that belongs to me. I do not know what the Marine Corps told them privately, and I will not claim that I do. I also do not know

whether they agree with my interpretation of the records. Their grief is theirs. The part that belongs in this memoir is what I experienced, what another Marine later described independently, and what the documents I obtained show.

I also cannot prove a formal chain connecting my 2017 Marine Corps records requests to the Mississippi events that followed. I once spent more time entertaining that possibility than the evidence justified. I am not going to turn timing into coordination without proof. The fact that my conflict with Mississippi institutions intensified in the same period is chronology. It is not, by itself, evidence that the Marine Corps, the FBI, and local Mississippi officials were acting together.

That distinction — between chronology and causation — will matter again and again in the pages ahead.

The chapters that follow contain records that are much more concrete: a bill of sale with a date; police narratives; court orders; recorded calls; sworn testimony; an MBI warrant file; a federal magistrate judge's written statement that a Galveston officer "lied to Judge Tollison"; and appellate rulings that sometimes went against me and sometimes corrected what had happened below.

Those later records are stronger because they do not require the reader to accept my interpretation of a policy change from 2008. They can be read directly.

But this is where I first learned why I would spend years asking for them.

Not on the Oxford Square. Not in a Mississippi courtroom. At Marine Combat Training, after the death of a Marine I did not know personally, when what I remembered and what the surviving public record appeared to say did not line up.

What follows begins years later, with my family, a custody case, a state flag, and the first arrest that put my own name into a government file I would spend the next decade reading back to them.

CHAPTER 1 — LYDIA, AND THE FLAG PETITION

My daughter Lydia Elise Reardon was born on August 19, 2014. She was extremely premature and weighed one pound nine ounces.

Earlier versions of this manuscript described her as both “eleven weeks early” and born at “twenty-five weeks gestational age.” Those two statements do not fit together, and I do not have a medical record in the present source archive that resolves the discrepancy. Rather than choose one from memory, I am removing the gestational-week figure until it can be verified. The date of birth is reflected in the Lafayette County Chancery Court custody record; the birth-weight detail comes from my own account.

Her mother is Phyllis Marie Crowder. Whatever later happened between Crowder and me, Lydia’s birth belongs before the litigation. We were two parents dealing with a child who entered the world far too early. I am not going to invent a NICU scene or put words into either of our mouths. The fact that matters to the story is simpler: by 2016, our relationship had ended and our disagreement over Lydia had become a court case.

The custody record gives that transition a date and a case file. On August 3, 2016, Crowder and I filed a Joint Complaint to Establish Paternity, Child Custody, and Child Support in Lafayette County Chancery Court. A later agreed order identifies Lydia's date of birth, finds me to be her natural father, and records that both parents were then considered fit and proper to care for her.

The lawyers matter because two names that recur throughout this book were already present before the 2017 flag dispute. Crowder was represented by J. Rhea Tannehill Jr. I was represented by Andy Arant. At that point, there was nothing inherently remarkable about the pairing. Tannehill was opposing counsel in a family case. Arant was my lawyer.

That is where I want the record to begin. I am not going to retroactively turn a 2016 custody representation into proof of a later political or law-enforcement conspiracy. The later intersections involving Rhea Tannehill are documented where they occur. In 2016, the paper says what it says: he represented Crowder; Arant represented me.

By September 2016, another part of my life had become public.

I started a Change.org petition titled "Cut off State Funding to MS City/ Municipalities/Schools who refuse to fly MS State Flag." The petition was directed toward then-Governor Phil Bryant and then-State Senator Chris McDaniel. My archived count for the petition is 4,486 signatures.

The position I was advocating is not the position Mississippi ultimately chose. The state later replaced the 1894 flag. I am not rewriting my politics to make them easier to defend now. In 2016, I supported the existing Mississippi flag and believed state and local institutions should display it. I organized around that belief publicly and aggressively.

The important point for this chronology is the method I chose at the beginning: a petition. I put my name on a political demand, identified officials I wanted to influence, and asked other people to sign it. No criminal case arose from the petition itself.

The flag dispute did, however, move me into increasingly public confrontations with local government.

In April 2017, before the first Oxford arrest, I had a confrontation at Five Flags Speedway in Escambia County, Florida, over carrying the Mississippi flag in the grandstand area. I later recorded a call with Sergeant Palmer at the Escambia County Sheriff's Office. Palmer's position on that call was that the dispute involved obstruction of other patrons' view and a request from management rather than the political content of the flag. My position was that I had been threatened with arrest for protected conduct. We disagreed. I include that episode because it is relevant context for my state of mind going into May 2017, not because it proves anything about Lafayette County.

I had also taken the flag argument to public meetings. In Biloxi, I spoke before the city council and invoked my Marine Corps oath and the vote that had retained the Mississippi flag. I later claimed that the advocacy campaign generated roughly ten thousand calls to Biloxi City Hall. I do not have a municipal call log in the current archive proving that number, so it remains my own estimate rather than a verified statistic.

Oxford became the next focal point.

On May 16, 2017, I attended a meeting of the Oxford Board of Aldermen expecting to speak about the state flag. I had not been placed on that meeting's agenda. Mayor Pat Patterson told me that I was not on the agenda and that I could speak at the June 6 meeting if I got on it. I did. The published June 6 agenda later listed "Matt Reardon to address the board regarding the state flag."

That detail is important because it cuts against the easiest version of the story. Patterson did not, in that specific exchange, tell me I could never speak. He told me the procedural requirement and pointed me to the next meeting. I was more confrontational than he was. Outside the meeting, I asked him whether he was a "cultural Marxist." His recorded response remained focused on the agenda requirement.

By then I was also talking publicly about Robyn and Rhea Tannehill. I called Robyn Tannehill a "cultural Marxist" and said on livestream that I intended to publish a phone number so people could contact her. I also voiced a belief that Rhea Tannehill and other local figures were trying to silence me. At that time, the claim of a coordinated effort was my belief,

not a fact I could document. That distinction matters now because later chapters contain actual documents involving the Tannehills; those later records should not be used retroactively to prove what I only suspected in advance.

I was also speaking publicly in armed, embattled terms. On a surviving recording from that period, I described having a .45 and a .40 and being ready in response to threats I said I was receiving. A fair account of what followed has to include that language. It does not prove that every later accusation against me was true, but it is part of the environment law enforcement and other people were seeing online.

The same is true of hostile online coverage about me. A YouTube channel called Reardon Watch archived and mocked portions of my public activity. The existence of the channel and its videos can be documented. What I cannot establish merely from the channel's existence is which particular public officials watched it, whether it influenced any individual officer, or whether it caused an official decision. Earlier drafts crossed that line by treating those inferences as facts. I will not do that here.

The baseline going into May 2017 is therefore mixed and fairly easy to state. I was a father already involved in a contentious custody case. Rhea Tannehill had represented the mother of my daughter in that case. I was publicly advocating for the Mississippi state flag. I had gathered thousands of signatures on an online petition. I was confrontational with public officials and increasingly combative on social media. I also believed I was being threatened and targeted, although the extent and source of those threats were not always independently documented.

None of that, by itself, explains the arrest that came next.

On May 1, 2017, before the May 16 board meeting and before the later Lynch dispute, I stood on the Oxford Square holding the Mississippi flag. Deputy Timmy Pruitt approached me. The encounter was recorded. That recording, rather than any retrospective description of my politics, is where the first Mississippi arrest can be judged.

The next chapter stays with that video.

CHAPTER 2 — MAY 1, 2017

On May 1, 2017, I stood near the Confederate monument on the Lafayette County Courthouse Square in Oxford holding the Mississippi state flag. I was armed with a holstered sidearm. I was also recording.

The encounter that followed does not depend on my memory. My recording survives, and Captain Timmy Pruitt wrote his own report about the arrest.

Pruitt's report says Chief Deputy Scott Mills directed him to the courthouse because someone was protesting on county property without a permit. Pruitt wrote that Mills had checked with County Administrator Lisa Carwyle and had been told no permit had been issued.

Pruitt wrote that he recognized me from previous encounters and from Lafayette High School. He also wrote that when he approached, I pulled out my phone, told him I was recording, and that he said recording was fine.

The recording captures the rest.

"You know I am audio and video recording, Mr. Pruitt," I said.

"I don't care. Do you have a permit to be here?"

“Um, the First Amendment actually—”

“Do you have a permit to be here?”

“No.”

“All right, you’ve got to leave.”

I asked why.

“‘Cause you’re going to jail if you don’t.”

I asked whether he was telling me I would go to jail for standing there holding the flag and demonstrating.

He repeated that I had to leave.

I asked whether I could ask him a question.

“I’m going to ask you one more time to leave. If not, I’m gonna take you to jail. Disorderly conduct.”

I told him I would leave and take the matter to my attorney. Then, while walking away, I cursed about the city. I turned back and asked for his badge number.

“You’re under arrest,” Pruitt said.

“I’m not — I’m leaving. I was asking you — I was leaving.”

That is the exchange.

Pruitt’s written report describes the same sequence from his perspective. He wrote that he told me repeatedly to leave; that at the count of two I began walking away while cursing loudly; that I made it about fifteen yards; and that I then started back toward him asking for his badge number. He wrote that he arrested me for “DISORDERLY CONDUCT/FAILURE TO COMPLY.”

The report also says he handcuffed and disarmed me, that Investigator Nathan Noe arrived to assist, and that Deputy Justin Wilson arrived to transport me. Those details matter because they are better evidence than later retellings about who was present.

I have long focused on the timing of my badge-number question because the arrest followed it immediately on the recording. Pruitt's report frames the arrest differently: as the culmination of repeated orders to leave and my return toward him after initially walking away. Both records belong in the book. A reader should not have to choose between my edited summary and his. The video and the report can be compared directly.

I also need to own what the recording shows about me. I was profane. I was openly challenging Pruitt's authority. I was carrying a sidearm. I believed the permit demand was unconstitutional and said so. None of those facts should be edited out to make the First Amendment question cleaner.

My legal position has always been that I was engaged in protected expression on public property and that asking an officer for identifying information is protected speech. Pruitt's stated basis was failure to obey the order to leave. Whether the county could lawfully require a permit for the particular activity I was conducting, and whether that order could lawfully support the arrest, are legal questions. The factual sequence itself is not hard to reconstruct because both sides preserved it.

I was taken to the Lafayette County Detention Center and later released on a \$250 bond. Contemporary reporting identified the charge as disorderly conduct. Some later timeline material also describes resisting arrest, but the May 1 Pruitt narrative in the Sheriff's Office file identifies the incident as disorderly conduct/failure to comply. Until I have a charging document establishing a separate resisting count for this May 1 incident, I am not going to add one simply because it appears in a later summary.

The arrest video spread online. I later said that Pruitt took administrative leave after the video went viral. I have not located a personnel record establishing the formal classification of that time away. My own 2020 messages describe it variously as leave and, more sarcastically, as a "fishing vacation." The publication copy should not turn that into an established disciplinary finding.

The same day also matters in my family case.

Court records show that Crowder, through attorney Mona Pittman, filed emergency custody-related papers on May 1, 2017. A summons connected to those proceedings was served on me that day. In a later sworn filing, I stated that the family-court filing and my arrest occurred not only on the same date but during the same hour.

That “same hour” assertion is my sworn account, not something the current docket material independently timestamps closely enough to prove. I cannot prove that Pruitt’s arrest and Crowder’s filing were coordinated, and I will not say that they were. The documented point is that the two legal events occurred on the same date. My later belief about the timing and significance of that overlap belongs to me.

There was another thing I believed in those early May days. Crowder told me, according to my recollection, that she had knowledge of a threat against my life. I do not have a recording of that conversation or an independent document establishing who made such a threat. I believed the warning, and it affected how I behaved in the weeks that followed. That is the limit of what I can responsibly state from the current record.

The May 1 arrest was not the aggravated-stalking case. That came later in the month, after the Frank & Marlee’s dispute, after a series of public posts and videos, and after Investigator Jared Bundren reviewed material that he described as threatening.

That distinction is critical because an earlier version of this chapter jumped ahead and described the later aggravated-stalking arrest as though the May 8 date in the Criminal Information had already been sworn into the May 26 arrest warrant by the officers who arrested me. The available record does not establish that. The Criminal Information containing the “on or before May 8, 2017” allegation was filed later. The May 26 initiating material and the later charging instrument have to be treated as separate records.

The twelve-day rifle problem is real, but it belongs where the documents actually place it. I bought the AR-15 on May 20. The later Criminal Information alleged conduct involving an AR-15 “on or before May 8.” That is a chronological contradiction inside the formal prosecution record. It is not proof, without the missing initiating affidavit, that the May 26 arrest warrant itself contained that exact May 8 allegation.

For May 1, the evidence is simpler: a flag, a permit demand, a recorded order to leave, my profanity, my request for a badge number, Pruitt's arrest decision, and his written report explaining why he made it.

Seven days later, other reports began accumulating. By the end of the month, the stakes would be a felony and a \$150,000 bond.

CHAPTER 3 — THE AGENDA

On May 16, 2017, I went to a meeting of the Oxford Board of Aldermen wanting to speak about the Mississippi state flag. I had not put my name on that night's agenda.

Mayor Pat Patterson told me that I was not on the agenda and that I could speak at the next meeting if I followed the procedure. His recorded response was straightforward: "You weren't on the agenda, Matt... You're welcome to come speak June 6th."

I was more confrontational. Outside the building I asked him whether he was a "cultural Marxist." I also objected when another citizen was not allowed to speak, calling City Hall "the taxpayers' house." Looking back at the recording, the cleanest description of that particular dispute is not that Patterson barred me permanently from speaking. He enforced the agenda rule and told me how to get on the next agenda.

I followed that instruction. The published agenda for the June 6 Board of Aldermen meeting later listed item 7: "Matt Reardon to address the board regarding the state flag."

That paper trail matters because events would prevent me from appearing at that meeting. But the May 16 interaction itself should not be rewritten into something the record does not show.

Three days later, on May 19, the conflict moved away from City Hall and into Frank & Marlee's, a piano bar on the Oxford Square owned by Todd and Ashley Lynch.

The encounter inside the bar is disputed. My account has consistently been that Ashley Lynch discarded food I had purchased after refusing to engage with me. The Lynches' account, relayed later in messages and a recorded telephone call, was that my own conduct toward Ashley was abusive and that I was told to leave. I do not have neutral video of every second of the interaction inside the bar that resolves those competing descriptions.

What happened after I left is much easier to establish because I broadcast it.

I went outside and used Facebook Live to complain about the business and call for a boycott. I described the discarded food, urged people not to patronize Frank & Marlee's, and later acknowledged on camera that I had called Ashley Lynch a "bitch." That language is mine. I am not sanitizing it now.

Todd Lynch also contacted me. A recorded call from the period captures an argument in which he defended his wife and business and I made clear that I intended to continue speaking publicly. Whatever constitutional protection attaches to peaceful criticism and boycott advocacy, the relevant factual point is that this was no longer a quiet consumer complaint. It had become a public, personal conflict playing out across livestreams, messages, and phone calls.

On May 20, the day after the bar incident, I bought an AR-15-style Del-Ton rifle from Larry D. Watkins in a private sale. The handwritten bill of sale identifies the rifle by serial number S086662, lists extra parts and ammunition, states a price of \$550, and is dated May 20, 2017.

That piece of paper later became important because the formal Criminal Information filed in my aggravated-stalking case alleged that, “on or before May 8, 2017,” I committed stalking while displaying “an AR15 rifle” with intent to place Todd and/or Ashley Lynch in reasonable fear of great bodily injury.

I have now inspected the charging instrument itself. The typed date on the form was struck through by hand. Above it is handwritten: “or before May 8, 2017.” The document was filed July 6, 2017.

That means the formal charging instrument alleged AR-15 conduct at least twelve days before the dated bill of sale says I acquired this particular rifle.

The strength of that contradiction should not be diluted by overstating what it proves. The Watkins bill of sale is a private handwritten record, not a notarized government record. It is evidence of when I acquired the identified Del-Ton rifle. It does not prove that I had never possessed any AR-15 before May 20. The Criminal Information, however, does not identify a serial number. So the most precise claim is that the State’s later charging theory alleged use of “an AR15 rifle” by May 8, while the rifle that became central to my own defense and public account is documented as acquired May 20.

The initiating police narrative is different from that later charging document, and this book previously blurred the two.

Investigator Jarrett Bundren’s reporting narrative, Complaint No. L17-05138, describes events beginning May 24. Bundren wrote that he was advised there were “a lot of threats on facebook by Matt Reardon, specifically toward Frank and Marlee’s and Todd Lynch.” He wrote that he reviewed my Facebook page and saw “several videos and posts of Matt with guns verbally making threats toward Todd and his business.” He further wrote that Todd Lynch wanted to file charges and, after Bundren looked further into the threats and harassment, Todd filed charges.

That report is damaging evidence from the State’s side, and it belongs in the book exactly because it complicates my argument. The initiating complaint was not described by Bundren as a single peaceful boycott video. He said he saw multiple posts and videos involving guns and what he characterized as verbal threats.

I dispute the criminal characterization of much of my speech, and the recordings themselves are the best evidence for deciding what I actually said. But I cannot honestly write that law enforcement had before it nothing except a customer standing on a sidewalk asking people to boycott a bar. Bundren's own report says he was looking at a wider body of material.

At the same time, Bundren's May 24 narrative does not contain the later specific allegation that I displayed an AR-15 on or before May 8. It does not identify the Watkins rifle. It does not explain how the prosecution later arrived at the handwritten May 8 date in the Criminal Information.

Those are two separate evidentiary questions:

First, what did Bundren and Todd Lynch rely on when the complaint was initiated on May 24?

Second, why did the formal Criminal Information filed July 6 allege AR-15 conduct "on or before May 8, 2017"?

The first question has a surviving sheriff's narrative. The second is where the twelve-day problem lives.

The online attention surrounding me also intensified during this period. A YouTube channel called Reardon Watch reposted and mocked my broadcasts, including material concerning Frank & Marlee's. The existence of that archive is documented. I do not know who operated it, and I do not have evidence establishing that any named law-enforcement officer or public official controlled the channel or made a decision because of it. It is evidence that the dispute had become public spectacle, not proof of official coordination.

The same discipline applies to the rifle purchase. I have said that I bought the rifle because I believed threats had been made against me. That explanation is my account of my motive. The dated bill of sale proves the transaction date, not why I made the purchase.

By May 24, therefore, several things were simultaneously true. I had publicly fought with the Lynches. I had used ugly language toward Ashley Lynch. I had called for a boycott. I had bought an AR-15-style rifle. I had

made public videos in which firearms appeared. Bundren wrote that he regarded some of my statements as threats. Todd Lynch asked to pursue charges.

None of those facts should be erased.

Neither should the charging instrument that came later.

The next chapter is about the difference between those two records — the May 24 sheriff's narrative and the July 6 Criminal Information — and about what can actually be proved from the twelve days between the handwritten date on the charge and the handwritten date on the bill of sale.

CHAPTER 4 — THE SETUP: TWELVE DAYS

The twelve-day problem does not begin with the May 26 arrest warrant. It begins with a later charging document.

That distinction is important enough to put in the first paragraph because I blurred it in earlier versions of this story.

The surviving Lafayette County Sheriff's Office narrative says Investigator Jared Bundren began examining the Lynch complaint on May 24, 2017. He wrote that he had been told there were "a lot of threats on facebook" directed toward Frank & Marlee's and Todd Lynch, that he reviewed my Facebook page, and that he saw "several videos and posts of Matt with guns verbally making threats toward Todd and his business." He wrote that Todd Lynch wanted charges pursued.

That is the initiating police record I currently have.

It does not say that I displayed an AR-15 on May 8. It does not identify the Del-Ton rifle I bought from Larry Watkins. It does not contain the specific date that later became the center of my post-conviction argument.

On the same date, May 24, a hair-follicle test connected to my custody case came back positive for marijuana and alcohol. I am not hiding that result. It was part of the factual environment in which people around me were assessing my conduct. What it does not establish is that any particular Facebook statement satisfied the elements of aggravated stalking.

On May 25, I met with FBI personnel in Oxford. I have spent years trying to reconstruct exactly what the Bureau retained from that meeting. I have referred to an FBI 302 in later filings and broadcasts, but I do not presently have the 302 itself. I therefore treat the meeting as documented through my own contemporaneous and later records while treating the missing 302 as exactly that: a missing source, not a document I can quote.

Later that evening I sent a final legal demand to the Marine Corps concerning my pending FOIA request for Marine Combat Training records. I gave the Corps twenty-four hours. The next morning, May 26, at 9:13 a.m., the FOIA request identified in my records as DON-USMC-2017-005333 received a final disposition marked “Full Grant.”

Those Marine Corps records are part of the prologue. I cannot prove that the timing of the FOIA response had anything to do with what happened later on May 26 in Oxford. It belongs in the chronology because it occurred that day, not because I can establish coordination between federal and local agencies.

By Friday evening, I was under arrest for aggravated stalking.

Contemporary reporting from the Oxford Eagle confirms that Lafayette County charged me with aggravated stalking on May 26 and quoted Chief Investigator Alan Wilburn saying I was then charged with one count. The article also reported that, because of the Memorial Day weekend, I would not go before a judge for a bond hearing until Tuesday.

My own account of the arrest is more specific. I was inside my vehicle and opening the door when it was pulled open from outside. Officers put hands on me and took me into custody. No weapons were drawn. I have previously described the arrest with more cinematic details — being lured, thrown face-first onto scorching asphalt, a knee driven into my spine,

assigned tactical roles for each official, and dialogue I cannot source to a recording. I am removing those details because I cannot support them to the standard this book requires.

The officials I remember at the arrest were Lafayette County command personnel Scott Mills, Alan Wilburn, and Jared Bundren, with Oxford Police Chief Joey East present. The point is not to assign each man a role I cannot prove. It is that senior local law-enforcement figures were present for the arrest.

I also need to draw a line around what I know about Phyllis Crowder. Crowder was involved in a separate custody fight with me, and filings in that case were occurring during the same period. But I do not know that she had any involvement in Todd Lynch's accusation or in the decision to arrest me on May 26. Earlier narrative theories sometimes placed her inside that mechanism. I cannot prove that, and I am not going to write it as fact.

Todd Lynch's role is different because the sheriff's report identifies him. Bundren wrote that Todd wanted to file charges and did so after the investigator reviewed the online material. My understanding is that Lynch signed the initiating accusation. Whatever one thinks of the merits, that is the documented connection between the Lynch dispute and the criminal case.

The arrest then produced a procedural problem of its own. I was taken into custody on Friday, May 26, and did not receive my initial appearance until Tuesday, May 30 — roughly four days later. In later filings I argued that this violated Mississippi's forty-eight-hour rule for a person taken into custody. The legal consequence of that delay has been litigated and argued in different ways over the years; the underlying dates are the important point here.

At the May 30 appearance, the court set bond at \$150,000. I tried to present what I believed was exculpatory evidence. The court advised me about my right to remain silent rather than turning the initial appearance into an evidentiary hearing. I spent the weeks that followed in custody.

The Sheriff's Office narrative that now survives was itself created May 30, four days after the arrest. That does not make it false. It does mean that it is a post-arrest narrative describing the investigative events of May 24 rather than a contemporaneous affidavit I can identify as the paper shown to a judge before I was arrested.

And that is where the missing-document problem begins.

I have repeatedly requested the original affidavit, complaint, or warrant application that supplied probable cause for the May 26 arrest. The record set I have does not contain an initiating document that reproduces the later "on or before May 8" AR-15 allegation. Without that document, I cannot honestly say that the officers arrested me on May 26 because they had sworn that I used an AR-15 on May 8. That was a claim made too strongly in earlier drafts.

What I can prove is what the prosecution formally charged later.

The Criminal Information in Cause No. LK17-295 is captioned "Aggravated Stalking" under Mississippi Code § 97-3-107(2). On the face of the document, a typed date was crossed out. The handwritten replacement reads: "or before May 8, 2017." The charging paragraph says that I committed stalking while displaying a deadly weapon, "to wit: an AR15 rifle," with intent to place Todd and/or Ashley Lynch in reasonable fear of great bodily injury.

The document was filed July 6, 2017.

The bill of sale for the Del-Ton AR-15 I rely on is dated May 20, 2017. It identifies Larry D. Watkins as seller, me as buyer, serial number S086662, and a \$550 purchase price.

May 8 to May 20 is twelve days.

That is the contradiction the documents establish.

It still needs to be stated carefully. The bill of sale proves a May 20 transaction for a particular Del-Ton rifle. The Criminal Information says only "an AR15 rifle" and does not list a serial number. The bill of sale therefore does not, by itself, prove that no AR-15 of any kind could have been available to me before May 20. My position has always been that this

was the rifle at issue and that I did not possess the alleged weapon on May 8. But the document itself proves the purchase date of the identified rifle, not the nonexistence of every possible AR-pattern rifle before that date.

That narrower description is still significant. If the prosecution's weapon theory concerned the Watkins rifle, the dates cannot both be right. If it concerned some other AR-15, the charging papers do not identify it. Either way, the formal Information leaves a factual question that should have been tested with evidence rather than buried under a plea.

There is also an important distinction between Bundren's May 24 narrative and the July 6 Information. Bundren described multiple Facebook videos and posts involving guns and statements he characterized as threats. The Information distilled the case into a statutory allegation involving an AR-15 and a handwritten date. The later document is not simply a verbatim copy of the earlier report.

That distinction makes the case harder to summarize in a slogan, but it makes the record stronger. I do not have to claim the entire complaint was invented from nothing. I can acknowledge that I made abrasive public statements, that firearms appeared in some videos, that Todd Lynch wanted charges pursued, and that Bundren described some of what he saw as threats. Then I can ask the narrower question the paper itself raises: how did that body of material become a formal AR-15 allegation dated "on or before May 8"?

I still do not have a satisfactory documentary answer.

The other disputes surrounding late May belong where their records place them. The Tannehills had obtained a separate civil restraining order against me. I made threatening-sounding statements about Rhea Tannehill on livestream that I regret and do not excuse.

The Sheriff's Office also contains a May 30 report written by Major John Hill about what happened after the Tannehill hearing that day. Hill wrote that Chief Deputy Scott Mills and he escorted me from the courtroom and seated me in the back hallway while paperwork was completed. According to Hill, I told Rhea Tannehill, "FUCK YOU. YOU ARE A FUCKING LIAR." Hill then wrote that Rhea started walking toward me with a water bottle in his hand and said, "I'LL BASH YOUR HEAD IN." Hill stepped

in front of Rhea, told him to leave, and Rhea walked away. When I said something else that Hill could not hear, Rhea briefly came back around the corner; Hill again told him to leave, and he did.

That report is more precise than the version I told for years. It documents Rhea's threat and Hill's intervention. It does **not** say Hill physically restrained Rhea, pinned him against a wall, or prevented an assault already in progress. It also records my own profanity immediately before Rhea approached. Those details stay in because the report is stronger evidence than my later reconstruction.

That hallway confrontation and the Tannehill civil proceeding help explain the volatility of the period, but they are not the Lynch charging instrument and should not be merged into it.

Likewise, Crowder's family-court litigation added pressure and instability to my life, but I do not know that she caused the Lynch arrest. The temptation to make every contemporaneous conflict part of one coordinated machine is exactly the temptation this edition is trying to resist unless a document actually supplies the connection.

The May 26 arrest left me in the Lafayette County Detention Center until July 6, 2017. That date is independently reflected in my later contemporaneous communications and in the plea paperwork that follows.

July 6 is also the date the Criminal Information carrying the handwritten "or before May 8, 2017" language was filed and the date I entered the plea that ended the immediate prosecution.

The next chapter is about the pressure surrounding that plea: the \$150,000 bond, the weeks in custody, attorney Brennan Horan, the Tannehill civil order, and what I agreed to in exchange for getting out.

CHAPTER 5 — \$150,000, AND AN ORDER SIGNED UNDER DURESS

My initial appearance on the aggravated-stalking charge was held May 30, 2017, before Lafayette County Justice Court Judge Carolyn Bell. I had been arrested on Friday, May 26. The long Memorial Day weekend passed with me in custody before I was brought before the court on Tuesday.

The bond set at that appearance was \$150,000. That amount is confirmed by the contemporaneous Oxford Eagle report and later court materials. I argued then, and still believe, that the amount was excessive for the charge and circumstances. The legal merits of that argument belong in the legal-analysis section. The historical fact here is that I could not post it, and I remained in jail.

My memory of the hearing includes two things that I have repeated for years but cannot prove from a transcript because I do not have one. First, I remember Judge Bell meeting with sheriff's investigators before the hearing. Second, I remember trying to raise the dated rifle bill of sale and being stopped rather than having the document examined. Those are my recollections. I am not going to convert them into an independently established ex parte violation or quote words from a hearing I cannot reproduce.

The reason the bill of sale mattered to me at the time was the same reason it matters now. I had bought the Del-Ton AR-15 from Larry Watkins on May 20. I believed the accusation against me involved that rifle. The later Criminal Information would eventually allege AR-15 conduct “on or before May 8, 2017.” But, as the previous chapter explains, I do not presently have the original May 26 warrant affidavit showing that the same May 8 allegation was before Judge Bell on May 30. I can say I tried to raise the purchase date. I cannot say the court was staring at the July 6 Criminal Information before that document existed.

The \$150,000 bond kept me in the Lafayette County Detention Center while the criminal case and a separate civil case involving Robyn and Rhea Tannehill developed at the same time.

The Tannehills had filed their Petition for Emergency, Temporary Restraining Order and Permanent Restraining Order on May 22, 2017. The petition is one of the more revealing documents from that month because it quotes and describes my own conduct rather than presenting me as a passive political protester.

Rhea Tannehill’s sworn petition recounted my May 2017 political attacks on Oxford officials, the “Southern Fury is coming” language, my search for a bulletproof vest, posts involving firearms, statements about “havoc and carnage,” and videos he characterized as threats. Robyn Tannehill’s affidavit stated that she supported my right to advocate for the Mississippi flag but believed the combination of my words and conduct made her fear violence against herself or her family.

The petition also confirms an important preexisting connection: Rhea Tannehill stated under oath that in 2016 he had represented “Lizzie Crowder” in a domestic-violence matter arising from an affidavit I filed. That prior representation is a documented fact. It does not, standing alone, prove that the Tannehills and Crowder coordinated the separate Lynch criminal case.

I dispute portions of the Tannehill petition and the way it interpreted some of my political speech. But I also cannot pretend the filing contained nothing but the state-flag dispute. Some of my own statements were aggressive enough that a reader can understand why the Tannehills

presented them to a judge as threatening. The constitutional question of how far a civil order could lawfully restrict future speech is different from whether the petition accurately quoted material I had put online.

While I was still jailed, attorney Brennan Horan became involved in my defense. My account — and I want the sourcing level stated plainly — is that Horan advised me to agree to the Tannehill order as part of getting me out of jail. I signed the order because I wanted out. I have consistently described the decision as made under duress created by my continued detention and the \$150,000 bond.

That does not mean the signature was legally involuntary merely because I felt enormous pressure. “Duress” is both an ordinary word and a legal doctrine, and this book should not collapse the two. The fact I can state from personal knowledge is that I did not sign because I agreed with the allegations. I signed while incarcerated because I believed doing so would improve my chances of release.

In later years I went further. In an unfiled draft motion challenging the order, I alleged that Horan specifically told me signing it would result in dismissal of the Lynch aggravated-stalking charge. I still remember the advice that way. But the supporting witness affidavit referenced in that draft has never been located, and I do not have a recording of the conversation with Horan. So that specific promise remains **my account**, not a documented admission by Horan.

The Lynch case was not dismissed when I agreed to the civil order. It continued until the July 6 plea.

I have also described Horan’s family relationship to then-state legislator Kevin Horan as a conflict of interest. The family relationship appears repeatedly in my own files and project ledger. What I do not have is evidence that Kevin Horan participated in my case or that the family relationship affected Brennan Horan’s advice. The publication copy therefore does not call the relationship, by itself, a proven conflict.

There is another correction that belongs here because I repeated it publicly for years. I said Brennan Horan and Rhea Tannehill had gone to law school together. A June 27, 2020 message from attorney Christi McCoy contradicts that account: after checking the bar website, she told me

Brennan had graduated roughly ten years before Rhea and that they had not been in law school together. I do not have evidence overriding that contemporaneous correction. The claim that they attended law school together is withdrawn.

Another issue I raised later concerned security under Mississippi Rule of Civil Procedure 65(c). In a recorded call with Judge Lawrence Little's law clerk years later, the clerk could not confirm that a security bond had been posted in the Tannehill restraining-order case. That is useful evidence of a records question. It is not the same as a judicial ruling that the order was void, and this edition will not describe it as one.

The courthouse confrontation involving Rhea Tannehill no longer rests on my memory alone. Major John Hill's May 30, 2017 Sheriff's Office narrative is in the records production. Hill wrote that after the Chancery hearing he seated me in the back hallway while paperwork was completed. He recorded me telling Rhea, "FUCK YOU. YOU ARE A FUCKING LIAR." According to Hill, Rhea then walked toward me with a water bottle and said, "I'LL BASH YOUR HEAD IN." Hill stepped in front of Rhea, told him to leave, and Rhea walked away. Hill's report does not say that he physically restrained Rhea or that an assault occurred. It documents a threat, an approach, and Hill placing himself between us.

That is the version this book uses because the contemporaneous report is better evidence than my later reconstruction.

What happened to the civil order five years later also needs to be stated more carefully than earlier editions stated it.

The order was part of the background cited in the 2022 aggravated-stalking investigation. But it did not automatically turn my June 28, 2022 arrival at Chancery Court into a felony, and it was not one of three mechanical "gears" that completed the crime. The 2022 MBI affidavit alleged a course of conduct based on the June 20 City Hall visit, prior online activity, and the standing order. Chapter 19 now lays out that chronology from the actual MBI file.

So the significance of what I signed in 2017 is real without exaggeration. The order remained relevant years later. Law enforcement cited it when evaluating later contacts and speech. It became part of the factual landscape of the second stalking case. But this book will not claim the order, by itself, was the statutory switch that created the 2022 felony.

By late June 2017, I was still incarcerated. The \$150,000 bond had done what a bond a defendant cannot afford does in practical terms: it kept me in jail while my lawyers and the State negotiated what would happen next.

The pressure I felt was not abstract. I had missed the June 6 Board of Aldermen meeting at which I had been placed on the agenda. Robyn Tannehill won the mayoral election that day. My family-court problems continued outside the jail. And the criminal charge carried the possibility of years in prison if I rejected a negotiated resolution and lost.

On July 6, 2017, the case ended in a guilty plea. The formal Criminal Information carrying the handwritten “or before May 8, 2017” date was filed that same day. The plea, the sentence, the banishment condition, and the covenant not to sue are the subject of the next chapter.

That is the point at which the pressure of six weeks in custody became permanent paper.

CHAPTER 6 — SIX WEEKS, AND THE FORM THAT VANISHED

I spent more than forty days in the Lafayette County Detention Center after the May 26, 2017 aggravated-stalking arrest. The psychological evaluation performed later that year records the incarceration as “40+ days.” My later court filings place my release with the July 6 resolution of the criminal case.

Three records from this period have shaped how I have understood those six weeks: the FBI meeting I attended the day before the arrest, the complaints I made about the court process, and the psychological evaluation ordered after I was out.

The FBI record is the least complete.

On May 25, 2017, I met with FBI personnel in Oxford. I have repeatedly said that the meeting was arranged through Assistant U.S. Attorney Bob Norman and that I discussed threats against me and what I believed was corruption involving local officials. Those details are my account. Later recordings preserve me describing the meeting and Norman’s role, but I do not presently have an FBI-created memorandum from May 25 that independently confirms everything I say was discussed.

For years I have referred to the missing record as an “FBI 302.” That shorthand needs qualification. A Form FD-302 is one type of FBI interview memorandum, but I do not have proof in the present archive that an FD-302 was in fact created for my May 25 meeting and then lost or destroyed. What I can say is that I later sought the Bureau’s record of the interview and have not obtained the interview memorandum I expected to exist.

So the evidentiary status is simple: **the meeting is part of my documented chronology; the specific missing FD-302 remains a source question.** I should not tell the reader that a particular federal form “vanished” unless I can first establish that the form existed.

The second thread is my challenge to the May 30 initial appearance. I have said that I filed a judicial-misconduct complaint against Judge Carolyn Bell based on the \$150,000 bond, the delay before the appearance, what I remember as pre-hearing contact with sheriff’s investigators, and my unsuccessful attempt to raise the rifle purchase date. I have also said the complaint produced no public discipline.

Until the complaint and disposition are placed directly in the source archive, those details remain my account. The bond amount and hearing date are independently documented; the contents and disposition of the judicial complaint need their own source before the publication copy treats them as confirmed.

The third record is much stronger because I have the report itself.

On September 11, 2017, licensed psychologist Dr. Joe Edward Morris evaluated me after a referral from Lafayette Chancery Court. His report says the purpose was to determine whether I was psychologically and emotionally able to have unsupervised visitation with Lydia.

Morris described me as cooperative, appropriately dressed, maintaining good eye contact, motivated, and “a reliable informant.” He administered a battery that included the MMPI-2, the 16 Personality Factor Test, Beck anxiety and depression inventories, and a parenting-discipline measure.

His mental-status observations were direct. He wrote that I was oriented in all spheres; my affect was congruent; I denied suicidal and homicidal ideation; no psychotic signs or symptoms were indicated; my thoughts were connected and logical; psychomotor activity was normal; and I “presented psychologically as stable.”

The test results were similarly clear. With mild elevations on the lie and paranoid scales of the MMPI-2 — elevations Morris wrote were typical in the context of my legal issues — the other test results fell within normal or typical ranges. His conclusion stated that I presented with “no significant psychological deficits” and that my scores reflected “an emotionally stable individual who would be an effective and caring parent” to my daughter. He wrote that no red flags surfaced indicating otherwise.

That report deserves to be quoted accurately because an earlier version of this chapter gave Morris credit for a conclusion he did not actually make.

The report says that **I told Morris** I had been incarcerated for more than forty days and “was coerced under stress to get out and see his daughter.” Morris recorded that statement in my history. He did not independently diagnose the 2017 plea or restraining-order decisions as products of legal coercion. The difference matters. My report to the psychologist is evidence that I was describing the experience as coercive within months of it happening; it is not a clinical adjudication that the plea or civil order was legally involuntary.

That timing is still useful. It shows that my claim of coercion did not originate years later after I began post-conviction litigation. By September 2017, I was already telling a court-referred psychologist that the forty-plus days in custody had pressured my decision-making.

The Morris report also complicates later attempts to reduce every dispute I had with government to mental instability. It does not prove that every decision I made was rational, wise, or constitutionally protected. It does establish that, in September 2017, a licensed psychologist who examined me with multiple instruments found no significant psychological deficits and described me as emotionally stable.

That is enough. The report does not need embellishment.

The same discipline applies to the six weeks in jail. I remember the isolation, the limited access to ordinary life, and the pressure of making decisions while detained. Those are my lived experiences. I do not need to invent the lighting in a jail consultation room, the exact wording of a lawyer's conversation, or a generalized theory about what all detention centers are "designed" to do. The relevant fact is that I was detained because I could not make the bond and made consequential legal decisions while confined.

On July 6, 2017, the criminal case moved to a plea. The Criminal Information carrying the handwritten "or before May 8, 2017" date was filed that day. The resolution also produced a sentence, banishment conditions, and a covenant not to sue that would matter for years.

Those documents, unlike the missing FBI interview memorandum, survive. The next chapter stays with them.

CHAPTER 7 — A FALSE ACCUSATION WEAPONIZED

Phyllis Marie Crowder is the mother of my oldest daughter, Lydia. By late 2018, Crowder and I had already spent years fighting over custody, visitation, and trust. I was not blameless in the hostility between us. The record from those years contains my anger as well as hers.

What happened in November 2018 is different because an outside investigator reconstructed it from records that still survive.

On November 25, 2018, Crowder and I had a sexual encounter at my residence in Olive Branch. Four days later, on November 29, Olive Branch police were dispatched to Methodist Hospital after Crowder reported that I had sexually assaulted her during that encounter.

The police file preserves both accounts.

Crowder told police the sexual contact was not consensual. In a November 30 interview with Detective Ashley Holladay, she described the encounter in detail and continued to characterize it as sexual assault. The report also records circumstances surrounding the encounter, including that she

voluntarily removed her clothing, performed oral sex, later left my residence by herself, drove to McDonald's, and returned to my residence afterward.

Those facts do not, by themselves, legally decide consent. A person can leave and return, or perform one sexual act voluntarily, without consenting to every other act. The reason this investigation ended differently is the digital evidence Holladay obtained later.

On December 13, 2018, Holladay interviewed me after reading me my Miranda rights. I told him that Crowder and I had texted and planned for her to come to my residence to have sex and that the encounter was consensual. I gave him printed screenshots of the text conversations.

On December 18, I brought my phone to the Olive Branch Police Department. Holladay obtained a search warrant for it and had the device downloaded.

His written conclusion is the most important sentence in this chapter:

“The downloaded information matched the printed texts Reardon had previously provided and supported Reardon’s claims that this was a consensual sexual encounter. Based on the evidence, I found the allegation of rape to be a false report intentionally filed by Crowder.”

That is not my characterization of the detective’s work. It is Holladay’s own conclusion in the police narrative.

It also corrects an overstatement from earlier versions of this book. The text messages did not somehow make me the sole legal decision-maker on whether a rape occurred. Holladay was the investigator. He compared my screenshots with the downloaded contents of my phone, considered the competing accounts, and concluded that the evidence supported my claim of a consensual encounter and that Crowder intentionally filed a false rape report.

The false-reporting case was formally opened on February 13, 2019. Earlier drafts sometimes placed the charge in January. The police record gives the better date: February 13, 2019, report number 2019004743, nature of incident “False Report Of Crime,” summary “False Report of Rape.”

The general affidavit supporting warrant number 31808 likewise states that Crowder knowingly reported a crime she knew to be false and incorporates Holladay's investigation, including the phone download and his conclusion.

The warrant was not served immediately.

On January 25, 2020 — more than eleven months after the false-reporting case was opened — Olive Branch Patrol Officer S. George met Lafayette County officers on Highway 7 near the Marshall County line and took custody of Crowder on warrant 31808. The arrest report says she was processed at Olive Branch Police Department, bonded out through No Limit Bail Bonds, and given a February 11 municipal-court date. Her bond was \$2,500.

Those dates are important because they replace a vague story with an actual chronology:

November 25, 2018: the sexual encounter.

November 29: Crowder reported sexual assault.

November 30: Holladay interviewed Crowder.

December 13: Holladay interviewed me and received the printed text screenshots.

December 18: my phone was surrendered under warrant and downloaded.

February 13, 2019: the false-reporting case and warrant were generated from Holladay's investigation.

January 25, 2020: Crowder was arrested on that warrant.

I have other accusations and theories about what happened around this period — about Crowder's husband, recurring CPS reports, and what I believed were relationships between Crowder and people in Oxford. Some of those claims appear in sworn filings I later made. Some appear on recordings. They are not necessary to establish the false-reporting case, and mixing them into this chapter only weakens the record Holladay created.

The police file is enough.

It is also important to give Olive Branch Police credit where the record supports it. Holladay did not simply choose my story over Crowder's because I insisted I was innocent. He obtained the phone, compared the downloaded data with the screenshots I had supplied, and wrote the conclusion quoted above. In a book largely about records that I believe were distorted or ignored, this is an example of a record being built through actual evidence comparison.

That does not mean every later decision in the case was clean. It means the investigation itself produced a clear documentary finding.

Nearly two years after the original rape report, Crowder would enter a no-contest plea in Olive Branch Municipal Court to false reporting of a crime. The sentence, appeal, and remand became another long procedural fight — and earlier versions of this manuscript got several of those details wrong.

The next chapter corrects them from the municipal and county-court records.

CHAPTER 8 — CONVICTION AND CONTEMPT

By September 2020, the false-reporting case that Detective Ashley Holladay had built from the 2018 rape allegation had reached judgment. On September 22, 2020, Phyllis Crowder entered a no-contest plea in Olive Branch Municipal Court to false reporting of a crime. The later DeSoto County order dismissing her appeal identifies that September 22 disposition as a conviction.

The municipal-court paperwork matters because an earlier version of this book got the money wrong. The signed court order lists a \$1,000 fine and \$149.25 in assessments, for a total of \$1,149.25. It also records thirty days of jail time. The order suspended execution of the jail time and fine for thirty days to allow an appeal. That is the record I should have used from the beginning; the \$129.25 figure printed in an earlier draft was wrong.

The significance of the conviction was not simply that a court had entered a judgment against Crowder. It was what the underlying police file said. Holladay's sworn false-reporting affidavit states that Crowder reported that our November 25, 2018 sexual encounter was nonconsensual. I told Holladay that Crowder and I had planned the encounter through text messages and that the sex was consensual. I gave him printed screenshots

and later surrendered my phone for examination. Holladay wrote that the downloaded contents matched the messages I had provided and supported my account that the encounter was consensual. He concluded that the rape allegation had been intentionally reported falsely.

That distinction is important. I am not claiming that no encounter occurred. An earlier version of my story sometimes compressed the episode too far. The police record says an encounter occurred; the dispute was consent. The detective's examination of the messages is what led him to conclude that the rape report was false.

The appeal that followed has its own paper trail, and it is more complicated than simply saying that Crowder announced an appeal and missed a deadline.

On October 26, 2020, attorney Christi McCoy emailed Olive Branch court clerk Samantha Brock after the municipal court received a notice of appeal in the mail. McCoy wrote: "Yes. We appealed the decision. Judge Shumake gave us 30 days to do so." Court paperwork was being generated around the appeal, including an appeal cost bill. That matters because it shows that there was appeal-related activity before the filing date that ultimately controlled jurisdiction.

But the formal *de novo* appeal in the County Court of DeSoto County was filed on November 19, 2020. The county-court case was *State of Mississippi/City of Olive Branch v. Phyllis Crowder*, Cause No. S2020-0024(CD). The county court did not describe the timing as ambiguous. In its November 23, 2020 Order of Dismissal, the court gave Crowder the benefit of using October 6 — the date she said the municipal judgment had been emailed to her — and calculated that the thirty-day appeal period still expired on November 5. The order states: "Defendant's appeal is two weeks late."

The court then held that the untimely notice deprived it of jurisdiction. It dismissed the appeal and returned the case to the Olive Branch Municipal Court "for execution of the judgment rendered in this matter."

Those words are stronger, and cleaner, than the version I had previously written. This was not a DeSoto County Circuit Court ruling, as an earlier draft said. It was the County Court of DeSoto County. And the county court

did not conduct a merits review of the false-reporting conviction. It dismissed the de novo appeal because it was untimely and sent the case back for execution of the municipal judgment.

The appeal paperwork also explains why different dollar amounts appear in the file. The original municipal judgment listed \$1,149.25. The later appeal cost bill listed a \$1,000 fine, \$209.25 in assessments, and \$110 in county-court costs, producing an appeal-related total of \$1,319.25. They are not competing versions of the same figure; they are different calculations at different procedural stages.

What happened after the remand is where my frustration hardened. The surviving correspondence shows the municipal court setting the matter back on its calendar. I spent that period pressing court personnel and municipal officials for records and asking what would happen to the judgment. I believed the sentence should simply be executed because the county court had ordered the case returned for exactly that purpose.

I need to separate the documented record from my conclusion. The documents establish the conviction, the sentence, the late appeal, the dismissal, and the return to municipal court for execution of judgment. They do not, standing alone, establish why Crowder did not serve the thirty-day jail sentence. I have described that outcome over the years as a judge “refusing” to enforce his own sentence. Unless a record surfaces showing an express refusal, the more precise statement is that the sentence was not carried out in the manner I expected after the remand, and I could not obtain a satisfactory explanation from the records available to me.

That difference in wording does not erase what the paper trail establishes. A detective investigated the rape allegation, examined the messages, and swore that the evidence supported my account of a consensual encounter. Crowder was charged with false reporting. She entered a no-contest plea. A municipal judgment imposed thirty days and \$1,149.25. Her formal de novo appeal was filed late. A county-court judge dismissed it for lack of jurisdiction and returned the case to Olive Branch for execution of the judgment.

I did not leave the matter alone.

My records requests became increasingly pointed. I wrote that Crowder had falsely accused me of rape and demanded records showing what the municipal court had done with the case. The confrontation over those requests eventually produced a contempt proceeding against me and a \$500 bond. I later filed a pro se lawsuit against the City of Olive Branch seeking \$10 million.

Those facts belong in the story without pretending that every escalation on my side was strategically wise. By that point, I had stopped trusting routine requests to produce routine answers. I responded by raising the stakes — more records demands, more accusations in writing, and litigation asking for damages far beyond anything I had a realistic basis to expect a Mississippi court to award. That was my decision. It is also part of the record.

What made the episode so corrosive for me was the contrast. The false-reporting case was one of the rare moments in this story when a police investigator did exactly what I had been asking officials to do: he collected the competing accounts, obtained the phone, checked the messages, and followed the evidence. The municipal court then entered a conviction. The county court later enforced the appeal deadline against Crowder and returned the case for execution of that judgment. Yet I still came away believing that the practical consequence for the false report had disappeared, while my own attempts to force an explanation generated new exposure for me.

That belief drove me deeper into pro se litigation and deeper into the records themselves. The next chapter follows that turn: the post-conviction fight over my own 2017 case, the assignment history that I would spend years trying to reconstruct, and the difference between an irregularity that can be shown on paper and a theory that goes farther than the paper will support.

CHAPTER 9 — THE BATTLE FOR EVIDENCE

By 2020, I was no longer trying only to explain why I believed the 2017 conviction was wrong. I was trying to reopen it.

The first problem was evidence.

On May 20, 2020, I submitted a public-records request to the Lafayette County Sheriff's Department seeking the original affidavit or police report underlying the May 2017 aggravated-stalking case involving Todd and Ashley Lynch. On May 22, I received what I regarded as the wrong document: Bundren's reporting narrative created May 30, four days after the May 26 arrest. I followed up on May 28 asking again for the initiating record.

That exchange matters because it is the origin of one of the most important source gaps in this book. I have the May 30 narrative. I have the later July 6 Criminal Information. I do not have the original initiating affidavit or warrant application that lets me compare, word for word, what was presented before the arrest with what the State formally charged later.

On June 1, 2020, I emailed Kathy Sturdivant, the court administrator for Circuit Judge John Kelly Luther, describing the problems I believed I had found in the 2017 case and asking how to obtain judicial review. Sturdivant responded the next day that Judge Luther had reviewed my emails and advised me to follow Mississippi's post-conviction procedures if I wanted to challenge the guilty plea.

I did.

On July 7, 2020, I filed a motion for post-conviction collateral relief in the Circuit Court of Lafayette County. That proceeding is Cause No. L20-316. One correction from earlier drafts is important here: L20-316 is the 2020 post-conviction case arising from the 2017 plea. It is not the Crowder custody case, and it should not be interchanged with the older criminal cause number.

The motion raised, among other things, the missing initiating records, the rifle-purchase chronology, the circumstances of my detention and plea, and constitutional arguments attacking the judgment.

On July 30, 2020, Judge Luther entered an order summarily denying post-conviction relief under Mississippi Code § 99-39-11(2). The order did not grant an evidentiary hearing.

I responded with motions for rehearing, recusal, and to compel evidence. A later order denied reconsideration and recusal and treated the motion to compel as moot.

Those are the clean procedural facts.

The judge-assignment issue is less clean.

In my 2020 filings I asserted that the matter had been assigned to Judge Kent Smith and questioned why Judge Luther was deciding it. I later recorded myself looking at public docket information that I believed showed the assigned-judge field changing from Smith to Luther when my August 12 recusal motion was entered. I treated that as evidence of manipulation.

The present archive does not contain a certified administrative assignment history establishing exactly when the assignment changed, who changed it, or why. Court cases can be reassigned for ordinary administrative reasons. The fact that Luther ruled on L20-316 is established by his signed orders. My claim that the assignment was improperly changed is not yet established by a source that explains the administrative history.

That distinction should remain visible. An unexplained change is a question. It is not proof of corruption merely because I distrusted it.

I also remember the online case record becoming temporarily difficult or impossible to access during the same period while my poverty affidavit remained visible. I documented that complaint in later recordings and filings. I do not have system logs from the court's electronic-record platform showing whether the cause was removed, re-indexed, hidden by a technical issue, or merely displayed differently. That remains **AUTHOR ACCOUNT / SOURCE MISSING**, not a proven act of record tampering.

The same summer produced another dispute over the May 24, 2017 investigative material. I made recorded calls and sent records demands trying to identify the source of the information that sent Bundren to my Facebook page and to obtain whatever call logs, notes, or recordings existed. I believed attorney David O'Donnell was involved in resisting disclosure. The surviving material shows that I was making that accusation; I have not located a document from O'Donnell admitting that he directed the Sheriff's Department to suppress evidence. This edition will not turn my accusation into his admission.

The evidence fight also spilled into the Crowder custody case.

In 2020 I began arguing that an affidavit used in Crowder's Chancery Court filings had been duplicated or reused improperly. The specific document I focused on was notarized on August 26, 2020. Later filings arrived in the same litigation, including a September 30 petition and an October 8 emergency petition. I developed what I called a notary-fraud theory: that the same notarized material had been repurposed rather than newly sworn.

The theory is not a court finding. I do not have a notarial investigation or disciplinary ruling concluding that Pittman or Crowder committed fraud. The most I can responsibly say in the narrative is that I compared the filings, believed the notary material had been reused, raised the issue, and treated it as another records irregularity. The underlying documents should be reproduced or tabulated in the evidence appendix so a reader can inspect the signatures and jurats rather than rely on my conclusion.

Earlier drafts went much further. They assigned a motive — that the Chancery filing was created to influence Crowder’s separate false-reporting sentence — and described the theory as if the timing proved the purpose. The chronology may have fueled my suspicion, but chronology does not establish motive. I am removing that claim unless a communication or court record directly supplies the connection.

This was the pattern of my 2020 litigation life: I would find a discrepancy, ask for the source record, receive either a different document or no answer I considered adequate, and then build a theory around the gap. Some of those theories later found support. Others did not. The discipline of this edition is to preserve the discrepancy without automatically preserving every conclusion I drew from it.

That is especially important with the broader political theories I developed about Lafayette County. The Metro Narcotics missing-money controversy, Joey East’s later election as sheriff, Jeff Busby’s move from the Board of Supervisors to Circuit Clerk, and other institutional relationships are real subjects in the source archive and in my later investigative reporting. They do not prove that Judge Luther denied L20-316 for a corrupt reason. A structural conflict or political network is not evidence of causation in a particular judicial ruling unless the record connects the two.

So Chapter 9 ends with fewer accusations than earlier versions and a stronger evidentiary problem.

I asked for the initiating 2017 affidavit.

I received the May 30 post-arrest narrative.

I filed L20-316.

Judge Luther denied it without an evidentiary hearing.

I challenged the assignment and demanded more evidence.

And the single document that could settle exactly what probable-cause allegation supported the May 26 arrest still has not surfaced in the archive I possess.

The next chapter turns from court records to a different source of pressure that was developing at the same time: repeated reports involving my family and Child Protective Services.

CHAPTER 10 — THREE YEARS RUNNING

By July 2020, Madelyn and I had begun describing what was happening around our family as a pattern.

I want to be careful about what that means, because an earlier version of this chapter turned our description into more proof than the records support.

During a Child Protective Services home visit in July 2020, which we recorded, Madelyn and I told the caseworker that allegations involving Crowder had recurred “three years in a row.” We also described what we believed was a recurring timing pattern around pregnancies and miscarriages in Crowder’s life. Those statements are valuable because they show what we were saying in real time, before this book existed. They do not prove that every allegation came through the same CPS hotline, that the timing caused the reports, or that Crowder acted from any particular psychological motive.

The underlying events were not all the same kind of report.

One was a child-welfare allegation I later described under oath as having occurred around 2017. One was the November 2018 rape allegation that Olive Branch police investigated and that Detective Holladay ultimately concluded was an intentionally false report. Another involved Lydia and Madelyn in January 2020 and generated both a CPS contact and a Lafayette County Sheriff's Office report.

That January 2020 report survives.

On January 24, Deputy Brian Howell spoke with Crowder at the Sheriff's Office. His report, Complaint No. L20-000381, is classified as "CHILD ABUSE." Howell wrote that Crowder told him Lydia had been with me from January 17 through January 23 and, after getting into Crowder's car, said: "mommy Maddy hit me really hard because I didn't eat all my sandwich."

Crowder also told Howell that she had contacted a CPS worker identified in the report as Mercedes and that Mercedes had advised her to make a report with the Sheriff's Office.

Howell then called me. His report does not make me look calm. It says I "started going off on Phyllis," told him, "thank you for your time and tell her to kick fucking rocks," and hung up.

That is part of the record too.

The next day, January 25, I called Deputy Joe Quarles and told him Crowder had an outstanding Olive Branch warrant for filing a false police report. Quarles's supplemental report says he checked with Olive Branch, dispatch received a hard copy of the warrant, and the information was passed through supervisors. Crowder was then taken into Olive Branch custody on the false-reporting warrant discussed in Chapter 7.

Those two events — a fresh child-abuse report involving my household and the service of Crowder's older false-reporting warrant — occurred within about a day of each other. That timing intensified my belief that the family conflict and the criminal accusations were feeding each other. It does not, by itself, prove that one caused the other.

On February 14, 2020, Crowder made another report to the Sheriff's Office. Deputy Ethan Tidwell wrote that Crowder said I was harassing her on Facebook, that DHS had an active investigation involving me and my wife, and that she had not allowed me to see Lydia because of that investigation. The same report says Crowder was worried I had "begun stalking her again," but that "she does not have any proof." Tidwell advised her to take the court paperwork and proof of any violation to her lawyer and to consider seeking a protection order through Justice Court.

The phrase "she does not have any proof" is Tidwell's report, not my paraphrase.

A separate Sheriff's Office record from this general period also preserves Crowder telling a deputy: "C.P.S. (Child Protective Services) has told me to end all visitation for him." I disputed that assertion at the time and said CPS personnel had told me otherwise. I have referred on recordings to conversations with CPS that I said disproved Crowder's claim. Until the specific CPS recordings or written agency determination are placed directly into the evidence set, this edition will state the conflict accurately rather than declare the agency's side from a recording I have not yet re-verified.

That is an example of why the phrase "three years running" needs care.

The records do show repeated allegations and reports involving Crowder, me, Madelyn, and Lydia over multiple years. They do not currently establish three identical, malicious CPS reports from the same source on the same schedule. In July 2020, Madelyn and I believed we were seeing a recurring pattern and told the caseworker so. That contemporaneous belief belongs in the memoir. The causal theory we attached to it belongs in the memoir only as our theory.

We also used language during that recorded visit speculating about Crowder's mental health. I am not repeating a lay psychiatric diagnosis as though it were a medical fact. Neither Madelyn nor I was qualified to diagnose Crowder, and I do not have a clinical record doing so. The relevant point is not what label we used under stress. It is that we were trying to persuade a state investigator that the new allegation should be evaluated in the context of a longer history rather than as an isolated event.

That distinction matters for Crowder as much as it does for me. A report that is not substantiated does not automatically prove the reporter knowingly lied. Child-protection systems are supposed to accept reports that may turn out to be mistaken. The November 2018 rape allegation is different because Detective Holladay affirmatively concluded, after examining the phone evidence, that the report was intentionally false. The January 2020 child-abuse report does not carry an equivalent finding in the records I have reviewed for this chapter.

By the end of 2020, I had become consumed with preserving evidence from every direction: police reports, CPS contacts, phone calls, court filings, screenshots, and docket entries. Part of that habit was rational. Some records later proved things I had been unable to prove at the time. Part of it also fed my tendency to interpret separate events as one coordinated system before I had evidence of coordination.

That tension runs through the rest of this book.

I was not imagining every discrepancy. Holladay's false-reporting file existed. The missing 2017 initiating affidavit was a real records gap. The January 2020 Sheriff's reports say exactly what they say. But a collection of real discrepancies does not automatically validate every theory I built around them.

As 2020 became 2021, the focus shifted from family reports and records requests to a traffic stop on an ice-covered Mississippi road.

On February 21, 2021, Deputy Kandi Beavers pulled me over. The charge that followed would eventually become one of the convictions I appealed all the way to the Mississippi Court of Appeals.

CHAPTER 11 — THE FEBRUARY 2021 DUI SETUP

On February 21, 2021, at approximately 1:54 a.m., Deputies Jacob Williford and Kandis Beavers saw my 2013 Kia traveling east on Jackson Avenue with one headlight illuminated.

That is the reason for the stop in Williford's report. He did not write that I was weaving, speeding, or driving erratically. He turned around, followed me onto Hathorn Road near the Ole Miss softball fields, and initiated the traffic stop because of the headlight.

My wife was in the vehicle with me.

Williford wrote that when he approached the driver's side, he smelled what he believed, based on training and experience, to be burned marijuana. He asked whether there was anything illegal inside. I said there was not. After I stepped out, he had my wife step out as well and searched the vehicle. His report says he found no contraband.

That part of the officer's report is important because my own recording of the stop substantially tracks it. I did not deny that I had smoked marijuana earlier in the evening. Beavers's report says I told her I had smoked before

11:00 p.m., that my wife had contacted me because she had left medication at home, and that I had taken “one hit out of a one hitter” before leaving to bring the medication to her.

I also told the deputies I did not believe I was impaired.

Beavers wrote that she could smell marijuana from the vehicle but not from me once we were standing away from it. Because I admitted smoking earlier, she told me she wanted to administer tests to determine whether I was safe to drive.

The weather complicated that plan. Both reports describe below-freezing temperatures and snow or ice on the ground. Rather than conduct the tests roadside, Beavers said I would be transported to the Lafayette County Detention Center’s garage, commonly called the sallyport, for the testing.

I objected. Beavers’s own report says I became upset and told her I did not consent to being transported for the tests. I asked for a supervisor. Lieutenant John Dukes arrived. According to Beavers, Dukes told me I would have to go to the detention center to perform the tests. Beavers then told me that, if she concluded I was able to drive after the tests, I would be returned to my vehicle. Her report says I agreed to go after that explanation.

I was handcuffed for transport. My wife was allowed to leave with the Kia.

At the sallyport, Beavers removed the handcuffs and administered field-sobriety testing. Her report is more detailed than the simplified version I told for years.

On horizontal gaze nystagmus, she recorded no clues.

On a modified Romberg balance test, she wrote that I estimated thirty seconds in thirty-five seconds and displayed eyelid and body tremors and swaying.

On lack of convergence, she wrote that my left eye did not converge as expected.

On the walk-and-turn, she recorded four of eight clues, including difficulty maintaining balance during instructions, missing heel-to-toe, stepping off line, and making an improper turn.

On the one-leg stand, she recorded two clues: using my arms for balance and swaying.

After the tests, Beavers asked me to rate myself from zero to ten, with zero sober and ten the highest I had ever been. Her report says I answered zero.

She concluded I was not safe to drive and arrested me for DUI first offense. Williford also cited me for the expired tag and improper equipment.

The Sheriff's report lists no physical evidence recovered from the vehicle. Williford expressly wrote that he found no contraband. Beavers's report lists "EVIDENCE: n/a." I was not charged with possession of marijuana or paraphernalia from this stop.

That is the factual core of the case. It is more complicated than saying the deputies simply invented an odor, and it is also more complicated than saying the officers had objective proof of impairment. I admitted recent marijuana use. No contraband was found. Beavers recorded some clues on some tests and none on HGN. I rated myself sober. The central question became whether the observations were enough to prove DUI beyond a reasonable doubt.

The reason the word "setup" remains in the title is not because the report itself proves the stop was staged. It does not. The title reflects how I came to view the case after the evidence-preservation dispute that followed. That distinction needs to stay visible.

Neither deputy had a dash camera or body camera recording the roadside encounter. The actual field-sobriety tests were performed inside the detention-center sallyport, an area covered by the Sheriff's Department's fixed camera system. When the case reached trial, that footage had not been preserved.

I requested video evidence before trial. In later testimony, Sheriff Joey East described the detention-center system as ordinarily retaining footage for about seven days unless it was preserved. He also acknowledged that other Sheriff's Department footage from a different incident involving me had been affirmatively preserved. Chapter 14 deals with that testimony in

detail, because earlier versions of this book incorrectly put the phrase “gone forever” in East’s mouth. He did not use those exact words in the trial audio I later reviewed.

What the missing sallyport video would have shown cannot now be known. I believe it would have supported my account of how I performed on the tests. Beavers’s written report says otherwise on several components. The absence of the recording leaves the disagreement unresolved rather than automatically proving either side.

The Justice Court ultimately convicted me of DUI first offense, improper equipment, and expired/no tag. The certified abstracts identify the offense date as February 21, 2021, the trial date as November 4, 2021, and the judgment date as November 24, 2021. The DUI abstract lists a \$400 fine plus \$404 in assessments. The improper-equipment abstract lists a \$30 fine plus \$116 in assessments.

I appealed those convictions.

The DUI stop was only one thread in what became a difficult 2021.

On March 23, 2021, Crowder and I entered another agreed order in the Chancery custody case. The order adjusted the litigation between us, maintained child support at \$400 per month, dismissed the guardian ad litem, and contained restrictions intended to reduce the cycle of public and CPS accusations. Whatever the order was intended to accomplish, the relationship deteriorated again. In later Chancery pleadings I stated that communication and visitation with Lydia stopped around June 5. A June 19 Sheriff’s report records me going to Crowder’s property around Father’s Day seeking my daughter, being told to leave, and telling Crowder to “fuck off.” I told the deputies I had recorded the encounter.

That is another fact I will not clean up for publication. I was angry and profane. The custody conflict was escalating again.

There was also a separate crisis in my household during 2021. After an argument with Madelyn, police became involved and I was arrested on a disturbance matter. During that episode officers reported finding a marijuana pipe in a vehicle. I was later sent for a short stay at the Tupelo Crisis Center.

I have previously placed that incident confidently in July 2021 and described the stay as roughly two weeks. The event itself is real, but the exact date has not yet been verified from an arrest report, docket entry, or discharge record in the source set. I am therefore not fixing a specific date to it in this edition until the underlying record is located. I also remember the disturbance and paraphernalia matters being retired to the file rather than prosecuted to conviction, but that procedural status should be tied to the Calhoun County record before publication.

The Calhoun County matter later entered the Chancery case anyway.

On September 14, 2021, Chancellor Robert Q. Whitwell entered an order requiring me to submit to a nail-bed drug test and suspending visitation pending further order. The written order acknowledged that the paraphernalia charge had been “retired to the file pending Mr. Reardon’s good behavior in Calhoun County” and stated that the drug test was not being ordered to prove or incriminate me on that charge.

I objected on constitutional grounds and sought recusal and appellate review. I argued that the court was using an inactive criminal matter as a basis to compel testing in the custody case. Whitwell rejected my recusal position. The Mississippi Supreme Court later denied the mandamus relief I sought and denied my request to proceed in forma pauperis. My underlying Fourth and Fifth Amendment theory about the drug test did not produce a merits ruling in my favor.

Earlier versions of this chapter described the Supreme Court episode too selectively. Part of my appeal ultimately failed over costs, but the recusal issue was actually addressed and decided against me. That belongs in the record just as plainly as the issues I believe the courts never reached.

By September 2021 I was litigating simultaneously against criminal convictions, custody restrictions, and evidence-preservation problems. I had also begun identifying myself publicly as a journalist and recording government encounters with increasing frequency.

The next confrontation moved to a federal building in Oxford, where I went looking for a federal audience for the complaints I believed local institutions would not address.

CHAPTER 12 — THE OXFORD U.S. ATTORNEY’S OFFICE CONFRONTATION

By the spring and summer of 2021, I was no longer limiting my complaints to Lafayette County officials. I was calling state investigators, the Mississippi Attorney General’s Office, and federal officials because I believed local law enforcement and courts were not addressing the records I kept putting in front of them.

One recording from May 3, 2021 captures how far that frustration had gone.

I called the Mississippi Bureau of Investigation for the fifth time. Earlier manuscript work misidentified that call as an FBI call because an automatic transcription was “corrected” in the wrong direction. The recording itself and the staffer’s reference to the Mississippi Attorney General’s Office make clear that the agency was MBI.

I told the staff member:

“I’ve called five times, this is the fifth time now... I’ve described the scandal to the T. I’ve produced unsurpassed amounts of evidence. At this point, the only explanation for [them] not getting in touch with me, like

I've been told every time, is that they are complicit in the scandal, and I'm making the direct accusation of [the bureau] being complicit in everything going on for the simple fact of they have neglected their own duties."

She apologized that nobody had called me back and told me that complaints about the agency could be reported to the Attorney General's Office. I answered that I had already contacted that office too.

The recording matters for two reasons, and neither cancels the other. First, it preserves me saying that I had repeatedly sought contact from the state's investigative bureau and had not received the response I expected. Second, it preserves me converting the absence of a callback into an accusation of complicity. The recording proves I made that accusation. It does not prove MBI was actually part of a conspiracy.

That distinction is important because by then I had begun treating silence as evidence. Sometimes silence did accompany a real records problem. It did not automatically establish motive.

During July 2021, I also filmed around the Oxford office of the United States Attorney for the Northern District of Mississippi. By then I was regularly recording public officials and government facilities as a journalist and activist. I have sometimes accepted the label "First Amendment auditor" when others used it, but that label does not fully describe how I identify my work. What matters here is what I was doing: standing outside a government office with a camera and trying to engage officials about my complaints.

The encounter was recorded.

Oxford Police Chief Jeff McCutchen became involved. I have consistently credited McCutchen for the way he handled that specific event. My records from the period reflect that I was able to obtain the incident report promptly rather than having to fight for it through the same kind of prolonged records dispute I had experienced elsewhere.

That does not make McCutchen a permanent ally in this story. In 2022 he would contact MBI regarding the City Hall encounter that led to my second aggravated-stalking case. But the point of a documentary memoir is not to

sort people into permanent heroes and villains. On this occasion, I regarded his handling as professional and transparent, and I am keeping that credit in the record.

The recording also captured McCutchen referring to Assistant U.S. Attorney Bob Norman as “blowhard Bob.” I have preserved that line because it is on the recording, but I should not make it carry more weight than it can.

It does not prove Norman was corrupt. It does not prove Norman caused the FBI record from my May 25, 2017 meeting to disappear. It does not prove McCutchen believed Norman had committed misconduct. It is a candid remark by a local police chief about a federal prosecutor. That is all the recording establishes.

Norman was already a familiar name to me. I had communicated with him while trying to obtain federal attention for my allegations. I have also said that he was involved in arranging the May 25, 2017 FBI meeting discussed earlier in this book. I do not have an FBI-created record from that day establishing every step of how the meeting was arranged, so that detail remains tied to my own records and recollection.

The July 2021 encounter with Norman outside the federal office was more direct. I was filming. Norman came outside and engaged with me. We argued.

Earlier versions of this chapter tried to turn the fact that a federal prosecutor came outside into evidence that my recording had “rattled” federal officials or that Norman violated some standard federal protocol by engaging with me personally. I do not have a policy establishing that, and I do not know his motive. He came outside and confronted or engaged me on camera. The recording can show the tone and words. The reader does not need me to invent what was going through his head.

The episode also should not be used as a supposed “dry run” for what happened four years later in Louisiana. The two events share some surface facts — federal facilities, cameras, conflict with federal personnel — but similarity is not proof of coordination. The Lafayette, Louisiana events stand on their own records and are addressed later in the book.

What the Oxford confrontation does establish is a change in how I was operating by 2021. I was no longer making complaints quietly and waiting. I was filming government buildings, recording officials, publishing the interactions, and confronting agencies that I believed were ignoring me.

That approach created evidence. It also created friction.

I had reached a point where I distrusted almost every institution that told me to wait, submit another form, call another office, or accept that a record was unavailable. My answer increasingly was to show up with a camera and make the refusal public.

Sometimes that exposed useful information. Sometimes it made an already adversarial relationship worse. Both are true.

The next chapter returns to Lafayette County and to an incident that looked almost trivial compared with a federal confrontation: I crashed a small drone into the Justice Court building while trying to film. The resulting encounter produced another Sheriff's Office report and another example of how quickly ordinary mistakes had begun turning into government confrontations around me.

CHAPTER 13 — THE DRONE AND GROWING TENSIONS

On September 29, 2021, I flew a small drone outside the Lafayette County Justice Court complex. I lost control of it and hit the Justice Court building.

That is not an inference drawn from somebody else's complaint. It is what I told Deputy Courtney Dixon when he investigated the incident. His supplemental report records me saying I was working on a documentary, wanted aerial footage that included the United States flag, pressed the wrong control, and lost control of the drone. According to Dixon's report, I told him the drone struck the building beneath the Lafayette County lettering, fell to the concrete, and, after I got it airborne again, traveled toward another county building without striking it.

I am putting my own statement first because this is one of the easiest incidents in the book to distort by arguing over everybody else's version. I flew the drone. I lost control of it. It hit the building. There is no reason to make the event smaller than the record makes it.

The sheriff's report also records facts that make the episode more serious than a harmless equipment mishap. One witness told Dixon that the drone had been roughly forty feet above the ground and directly over people

walking into the Justice Court building. Another witness reported seeing it strike the building. A witness said I retrieved it and attempted to fly again, after which it went over a fence and crashed to the ground. The report says I then retrieved it and returned to my vehicle, where my stepdaughter was present.

Those are witness accounts collected by law enforcement, not judicial findings, and I distinguish them from my own admission for that reason. But they are part of the contemporaneous record and they belong in the narrative. A reader assessing my judgment during this period should have them.

The law-enforcement response is documented too. Dixon's report says that when he arrived, Chief Deputy Scott Mills was already speaking with me, along with two Oxford Police officers. Investigators Micah East, Brad McDonald, and Nathan Noe later arrived. Dixon and Investigator East asked what had happened, and I identified myself as a member of the press and explained the documentary footage I was trying to obtain.

Mills then asked whether I had a commercial license to fly the drone. I said I had documentation on my phone. The report says the material I produced was not a commercial license and that whatever document I showed was expired. Investigator McDonald photographed it. The report further says I asked whether they were going to write me a citation for flying without a license, and Mills told me that question was up to the U.S. Attorney's Office. I was told to leave after providing a valid physical address and the requested documentation.

No arrest followed. The report itself closes the incident with three plain entries: **ARREST: N/A. BOOKING: N/A. MEDICAL TREATMENT: N/A.** That matters because it prevents this episode from becoming something it was not. The deputies investigated. They spoke with witnesses. They questioned me about licensing. They documented what I said and what the witnesses said. They did not arrest me that day.

The report contains another useful limit on the evidence. Dixon went inside the Justice Court and the neighboring building to ask whether clerks or employees had seen the flight. According to his report, none of them had. The three outside witnesses agreed to provide written statements. In other

words, the contemporaneous file contains both corroboration and limitation: outside witnesses described the drone and the impact; employees inside the buildings did not report seeing it.

There is no need to build a constitutional argument around this incident. I was operating a drone around a government building, lost control, hit the building, retrieved it, and tried to fly again. A child was with me. Whatever dispute I later had with the Sheriff's Department about whether the flight was recreational or commercial, the basic safety problem does not depend on resolving the licensing question.

That point matters to the credibility of the larger book. There are places in this story where the documentary record sharply contradicts what government officials said about me. This is not one of them. Here, the record largely confirms that I made a poor decision and then compounded it by putting the drone back in the air after the first impact.

What this incident does become later is evidence in somebody else's description of me. The December 2021 commitment material discussed in Chapter 16 refers to reported conduct involving public recording and a minor child. In a later recorded call, Communicare supervisor Rachel Alcorn described receiving reports of what she called "concerning behavior" and referred to conduct involving recording in public and provoking people while a child was present. I disputed that characterization because the drone collision was accidental and because accident is not the same thing as provocation. But the September 29 sheriff's report makes one part of the context undeniable: I had, in fact, been involved in a highly visible law-enforcement encounter outside the Justice Court while operating a drone with my stepdaughter present.

That does not prove the later psychiatric characterization was medically justified. It does mean the later description did not materialize from an entirely empty factual record. A fair account has to preserve that distinction.

By late September 2021, the pattern of my own conduct was becoming more confrontational and more public. Some of that conduct was protected speech. Some of it was legitimate records work. Some of it was me

pushing officials because I believed the record justified pushing them. And some of it, like this drone incident, was simply bad judgment that gave the people already watching me another documented event to point to.

The next major confrontation came in Justice Court in November. That proceeding would decide the DUI, improper-equipment, disorderly-conduct, and resisting-arrest charges that had accumulated over the prior year. Unlike the drone encounter, it did produce convictions. And unlike some earlier versions of this book, the chapter that follows does not rely on a remembered phrase about missing video or on an assumed five-to-four verdict split. It starts with what the later court record actually confirms.

CHAPTER 14 — THE NOVEMBER 2021 TRIAL

On November 4, 2021, I appeared in Lafayette County Justice Court for a bench trial covering a collection of charges that had accumulated from separate events.

In a later federal pleading, I described that day as “nine separate charges” arising from three events and said the charges included the February 2021 DUI episode, the December 2020 disorderly-conduct and resisting-arrest case, and charges brought separately by Phyllis Crowder. I also said I was acquitted on the charges Crowder brought.

That is my filed account of the full trial day. The later official court record independently establishes something narrower and important: on November 24, 2021, the Justice Court entered judgments finding me guilty of four offenses — **Driving Under the Influence, First Offense; Improper Equipment; Disorderly Conduct; and Resisting Arrest**. A later Circuit Court order identifies those four convictions expressly, and the corrected notice of appeal filed by appointed counsel in 2022 identifies the same four judgments.

That later record matters because earlier versions of this manuscript treated the entire day's disposition as though every piece of it had already been independently verified. It has not. The four convictions are established by later court records. My description of nine total charges and the disposition of the other charges comes from my own filed account unless and until the complete Justice Court disposition sheets for all nine are placed beside it.

The trial audio does preserve substantial portions of the evidence and questioning, including the February DUI case.

Deputy Jacob Williford testified about the February 21 stop. The physical record discussed in Chapter 11 shows the original justification for the stop was an equipment issue, that I acknowledged prior marijuana use, that the vehicle search produced no contraband, and that the field-sobriety exercises were conducted after I was transported to the detention-center sallyport rather than on the icy roadside.

The missing sallyport video became a central issue at trial. Earlier versions of this book repeatedly said Sheriff Joey East testified that the footage was "gone forever." After going back through the trial audio, I cannot support that quotation. I am removing it rather than preserving a phrase because I repeated it for years.

What the audio does support is more specific.

The questioning established that the field-sobriety exercises took place inside the sallyport, an area with fixed cameras. The officer testified that he had not asked for the sallyport video to be preserved. During questioning about the department's video practices, the record also established that video from another sheriff's-department location connected to another charge had been preserved. Defense counsel then put the obvious comparison to the witness: if that video could be preserved, the sallyport video could have been preserved too. The answer was yes.

That is the evidentiary point worth keeping. Not a dramatic phrase that the tape does not contain. The issue is that a camera system covered the location where the sobriety exercises occurred, the footage was not preserved for the case, and testimony established that preservation was possible.

The absence of that footage does not by itself prove I performed the exercises successfully or that the DUI charge was fabricated. The contemporaneous DUI paperwork contains observations adverse to me, including clues Beavers recorded on parts of the field-sobriety testing. A serious account has to keep those facts on the same page. What the missing video means is that an objective record that could have shown the exercises no longer existed by the time the case was tried, leaving the court to choose between written observations, testimony, and my account.

The December 28, 2020 case was different. Deputies Courtney Dixon and Ethan Tidwell were involved in the encounter outside the Sheriff's Department. I had gone there after emailing Sheriff Joey East about grievances I wanted him to address and parked in an area the deputies told me to leave. The dispute escalated into disorderly-conduct and resisting-arrest charges.

I recorded that encounter. One factual dispute became especially important to me: the officers' account said I refused multiple orders to move the vehicle. My recording, as I have described it from the time of the case, captured me arguing about why I was there and insisting on speaking with the sheriff, but I maintain it did not capture me saying the specific repeated "no" attributed to me in the written account. That recording should ultimately be compared line by line with the officers' report before the book makes a stronger claim than that. For now, the accurate statement is that I dispute the officers' characterization and possess a contemporaneous recording that is the proper source for resolving the wording.

Sheriff East also testified about the December encounter. The surviving trial audio records him describing me in stark terms, including his view that I was unpredictable, that I was becoming worse over time, and that he considered me a threat to people who disagreed with me. Those statements matter for a reason that reaches beyond the misdemeanor case itself. Within weeks, East would again be involved in an encounter with me at the courthouse, and the next day local law enforcement would provide information to Communicare that helped trigger an involuntary-commitment process. Chapter 16 addresses what the later Communicare recording actually establishes about that referral — and, equally important, what it does not establish about who specifically made it.

The four convictions entered November 24 created the next procedural fight. On December 2, the Justice Court entered an order finding me indigent, allowing an appeal without a supersedeas bond, staying execution of the judgments, and giving additional time to file. On December 3, acting without counsel, I filed in Circuit Court a document styled as a motion to alter or amend or vacate the judgments and stated in it that it was intended to serve as notice of my intent to appeal.

Years later, that procedural choice would become a major issue in its own right. The Circuit Court ultimately concluded that the December 3 filing did not satisfy the formal requirements for perfecting a Justice Court appeal. Appointed counsel later filed a corrected notice of appeal, and the fight over whether the original filing was sufficient would remain alive for years before reaching the Mississippi appellate courts.

But before any of that could be resolved, something happened three days after I filed the December 3 papers.

I went back to the Circuit Clerk's office on December 6 because the case I had been told was assigned to Judge Kent Smith now displayed Judge John Kelly Luther. That encounter was recorded. Earlier drafts incorrectly said it was not.

The next chapter starts with the recording.

CHAPTER 15 — CIRCUIT COURT CHESS GAME

On December 3, 2021, I carried my Justice Court challenge into Lafayette County Circuit Court.

I was representing myself. The filing was imperfect — later courts would make that point central to the appeal — but my purpose was explicit. In the final paragraph of the motion I told the court to treat it as notice of my intent to appeal the November judgments. A civil cover sheet filed with it likewise identified the matter as an appeal from Justice Court.

The detail that drove me back to the courthouse three days later was the assigned judge.

In a later sworn filing, I stated that clerk Chyna Sinervo told me on December 3 that the case had been assigned by a random algorithm to Judge Kent Smith. I recorded that interaction. By December 6, when I checked the case again, the assigned judge displayed in the system was John Kelly Luther.

That mattered to me because I had already fought with Luther over my 2020 post-conviction case. It did not, by itself, prove that anyone had manipulated the assignment. Multi-judge circuit courts reassign cases for ordinary administrative reasons. But I wanted to know what had happened to this one, and I went to the Circuit Clerk's office to ask.

An earlier draft of this book said the clerk's-office confrontation was not recorded. That was wrong. The encounter exists on video, and the correction changes how this chapter should be written.

The recording shows me questioning courthouse staff about the assignment. My later court filing says Circuit Clerk Jeff Busby became defensive and instructed staff not to answer further questions. That is my characterization in the filing; the recording itself is the source that should control any word-for-word account of what was said at the counter. The important point is that this was not a scene reconstructed years later from memory. There is contemporaneous video of me trying to get an answer about why the name associated with the case had changed.

What happened outside is recorded too.

Sheriff Joey East arrived and opened the exchange by telling me he had received a call that I was at the courthouse "harassing people." The recording does not establish who made that call. I have alleged in later filings that Busby contacted East, but East's statement on the video does not identify the caller, and I will not turn my inference into the recording's fact.

I answered that I had been petitioning the government. East drew a distinction that is important to preserve accurately. Filing paperwork, he said, was fine. What he told me not to do was go back inside and harass people or cause problems. I disputed that I had harassed anyone and insisted I had only been asking a question.

The exchange deteriorated quickly.

East told me to calm down "before something happens" and repeated that I should not go back into the courthouse to cause a problem. I called the instruction tyrannical. I challenged him about other matters. At the end of the encounter, I told him, in profanity, to go fuck himself.

That last part belongs in the record as much as anything East said. Whatever the legitimacy of my question about the judicial assignment, by the end of the confrontation I was no longer speaking like a citizen calmly requesting an administrative explanation. I was angry, confrontational, and profane directly to the county sheriff. Any account that omits that would falsely sanitize my side of the event.

It is equally important not to stretch East's words beyond what the recording says. He did not tell me that I could never enter a courthouse again. He expressly said filing paperwork was permitted. His direction was that I not return to harass people or cause issues. I disagreed with his premise that my questioning constituted harassment, but the distinction is there on the tape and should not be erased.

The unresolved issue was the one I had come to ask about: why a case I had been told was randomly assigned to Smith now displayed Luther.

I also made a recorded call to court administration about the assignment. The existence of that call matters because it shows the judge-assignment complaint was being raised contemporaneously, not invented later after the commitment proceedings.

The commitment file adds a timing detail that earlier drafts had wrong. The Uniform Civil Commitment Affidavit in Cause No. 2021-691(L) is dated and filed **December 6, 2021** — the same date as the clerk's-office and East encounters — not December 7. The record presently before me does not establish whether Alcorn signed the affidavit before or after the specific recorded confrontation with East. I therefore cannot truthfully write that the East encounter caused the affidavit merely because both occurred on the same date.

The next day, December 7, deputies came to take me into custody on the commitment writ. That seizure is separately captured on a contemporaneous recording.

The defensible chronology is therefore narrower than the version I told for years:

December 3: I filed the Justice Court challenge and was told, according to my sworn account and recording, that the case was assigned to Kent Smith by a random process.

December 6: I returned after seeing John Kelly Luther associated with the case, questioned courthouse staff on video, and was confronted outside by Sheriff East, who said he had received a call that I was harassing people. The commitment file also shows Rachel Alcorn's Uniform Civil Commitment Affidavit was filed that day.

December 7: deputies executed the commitment process and took me into custody.

The inference I drew from that sequence — that the commitment process was retaliation for my courthouse questions — is mine. The record does not permit me to collapse chronology and motive into the same fact.

That distinction became much clearer when I later spoke directly with Alcorn. For years I summarized that conversation as though she had identified Joey East personally as the source of the information behind the commitment. The recording does not support that. She said **local law enforcement** contacted Communicare about what she described as concerning behavior. Later in the call, she also referred to information from “law enforcement and community members.” When I supplied East's name, she did not confirm it.

She also gave context I had often left out when telling the story: I was already subject to an outpatient commitment order originating in Calhoun County, and Communicare said its treatment teams had previously tried to engage me. That pre-existing order matters to any fair assessment of why Communicare was involved at all.

Those corrections do not make the timing disappear. They make the question narrower and more defensible.

The next chapter is therefore not the story of a sheriff personally signing a psychiatric affidavit because I asked about a judge. The record does not show that. It is the story of a Communicare supervisor filing a commitment affidavit on the same date as a recorded courthouse confrontation, after

Communicare had been engaged by local law enforcement, against the backdrop of an already-existing outpatient commitment order — followed by deputies taking me into custody the next day.

That is what the documents and recordings establish. Anything beyond it has to remain identified as my allegation.

CHAPTER 16 — COMMITMENT

The first document in this chapter is dated December 6, 2021.

That matters because I told this story incorrectly for years. I said the commitment process began the day after my confrontation with Sheriff Joey East outside the Circuit Clerk’s office. The actual commitment file says otherwise. Rachel Alcorn’s Uniform Civil Commitment Affidavit in Lafayette County Chancery Court, Cause No. 2021-691(L), was filed on **December 6** — the same date as the recorded clerk’s-office and East encounters described in the previous chapter.

The record I have does not establish which happened first that day. I therefore cannot say, as fact, that my confrontation with East caused Alcorn to file the affidavit. What I can say is that both events occurred on the same date and that, in a later recorded call, Alcorn said Communicare had been engaged by local law enforcement about what she described as concerning behavior involving me at the court.

The affidavit itself did not say simply that I had asked questions about a judicial assignment. In a later filed motion challenging the commitment, I reproduced its factual description this way: I “go[] into public places recording people,” was “paranoid and delusional,” was “provoking people with [a] minor child,” was “not taking meds,” and was “not getting medical

help.” The original form also marked statutory grounds asserting a recent threat or attempt of physical harm and an inability or failure associated with basic care or safety. Those were the allegations used to start the process. They were not findings that had already been proved in an adversarial hearing.

Some of the underlying conduct was real even where I disputed the characterization. I was going into public places and recording. By then I was doing it constantly. The September drone incident had occurred with my stepdaughter present, and the Sheriff’s Department had generated a report about it. Chapter 13 sets out the facts that report actually contains: I lost control of a drone outside Justice Court, struck the building, relaunched it, and witnesses said the drone had been over people walking into the courthouse. Describing that event as me “provoking people with [a] minor child” was a characterization I rejected, but the presence of a child during a highly visible law-enforcement encounter was not invented from nothing.

There was another piece of context I did not understand clearly when I first began accusing Communicare of fabricating the entire process. I was already connected to an outpatient commitment order originating in Calhoun County.

Alcorn explained that directly when I spoke with her later that month. The call is recorded. She told me she supervised Communicare teams responsible for people on outpatient commitment orders and said I had been on such an order from Calhoun County. She said Communicare had previously tried to engage me in treatment and had documented difficulty doing so. According to her account, Communicare had reached the point where it would not continue attempting contact unless I reached out or unless law enforcement or the chancery court requested crisis support.

Then she described what led to the Lafayette County affidavit.

Her words, in substance, were that **local law enforcement** asked Communicare to become involved because of reported concerning behavior at the court, and that she signed an affidavit within her role, starting the commitment process.

That recording corrects another claim I repeated for years. Alcorn did **not** tell me that Joey East personally supplied the information. I was the one who introduced his name into the conversation. I told her I had figured it came from East. She did not confirm that. Later in the call she referred more broadly to information she had received from “law enforcement and community members.” The recording therefore supports a law-enforcement referral. It does not identify East as the source.

That distinction is not cosmetic. I later filed pleadings alleging that East personally gave Alcorn false information and used Communicare to retaliate against me. Those pleadings accurately establish that I made the accusation. They do not transform the accusation into an admission by Alcorn. The audio controls, and the audio is narrower.

On December 7, deputies came to take me into custody under the commitment process. That encounter is itself recorded. I challenged the paperwork and the basis for taking me, but the operative fact is not disputed: the deputies had a court-issued writ and I was taken into custody.

The commitment file then records a pre-evaluation process on December 8. On December 9, the court entered an Order of Commitment. The court file records that I was present at the hearing. That is another correction to the broadest version of the story I later told. I have challenged what process I was actually afforded, the quality of the evaluations, the evidence supporting the order, and whether I was meaningfully able to confront the allegations. But the December file itself does not support saying that there was simply no hearing at all. My later motion to vacate attacked the fairness and legality of that process; the court record records a hearing and my presence.

I was then held at the North Mississippi State Hospital’s Tupelo Crisis Unit. In the Rule 60 motion I filed in June 2022 challenging the commitment, I stated that I remained there until December 23, 2021. I use that date here as the date reflected in my filed account of the confinement.

The sequence is therefore materially different from the version I once carried in my head:

I was not a man with no mental-health process in his recent history who asked one question about a judge and was suddenly declared insane the next day. I had a pre-existing outpatient commitment order from Calhoun County. Communicare says its teams had attempted to engage me. I had accumulated a record of increasingly confrontational public encounters. The drone incident had occurred. I was regularly recording public employees and arguing with officials. And on December 6, local law enforcement contacted Communicare about what Alcorn later called concerning behavior at the court.

All of that belongs in the book.

So does the other side of the record.

The commitment affidavit used broad, judgmental descriptions such as “paranoid and delusional” and “provoking people with his minor child.” The affidavit was filed on the same date I was on video questioning a judicial-assignment change and then arguing with the sheriff outside the courthouse. Alcorn later acknowledged that the information triggering her involvement came from local law enforcement and community members rather than from her own personal observation of the courthouse conduct. And when I supplied East’s name during the recorded call, she did not validate the specific accusation I was already making against him.

Those facts create a legitimate question about source, characterization, and timing. They do not answer the question of motive.

I believed the commitment was retaliatory. I said so immediately afterward. I later put that accusation in sworn filings and sued over it. That belief is part of the historical record because it drove what I did next. It is not a judicial finding, and I will not present it as one.

There is also an uncomfortable fact on the other side of my interpretation. A Lafayette County Sheriff’s lieutenant later spoke with me when I tried to report the commitment as a crime. His report records that he told me he believed I was misconstruing what had happened and that, if East genuinely believed I needed mental-health treatment, requesting help would not itself be criminal. He told me he did not believe there had been malicious intent and thought the sheriff was concerned about me. That was

the lieutenant's assessment, not an adjudication, but it belongs here because it shows that even inside the Sheriff's Department the event was being framed as concern rather than retaliation.

By the end of December, then, the documentary record did not give me the clean answer I wanted. It gave me a same-day sequence, a law-enforcement referral whose individual source remained unidentified on the recording, a pre-existing outpatient order I had to account for, an affidavit containing characterizations I disputed, a court file recording a hearing and commitment, and roughly two weeks of lost liberty.

I came out of that confinement convinced that the process had been abused. Instead of letting the issue die, I escalated my challenge. I filed an affidavit accusing East. I pressed Communicare for answers. I challenged the commitment legally. And in February 2022, after a formal grievance to Communicare, a second commitment proceeding began.

The second one is harder to write about because the record contains facts that cut sharply both ways — including my own conduct when deputies executed the writ. Those facts come next.

CHAPTER 17 — A SON BORN IN CONFINEMENT

On February 7, 2022, I sent a formal grievance to Communicare's executive director, Dr. Sandy Rogers, and copied the chancery court. I challenged the December commitment, accused Communicare and Lafayette County officials of violating my rights, demanded preservation of the records surrounding that proceeding, and made clear that I did not trust the treatment process that had produced it.

Two days later, Communicare counselor Susan Beard signed an **Affidavit of Non-Compliance with Outpatient Commitment for Mental Illness** in the same Lafayette County commitment case, Cause No. 2021-691(L). The document was electronically signed at 3:10 p.m. on February 9 and filed with the Lafayette County Chancery Clerk on February 10 at 2:32 p.m.

Unlike the first affidavit, this one is in the record clearly enough to read without reconstructing its basis from later allegations.

Beard wrote that I had been scheduled for an intake appointment on January 6; that I called the day before and asked to reschedule; that she left me a voicemail January 6; that I called January 7 and rescheduled for January 12; and that on January 11 I canceled again and requested a day on

which she was in all-day training. She wrote that she offered options for January 20 and 21, that I said I would talk with my wife and call back, and that I did not call back to reschedule. She further wrote that on January 31 I called asking for the executive director and declined, at that time, to reschedule the intake. On February 2 she left me a voicemail saying the request to the executive director needed to be specific and in writing. As of the affidavit, she wrote, I still had not contacted her to reschedule.

That account is important because it does not support the simplest version I once told: that Communicare invented a missed appointment I had never addressed. The document records a chain of calls and rescheduling attempts. My position was different. I later argued that I had not abandoned treatment casually; I was withholding further participation while waiting for a response to the formal grievance I had sent on February 7. That explanation appears in my later court filings. Beard's affidavit, however, records the conduct as noncompliance with an existing outpatient order.

The accompanying Uniform Commitment Affidavit marked the treatment-history ground for further commitment and stated: "See attached summary. No treatment due to Mr. Reardon's failure to schedule and attend follow up with Communicare." Beard recommended commitment to a Mississippi state hospital. The court then entered an order finding that I had failed to comply with outpatient treatment ordered December 9, 2021 and directed that I be committed to the Mississippi State Hospital or another Department of Mental Health program for observation, diagnosis, and treatment for no more than ninety days unless terminated earlier.

I believed the timing was retaliatory because the affidavit followed immediately after my grievance. I said so in later filings. The chronology is indisputable; the motive is not. Beard's affidavit gives a facially stated treatment-based reason for the action, supported by a dated sequence of missed or rescheduled intake appointments. My grievance gives the context for why I was refusing to proceed as Communicare wanted. Those two documents sit against each other and the reader should see both.

The Sheriff's Department executed the writ shortly after midnight on February 11.

The contemporaneous sheriff's report is specific. At 12:52 a.m., Deputy Dustin Black notified Sergeant Joe Quarles that my vehicle had returned to the residence. Quarles responded with the writ. According to his report, I was recording and arguing that the order was illegal. He told me it was a court order and that they had to take me in. The report says I told them I was not going, after which Black handcuffed me and allowed my wife to collect my phones and recording equipment. Black transported me to the Lafayette County Detention Center.

There is no reason to clean up what the officers say happened next.

A second sheriff's narrative says detention-center staff would not allow me to keep a fleece jacket. According to the report, I cursed at staff, said they would have to fight me for it, and threatened to "whoop y'all's ass" if they took it. The report says Sergeant Quarles, Deputy Kandi Beavers, correctional officer Jametric Judson, and Deputy Black eventually put me on the ground and removed the jacket after I pushed away, backed up, and tried to pull my arms free. It says I stopped resisting once I was on the floor. The report records no medical treatment.

That is law enforcement's account of the jail incident, not a judicial finding, but it is a contemporaneous primary record and it is adverse to me. It belongs in this book. Whatever I believed about the legality of the commitment, threatening staff and physically resisting the removal of a jacket, if the report is accurate, did nothing to make my position stronger. It gave the same institutions I was accusing of mischaracterizing me a fresh written account of confrontational behavior on the night they took me into custody.

The confinement did not end at the county jail. My later federal complaint states that I remained there for roughly six days and was transferred on February 16 to East Mississippi State Hospital in Meridian. The commitment file itself identifies East Mississippi State Hospital as the treating facility and contains later hospital paperwork, including a March 8 Notice of Need for Continuing Hospitalization that listed the anticipated discharge date as "undetermined" at that time.

I challenged the second commitment on due-process grounds. In a June 2022 motion to vacate, I alleged that I repeatedly requested a hearing after being taken into custody and was told I was not entitled to one, even though I maintained that paperwork later indicated an in-person hearing had occurred. That is my filed allegation. I have not located a transcript or independent record proving that an actual hearing took place or proving the repeated denials I described. I therefore cannot convert that dispute into a settled fact. What the record does show is that the second commitment proceeded under the December outpatient order, Beard's noncompliance affidavit, and the court's recommitment order.

While I was confined, my son was born on February 17, 2022.

I am deliberately keeping his medical details out of this account beyond what is necessary to explain the event. My later filings state that the birth was an emergency and that I was unable to be present because I was confined at the state hospital. That is the human fact that matters here: whatever the legal merits of the commitment, I was in state custody when my son entered the world, and I was not there with my family.

I later alleged that I tried to obtain permission to leave for the family emergency and was denied. I have not located a facility record documenting those requests or the response, so I preserve that point as my account rather than as an institutional record.

There is another theory I have often attached to this commitment that does not belong in the factual narrative unless I can prove it better. I have said that immediately before the February confinement I requested financial information concerning the Lafayette County Law Enforcement Officers Association and that the request explains the retaliation. Earlier drafts went further, reciting an EIN, IRS filing classifications, supposed founders, and theories about what the association's finances might conceal. The materials presently verified for this book do not justify turning that suspicion into a factual corruption narrative. An AI-generated research memorandum in the archive repeats those claims, but an AI memorandum is not a primary source. Unless the underlying incorporation papers, IRS filings, request itself, and responsive records are placed in the evidence file and verified, that theory stays out of the publication narrative.

What does survive source review is already consequential enough.

Within roughly two months, the same commitment cause produced a December inpatient commitment and a February recommitment for outpatient noncompliance. The first began after Communicare was engaged by local law enforcement and community reports; the second followed a documented series of postponed intake appointments and my written grievance attacking Communicare's earlier conduct. I believed both were retaliatory. Communicare's records present them as mental-health and treatment-compliance actions. The sheriff's report from the second arrest records conduct by me that, if accurately described, was hostile and resistant. None of those facts erases the others.

When I eventually came out of the second confinement, I did not abandon the fight. I put the dispute into federal court.

On April 6, 2022, I filed a civil-rights complaint in the United States District Court for the Northern District of Mississippi. The case would become the first full federal test of the theory I had been developing for years: that Lafayette County officials, court actors, and mental-health personnel had not merely made isolated bad decisions, but had violated federal law in the process.

The federal court did not accept that theory. The next chapter has to explain why.

CHAPTER 18 — THE FEDERAL LAWSUIT

On April 6, 2022, I filed a federal civil-rights action in the United States District Court for the Northern District of Mississippi: **Reardon v. Lafayette County, Mississippi, et al., No. 3:22-cv-00050-SA-JMV**. I filed it pro se.

The lawsuit was the first time I tried to place the December and February commitment proceedings, the courthouse dispute, the Sheriff's Department, Communicare, and the associated county officials into one federal case. It was also the first time a federal judge would have to decide not merely whether I believed the events were connected, but whether my pleading stated claims federal law would recognize against the people and entities I had sued.

On June 13, 2022, I filed a First Amended Complaint. It was seventy-four pages long.

The caption named the State of Mississippi; Lafayette County; the Lafayette County Chancery Court; Communicare; the Mississippi Department of Mental Health; the Lafayette County Sheriff's Department; Sheriff Joseph B. East; Dr. Sandy Rogers; Rachel Alcorn; Susan Beard;

Chancery Clerk Sherry Wall; Circuit Clerk Jeff Busby; and county attorney David O'Donnell. I invoked 42 U.S.C. §§ 1983, 1985, 1986 and 1988, along with state-law claims. I alleged violations of the First, Fourth, Fifth, and Fourteenth Amendments and argued that Mississippi's mental-health commitment framework had been exploited to deprive me of liberty and retaliate against protected speech and petitioning activity.

The amended complaint is useful evidence of what I believed and what I was alleging in June 2022. It is not evidence that a court had found those allegations true. That distinction became important when the court later summarized the case. Judge Sharion Aycock's memorandum opinion repeatedly framed the factual background as what was alleged **"according to his Amended Complaint."** The court was recounting my pleading, not certifying my narrative as judicial fact.

The complaint also shows a weakness that would become central to the outcome: I tried to litigate almost the entire institutional history at once.

I had years of events, different legal actors, multiple courts, two commitment proceedings, several constitutional theories, state-law tort claims, and an attack on the statutory commitment framework itself. Instead of separating those claims into the narrowest possible legal units, I put them together in a sprawling pro se pleading. The district court later described the seventy-four-page complaint as **"undeniably convoluted and difficult to follow."** That is the court's language, and there is no value in hiding it.

The court also noted that I repeated substantially the same constitutional counts against groups of defendants rather than tying every theory cleanly to the conduct and legal status of each person. What felt to me like documenting a pattern looked, in federal pleading terms, like an overbroad complaint that made it difficult to determine which claim belonged to which defendant and why.

The defendants then raised the defenses federal civil-rights plaintiffs routinely have to overcome, and the court ruled against me on them.

The State of Mississippi and the Mississippi Department of Mental Health obtained dismissal under the Eleventh Amendment. That meant the federal claims against those state defendants could not proceed in the form I had pleaded them.

The individual defendants asserted qualified immunity. Judge Aycock's opinion explained that once they did so, the burden shifted to me to identify clearly established law showing that the particular conduct I alleged violated a constitutional right under sufficiently established precedent. The court concluded I had not carried that burden.

That ruling matters because it is more precise than saying the court simply decided none of the underlying events happened. It did not. The qualified-immunity analysis asked whether my complaint and legal authorities were sufficient to overcome immunity as to the individual defendants. The court said they were not.

The opinion also addressed my theory that the commitment itself constituted an unconstitutional seizure. In analyzing that claim, the court pointed to something my own amended complaint acknowledged: I had been taken into custody pursuant to a writ signed through the chancery commitment process. The existence of that judicial process mattered to the Fourth Amendment analysis. The court did not accept my position that the surrounding allegations were enough to turn the resulting custody into a cognizable federal false-arrest claim against the individual defendants I had named.

The court was equally direct about the larger theory behind the case. Near the end of the opinion, Judge Aycock wrote that my grievance appeared to rest, in significant part, on my belief that Mississippi's statutory involuntary-commitment scheme was unconstitutional. I had indeed made that argument. The First Amended Complaint expressly asked the federal court to treat the state's mental-health laws as constitutionally defective and to overhaul or invalidate them. The district court did not accept that theory as I presented it.

My state-law claims failed for a separate procedural reason. The opinion held that I had not satisfied the Mississippi Tort Claims Act's pre-suit notice requirement. Whatever factual merit I believed those tort theories had, the federal court concluded I had not completed a statutory prerequisite to bringing them against the governmental defendants.

The result was a decisive loss. On June 28, 2023, Judge Aycock entered the memorandum opinion and order disposing of the case against me. The federal action ended without a trial on the factual theory I had wanted a jury to hear.

That outcome has to be stated without qualification before I say what I think it means.

I lost the case.

I did not lose because a jury heard testimony from Alcorn, Beard, East, Busby, the deputies, and me and decided whose account was true. I lost at the legal stage where the court evaluated immunity, pleading sufficiency, the existence of the chancery writ, sovereign immunity, the structure of the constitutional claims, and state-law notice requirements. That distinction does not make the judgment less real. It defines what the judgment actually decided.

The opinion also forces an admission about my own lawyering. The complaint was too broad. It mixed allegations with legal conclusions. It treated repeated events as though identifying a pattern automatically solved defendant-specific pleading problems. It assumed that if I could show enough troubling facts, a federal court would necessarily let me conduct discovery into all of them. Federal civil-rights litigation does not work that way, and Judge Aycock's description of the complaint as convoluted was not invented by an adversary; it was the assessment of the judge deciding the case.

None of that means the source documents underlying the lawsuit cease to exist. Alcorn's recorded statement that local law enforcement engaged Communicare still exists. Beard's February noncompliance affidavit still exists. The December commitment file still exists. The recorded December 6 encounter with East still exists. But the federal judgment means I cannot

responsibly describe the 2022 lawsuit as a judicial vindication of my interpretation of those documents. It was the opposite: an adverse judgment rejecting the federal case I built from them.

The timing of the lawsuit also matters to the chronology that follows. The federal case was still new when another Mississippi criminal investigation began.

On **June 20, 2022**, I went into Oxford City Hall with a camera. The video later relied upon by investigators showed me entering the building, going upstairs, approaching the mayor's office, and attempting the office doorknob.

On **June 23**, Oxford Police referred the matter to the Mississippi Bureau of Investigation.

On **June 27**, MBI Lieutenant Joey Mauney prepared an aggravated-stalking warrant, swore to it by FaceTime, and Circuit Judge Kent Smith signed it.

On **June 28**, deputies served that already-existing MBI warrant when I arrived at Lafayette County Chancery Court for a family-court matter.

That is the order. The Chancery Court visit was where I was arrested. It was not the conduct that generated the warrant.

The federal lawsuit and the new criminal case were now moving at the same time. The next chapter turns to the second aggravated-stalking prosecution and the evidence MBI actually used to obtain the warrant.

CHAPTER 19 — THE JUNE 2022 ARREST: CASE B

On the morning of June 28, 2022, I went to the Lafayette County Chancery Court because I had a scheduled family-court matter. I did not walk into that building and commit a new felony. By the time I arrived, the felony arrest warrant already existed.

That is the first correction this chapter requires.

The Lafayette County Sheriff's Office report written by Deputy Hoby James records the sequence from the officers' side. At approximately 8:00 that morning, James received a call advising him that the Mississippi Bureau of Investigation had issued a warrant for me. He was told to meet officers at Chancery Court at 9:00 "because Matt had court today." James wrote that he served the MBI arrest warrant at approximately 9:32 a.m., that I was arrested without incident, and that I was transported to the Lafayette County Detention Center.

The warrant had been built the day before.

MBI case M22-00000897 records that Oxford Police Chief Jeff McCutchen contacted MBI on June 23, 2022 and asked for assistance with an aggravated-stalking investigation involving Oxford's mayor. On June

27, MBI Lieutenant Joey Mauney met with Oxford Police investigator Shane Fortner, reviewed the material Oxford had gathered, and assisted in preparing an arrest warrant. Mauney's supplement states that the warrant was emailed to Circuit Judge Kent E. Smith. At approximately 3:00 p.m., Smith contacted Mauney by FaceTime, placed him under oath regarding the information in the warrant, and signed it.

The conduct the MBI file describes did not occur at Chancery Court on June 28. It centered on my June 20, 2022 visit to Oxford City Hall and on earlier social-media posts.

The MBI affidavit describes a publicly posted video of my City Hall visit. Mauney wrote that he watched me enter the building, look at the directory, walk through the first floor, go upstairs toward the mayor's office, stand outside the office doors, leave, and return. The affidavit says that at approximately 7:49 in the video I attempted to use the doorknob but was unsuccessful. I dispute the characterization that I attempted to enter the office, and my own video is the obvious evidence by which that assertion should be judged. What matters for this chronology is that this was the conduct MBI was evaluating when it sought the warrant.

The affidavit also cites the standing Chancery Court protection order and earlier posts on Twitter and YouTube. In other words, the State's theory was not that my June 28 arrival for court somehow activated three independent legal "gears" and automatically became aggravated stalking. That was an explanation used in an earlier draft of this book, and it was wrong.

The State's theory, as reflected in the MBI paperwork, was that the City Hall visit and earlier online activity formed a prohibited course of conduct directed toward the mayor while the protection order remained in effect, and that the circumstances supported a charge under Mississippi's stalking statute. Whether that theory properly criminalized protected political speech or ordinary access to a public building is a different question from what the theory actually was. This chapter has to get the latter right before arguing about the former.

The corrected chronology is therefore straightforward:

June 20: I went to Oxford City Hall with a camera and recorded inside the building.

June 23: Chief Jeff McCutchen contacted MBI and requested assistance with the investigation.

June 27: Mauney and Oxford Police reviewed the case material; Mauney prepared the arrest-warrant affidavit; Judge Kent Smith swore Mauney by video and issued the warrant.

June 28: Lafayette County deputies knew I had a Chancery Court proceeding, waited there, and served the already-issued warrant when I arrived.

That distinction matters to me for more than narrative accuracy. In the earlier version, I made the arrest sound as though officers were treating my mere appearance at the courthouse as the new felony. The sheriff's report shows something both more ordinary and, in another sense, more troubling: they used a place they knew I was required to be in order to execute a warrant arising from conduct that had already occurred elsewhere.

This was the second aggravated-stalking prosecution in my Mississippi history, separate from the 2017 Lynch case. The 2017 case involved Todd and Ashley Lynch and the later Criminal Information alleging an AR-15 threat on or before May 8, 2017. The 2022 case involved Mayor Robyn Tannehill, the standing 2017 Chancery Court order, the June 20 City Hall visit, and older online activity identified in the MBI file. The cases cannot be merged simply because the statute and county were the same.

The 2017 Chancery order nevertheless mattered. It was part of the factual and legal foundation cited by the 2022 investigators. I had signed that order five years earlier while jailed on the Lynch case, on the advice of attorney Brennan Horan. I have consistently described that signature as coerced by the circumstances of my detention and by my overriding desire to get out of jail. Chapter 5 sets out what the record can and cannot prove about that episode. What I should not do here is turn my view of the 2017 order into a false description of the 2022 statute.

A prior version of this chapter said that a prior stalking conviction, a standing protective order, and physical presence automatically locked together to create aggravated stalking without the State having to prove new stalking conduct. I am removing that explanation. The charging affidavit itself alleges a course of conduct and identifies the June 20 City Hall video and prior social-media activity. The record does not support describing the June 28 courthouse arrival as the third element that mechanically completed the felony.

The constitutional argument is narrower and stronger when stated accurately. City Hall was a public government building. I went there with a camera. Much of the older material cited in the investigative file was political commentary about an elected mayor. Speech criticizing public officials occupies protected constitutional territory, while stalking statutes may lawfully reach conduct that satisfies their elements even when some communication is involved. The dispute in my case is therefore not solved by labeling every tweet protected or every contact stalking. The question is whether the actual conduct the State assembled satisfied the statute without punishing constitutionally protected activity. That question should be answered from the video, the posts, the protection order, and the charging documents — not from a metaphor about automatic gears.

The arrest itself, according to James's report, was without incident. That detail also belongs here. There was no tactical struggle at Chancery Court and no new confrontation that morning supplying the basis for the charge. I arrived for court. Officers who had been told I would be there served the MBI warrant. I was taken to jail.

What followed was far more consequential than the mechanics of the arrest. The case proceeded to a lengthy preliminary hearing. I remained in custody. Mitchell Driskell was appointed to represent me and was later replaced by Mark McClinton. On September 30, 2022, I entered a guilty plea that produced a five-year suspended sentence, unsupervised probation, a banishment condition, and an order requiring me to leave Lafayette County.

Those later events belong to the chapters that follow. The point here is to fix the foundation before building on it.

Case B began with the June 20 City Hall encounter and the investigative file Oxford Police sent into MBI. MBI entered the matter on June 23. The warrant was sworn and signed June 27. It was served June 28 at Chancery Court because law enforcement knew I would be there for court.

That is what the records say. The legal and constitutional fight over what those records mean comes next.

CHAPTER 20 — THE GUILTY PLEA AND BANISHMENT

On September 30, 2022, I pled guilty in Lafayette County Circuit Court to aggravated stalking under Mississippi Code § 97-3-107(2), Cause No. LK22-358.

The sentencing order is direct. Judge Kent E. Smith imposed five years, suspended all five, ordered zero years to serve, and placed me on five years of unsupervised probation. The order also banished me from Lafayette County for five years, allowed me forty-five days to relocate from the Lafayette County address where I was then staying, prohibited contact with the victims, and retained a 365-day right of review. The later revocation transcript states the original court costs were \$842.50.

The word “banish” is not my characterization. It is written into the sentencing documents.

But an earlier version of this chapter described the forty-five-day period too broadly. I wrote as though the court had given me forty-five days of unrestricted movement throughout Lafayette County while I wound down my affairs. The later State revocation petition describes the terms more narrowly. According to the State’s own filing, the banishment had two

exceptions: I could enter and exit Lafayette County and go directly to the residence where I was then lodged until November 15, 2022; and I could attend court proceedings or scheduled court business, with one day's notice to the Lafayette County Sheriff's Department.

That distinction matters enormously to what happened a month later. The forty-five days were not, on the State's description of the sentence, a general license to move freely around Oxford. They were permission to remain at and travel directly to the residence while relocating, plus a separate exception for court proceedings or scheduled court business after notice.

The plea itself is also part of the record in a way I cannot write around. The sentencing order states that the court found me competent and found the plea voluntary, knowing, deliberate, and intelligent. When I later tried to withdraw the plea, Judge Smith's November 14 order went further. He wrote that during the plea colloquy I told the court I had discussed the petition with counsel, understood it, had discussed the circumstances and possible defenses, was not forced or coerced, was satisfied with counsel, and was in fact guilty of aggravated stalking. The court also noted a mental evaluation in the case and said the competency findings had been stipulated to by my counsel.

I later disputed all of that.

On October 31, 2022, I filed a pro se Motion to Withdraw Guilty Plea. I alleged that both appointed lawyers had been ineffective and asserted that I was not guilty. At the November 3 revocation hearing, I repeatedly tried to bring that motion to the court's attention. Judge Gray Tollison told me it was not the matter being heard that day and would be processed separately.

Judge Smith denied the motion on November 14. Applying the ineffective-assistance standard from *Strickland v. Washington*, he found I had not shown deficient performance or prejudice. He also held that my later assertions of innocence were contradicted by what I had said under oath during the plea colloquy. The order concluded that I had not shown good cause to withdraw the plea.

That creates a documentary conflict I have to state instead of smoothing over. My later position was that the plea resulted from inadequate representation and pressure created by months in jail and my family's circumstances. The plea record says I told the court, at the time, that I was not coerced, was satisfied with counsel, and was guilty. Judge Smith relied on those sworn answers when he refused to let me withdraw the plea. A reader evaluating my later account is entitled to know both things.

There is no need to dilute what happened next with a broad constitutional essay about banishment. The actual terms are unusual enough on their face. I had a five-year suspended felony sentence hanging over me. I was prohibited from living in Lafayette County after the relocation period. I was prohibited from contacting the Tannehill family. My authorized reasons for being elsewhere in the county were limited by the terms the State later put before the revocation court.

On October 28, before the relocation period expired, I went to the FBI office in Oxford.

I did call the Lafayette County Sheriff's Department before going. Deputy Kandi Beavers later confirmed that under oath. She testified that I called and advised that I needed to come into Oxford to meet with an FBI agent before lunch. I have also recovered the separate call I made to the FBI that morning. On that recording, I explicitly explained that I was banished from Oxford, said I needed permission to come into the city, and asked the FBI to set a time so I could notify local authorities. The FBI staffer told me the office handled walk-ins rather than appointments and said coming before noon would be preferable.

Those facts are important. They establish that I was not concealing the trip and that, before going, I was actively trying to arrange it around the restrictions imposed on me.

They do not, by themselves, establish that the FBI visit fit one of the sentencing order's exceptions.

That is another correction from the earlier manuscript. I repeatedly described the advance call to the Sheriff's Department as though notice alone made the FBI visit authorized. The State's later recitation of the sentence says the notice exception applied to **court proceedings or**

scheduled court business. An FBI walk-in was neither on the face of that wording. The other exception allowed me to travel to and from the residence where I was still permitted to stay, not to move freely through Oxford for unrelated purposes.

So the legal dispute on October 28 is narrower than I once made it. I had notified the Sheriff's Department. The FBI recording shows why there was no formal appointment. I believed reporting alleged law-enforcement misconduct to a federal agency was a legitimate reason to enter Oxford, and I acted openly rather than secretly. But the sentencing terms, as later quoted by the State, did not expressly create an exception for a visit to the FBI.

On October 31, the State alleged a second violation. Its November 1 revocation motion said I had been seen in a residential neighborhood identified as Shelbi's Place. At the hearing I denied that allegation outright and said I had no idea what the witness was talking about. I pointed out that there was no photograph or license-plate record before the court establishing that the vehicle was mine. The court later credited the State's evidence under the preponderance standard.

The State's motion also referred to alleged unauthorized movement on September 30 and October 3, but expressly stated that no revocation proceedings had been initiated over those earlier incidents.

The November 1 motion changed the stakes immediately. One month after the guilty plea, with the entire five-year sentence suspended, the State was asking the court to revoke probation based on the banishment condition.

The next hearing is one I have often described too broadly. For years I said Deputy Beavers lied under oath and that her lie sent me to prison. The certified transcript does show a prosecutor asking her, "Okay, so he lied?" and Beavers answering, "Yes." But the transcript also shows that the court's actual revocation ruling did not depend on that answer. Judge Tollison found that I had violated the banishment condition by being physically present in Lafayette County for unauthorized purposes.

The next chapter is about that distinction — what Beavers actually said, what the recovered FBI recording proves, what remains unresolved because the Sheriff's Department call itself has not yet been located in the evidence archive, and what Judge Tollison actually relied on when he imposed one year of the suspended sentence.

CHAPTER 21 — REVOCATION: WHAT BEAVERS ACTUALLY SAID

On November 3, 2022, I appeared before Circuit Judge Gray Tollison on the State's motion to revoke my suspended sentence in Cause No. LK22-358.

The court initially wanted to appoint counsel and continue the hearing. I waived counsel and asked to proceed that day. Judge Tollison warned me that I would have a better chance of succeeding with a lawyer and asked again whether I still wanted to proceed without one. I said yes.

I also told the court that I had filed a motion to withdraw my guilty plea on October 31 and that the State had filed the revocation motion the next day. Judge Tollison said the plea-withdrawal motion would be processed separately and was not the matter before him.

The State alleged that I had violated the five-year banishment condition by being in Oxford for unauthorized purposes on October 28 and October 31. The October 28 incident was my visit to the FBI office. The October 31 allegation came from a witness who said she saw me driving through a residential neighborhood called Shelby's Place.

I denied both violations. As to the FBI visit, I told the court I had contacted Deputy Kandace Beavers beforehand and had done what I believed the court required. As to Shelby's Place, I denied being there.

Beavers was the State's first witness.

She testified that I called the Sheriff's Department on October 28 and told her I needed to come into Oxford to meet with an FBI agent. In her words, I was "reporting that he was coming into the city." She said I told her the visit needed to occur before lunch. She then reported the call to Sheriff Joey East, and somebody contacted the FBI office.

According to Beavers, the FBI said I did not have an appointment.

Assistant District Attorney Tiffany Kilpatrick then asked:

| "Okay, so he lied?"

Beavers answered:

| "Yes."

I objected. Judge Tollison responded that the rules of evidence do not apply to a revocation proceeding.

For years I described that exchange from memory and from the certified transcript alone. The archive now contains something better: the recordings of the calls themselves, preserved in later video material and transcribed in the project files.

The first call was to the FBI.

I told the Oxford FBI office that I wanted to provide evidence concerning the Holly Springs Police Department. I explained that I was banished from Oxford and needed permission to enter the city, then asked whether somebody could set a time so I could notify Oxford or the Lafayette County Sheriff's Department.

The recording transcript renders the FBI staffer saying:

| "Well we do walk-ins as opposed to phone calls."

I asked about office hours and whether lunch would create a problem. The staffer said the schedule varied and added:

“I would say if you could come before 12 would be perfect.”

I said I would put the evidence on a jump drive and come to the office.

Then I called the Lafayette County Sheriff’s Department.

The recovered conversation materially changes how the revocation testimony has to be evaluated. I told Beavers that I had just spoken with the FBI, that I needed to go there within roughly the next hour, and that I was calling to notify the Sheriff’s Department. She asked when I expected to come through and took down the information.

More importantly, Beavers later called back and asked what time my “appointment” was.

My answer on the recording was explicit: the FBI **did not really do appointments**. I told her I had tried to set one, but the FBI staffer had instead told me to come before lunch. Beavers acknowledged that answer and continued documenting where I expected to go.

That recording eliminates an evidentiary gap that existed in an earlier draft of this chapter. I no longer have to rely on my later description of what I told Beavers. The conversation itself survives in the project archive.

And on the narrow question Kilpatrick put to her in court, it matters a great deal.

When the prosecutor asked, “Okay, so he lied?” the premise was that the FBI said I had no appointment. But Beavers had already been told by me, on the recorded call before the trip, that there was no formal appointment because the FBI handled walk-ins. I had not represented to her that I possessed a scheduled appointment. I told her the opposite.

The FBI call independently matches that account. I asked for an appointment; the FBI told me it handled walk-ins; the staffer gave me a before-noon window; and I then relayed that situation to Beavers.

So the record supports a narrower and stronger conclusion than some of my later public accusations. Beavers did not falsely testify that I had given no notice. She admitted I called ahead. But her answer “Yes” to the prosecutor’s conclusion that I had lied about an appointment is directly undercut by the recorded conversation she herself had with me before the visit. The recording shows that she had been told there was no formal appointment.

I am deliberately not upgrading that contradiction into a criminal conclusion about perjury. The transcript and recording establish what was said. Questions of criminal intent belong to a tribunal with jurisdiction to decide them. What I can say from the source record is that the recorded call materially contradicts the factual premise of the “so he lied?” exchange.

There is still a separate legal problem for me, and it cannot be edited away.

The State’s later written description of my sentence says that advance notice to the Sheriff’s Department applied to **court proceedings or scheduled court business**. An FBI walk-in was not expressly listed as an exception. The other temporary exception allowed me to remain at and travel directly to the residence where I was staying while I relocated.

So proving that I told Beavers the truth about the FBI visit does not automatically prove that the visit was authorized under the banishment order.

That is the central distinction this chapter must preserve: the appointment accusation and the probation violation are not the same question.

The second State witness was Emily Frye.

Frye testified that she was at her father’s home in Shelby’s Place on Halloween night, October 31, around 7:40 p.m. She said she saw a black Chevrolet Equinox moving slowly through the neighborhood and identified me as the driver because the interior lights were on. On cross-examination, she acknowledged that she had no photograph and no recorded license-plate number. She said her stepmother tried to obtain the plate but could not because something covered part of it.

I denied being there.

After hearing Beavers and Frye, Judge Tollison took a short recess and then ruled. His reasoning is the most important limit on the Beavers issue.

The judge did not say the “he lied” answer was the basis for revocation. He found, under the preponderance-of-the-evidence standard, that it was more probable than not that the two incidents described by Beavers and Frye occurred and that I had violated the banishment condition. His ruling rested on the State’s proof of unauthorized presence in Lafayette County on October 28 and October 31.

That means a line I repeated for years — that Beavers’s perjury sent me to prison — is too broad and should not survive in this book.

The appointment testimony was part of the State’s presentation, and the recovered calls materially contradict its implication that I had falsely claimed a formal FBI appointment. But Judge Tollison’s stated ruling was broader: he found that I had been present in Lafayette County for purposes outside the exceptions in the sentence.

The October 28 recording helps me on credibility. It shows that I was trying to navigate the restriction openly, that I asked the FBI for a set time because I needed to notify local authorities, and that I told Beavers there was no formal appointment. It does not rewrite the wording of the banishment exceptions.

The same distinction applies to October 31. I denied Frye’s identification and pointed out the absence of a photograph or plate number. Judge Tollison nevertheless credited the State’s proof under a preponderance standard, which is lower than the beyond-a-reasonable-doubt standard used at a criminal trial.

After finding the violation, Judge Tollison asked the State for a recommendation. Kilpatrick recommended one year of the five-year suspended sentence, with the other four years resuspended and the banishment condition kept in place. The court adopted that recommendation: five years in MDOC custody, four suspended, leaving one year to serve, followed by four years of unsupervised probation with the remaining conditions continuing. The transcript records costs of \$592.50 in connection with the revocation.

At the end I again raised my pending motion to withdraw the guilty plea. Judge Tollison told me the court had made its decision. I asked whether my motion “doesn’t mean squat in this court.” He told me he had addressed it earlier and that I could file an appropriate motion.

Then I said:

 | “You are a corrupt judge.”

That is in the certified transcript too. It was not careful advocacy. It was what I said after hearing the court impose a year of the suspended sentence.

Eleven days later, on November 14, Judge Kent Smith entered the separate order denying my motion to withdraw the guilty plea.

The record therefore has two distinct adverse rulings from this period. Judge Tollison found that I violated the banishment condition and imposed one year to serve. Judge Smith separately rejected my attempt to undo the underlying guilty plea.

Those are the legal facts I carried into custody.

The strongest correction in this chapter is not that the State’s entire revocation case disappears. It does not. It is that the actual phone calls now let the reader separate two questions that earlier accounts blurred together. The recording supports my claim that I told Beavers the truth about the FBI’s walk-in procedure. The court nevertheless revoked me because it found my physical presence in Lafayette County unauthorized under the terms of the sentence.

Both facts have to remain standing.

CHAPTER 22 — THE ONE-YEAR SENTENCE

Judge Gray Tollison sentenced me on November 3, 2022 to serve one year of the five-year sentence that had originally been suspended.

I did not spend a full calendar year in custody.

The State filed its revocation motion on November 1 and expressly asked that I be held in the Lafayette County Detention Center until the earliest available hearing, which the motion identified as November 3 at 2:00 p.m. I was taken into custody November 1. I was released from Mississippi Department of Corrections custody on August 1, 2023. That is roughly nine months of actual confinement on a sentence denominated as one year. I do not have a sufficiently clear MDOC record in the source set before me showing exactly which jail credit, earned-time calculation, or release mechanism accounts for the difference, so I am not going to invent one.

The arrest itself was recorded.

I was returning from Holly Springs when a Lafayette County deputy stopped me and explained that paperwork had been issued directing that I be held for the revocation hearing. The recording matters because the officer did not behave like an antagonist. He showed me the paperwork,

offered to let me look at it, explained that once officers had made contact he could not let me drive away, and tried to help work out what would happen to my vehicle. When I told him my wife was in Hernando and my children were at home, he let me call her.

I told him, “I’ve done nothing wrong. I just came from Holly Springs.”

He did not argue with me. He carried out the order.

That distinction belongs in this book. A government process can be wrong without every person who touches it behaving wrongly. The deputy serving the order treated me decently on the recording.

There is a more important correction to my own account of the hearing.

For years I explained my failure to play the October 28 phone recordings by saying I was arrested on short notice, separated from the recordings, asked the court for more time, and was refused a continuance. The certified transcript does not support that version.

At the opening of the November 3 hearing, Judge Tollison proposed doing the opposite. He told me he wanted to appoint an attorney and put the proceeding off until the following week. I repeatedly waived counsel and asked to proceed that day. He warned me that I would have a better likelihood of success with an attorney. I said I understood and still wanted to continue without one.

That was my choice.

I had been in custody since November 1. I was angry, convinced the revocation was retaliatory, and wanted the matter heard immediately. But those circumstances do not change the transcript. The court offered counsel and delay. I waived both.

The transcript also shows that I told Judge Tollison during the hearing that I had the FBI interaction documented in audio and other evidence. After the court announced its finding, Tollison told me I could submit evidence and said the record would remain open for YouTube videos and similar material. When I asked how, he suggested putting it on a zip or flash drive and said I would be permitted to do that from the jail.

That does not mean the recordings were considered before he revoked me; they were not introduced before the ruling reflected in the transcript. It does mean I cannot accurately write that the court refused to let me submit them or refused every opportunity for additional time. The record is more complicated: the judge initially offered a continuance so I could have counsel, I declined it, the hearing proceeded, the court ruled on the evidence then in the room, and afterward the judge said I could supplement the record. I have not located a docket entry proving that the October 28 recordings were subsequently submitted and considered.

The distinction matters because those recordings now exist in the archive and, as Chapter 21 shows, they materially undercut the prosecutor’s “so he lied?” premise. The FBI told me it handled walk-ins. I told Beavers there was no formal appointment. Beavers knew that before I entered Oxford. But the revocation ruling itself rested on Judge Tollison’s broader finding that my presence in Lafayette County on October 28 and October 31 violated the banishment condition.

Then came the custody.

The documentary record available for this book does not contain a reliable day-by-day account of the months I spent in MDOC custody between November 2022 and August 2023. I am not going to fill that gap with generic prison scenes, reconstructed conversations, or invented texture. The dates and legal consequences are enough.

There is, however, one legal fact about the one-year sentence that did not become clear to me until much later.

In November 2024, attorney Jacob Howard of the MacArthur Justice Center filed a post-conviction relief petition challenging a second revocation sentence imposed in July 2024. In a footnote, that petition addressed the November 3, 2022 sentence too. Howard argued that the banishment violation was a **technical violation** under Mississippi law and that, because the November 2022 proceeding was the first revocation for technical violations, Mississippi Code § 47-7-37(5)(a) authorized a maximum incarceration period of **ninety days**, not one year.

That is a lawyer's argument in a filed post-conviction petition, not a separate judicial ruling vacating the first revocation. The distinction is essential.

Howard's petition expressly said that I had already served the November 2022 sentence and therefore did **not** ask the court to grant relief from it. The petition challenged only the later July 18, 2024 revocation sentence.

That means another claim from earlier drafts has to be removed: the one-year sentence imposed in November 2022 was not later "fully vacated" by the January 21, 2025 order. It was not.

The January 2025 order dealt with the **second** revocation. It vacated the excessive July 2024 sentence, resentenced me to 120 days, ordered my immediate release because I had already served more than that, and reinstated me to the underlying five-year term of unsupervised probation. The order expressly kept the original conditions in force, including banishment from Lafayette County. It did not erase the September 2022 guilty plea, the underlying aggravated-stalking conviction, or the first November 2022 revocation.

So the legally accurate account of this chapter is less dramatic than the version I once told, but in one respect more troubling.

I served roughly nine months of actual custody under a one-year revocation sentence. Years later, counsel for the MacArthur Justice Center stated in a filed PCR petition that the statutory maximum for that first technical revocation was ninety days. Because I had already served the sentence, that petition did not ask the court to correct it, and no later order in the evidence before me vacated that first revocation.

The time was simply already gone.

On August 1, 2023, I walked out of MDOC custody.

The record immediately becomes dense again after that point. Within days I began publicly attacking the testimony from the November hearing and trying to get law enforcement to take a complaint about it. Then I traveled to Galveston, Texas.

On August 11, ten days after my release, I was arrested there for driving while intoxicated. Within hours, officers from Lafayette County were communicating with Galveston law enforcement about me.

That is where Part IV begins.

CHAPTER 23 — RELEASE, AND GALVESTON

I walked out of Mississippi custody on August 1, 2023. I had been jailed since November 1, 2022 — roughly nine months — after the first revocation of my 2022 suspended sentence. The written revocation sentence was one year, but I did not serve a full calendar year before release. That distinction matters because this book cannot turn a sentence into time actually served when the dates say otherwise.

Three days after my release, on August 4, I called the Lafayette County Sheriff's Department. I asked to make a complaint about Deputy Kandi Beavers's testimony at the November 2022 revocation hearing. I had the October 28 recording by then, and I believed it showed that the Sheriff's Department had been told in advance that I intended to go to the FBI office — contrary to the characterization later placed before Judge Tollison that I had lied about having an appointment.

The call with Chief Deputy Scott Mills is recorded. Four sentences into my explanation he interrupted me: "*Hold up, hold up, hold up.*" He then said, "*I'm not sitting here listening to you,*" and told me that if I wanted to make a complaint I could come to the Sheriff's Department and file it in person.

I refused. By that point my dealings with the department had included arrests, prosecution, civil-commitment involvement, and the revocation that had just kept me incarcerated for months. I was not willing to walk back into the building simply to hand over evidence concerning one of its own deputies. That was my decision and my assessment of the risk. I do not need to convert that judgment into a claim about what the department intended.

I also published the recording. I put the October 28 call beside the revocation testimony so that viewers could hear what had actually been said and compare it with the later sworn record. I have described the audience at different times as roughly forty to fifty thousand views within about a week. I do not presently have the platform analytics in the evidentiary record, so I am not fixing an exact number here. What I can establish is the sequence: release on August 1; complaint call on August 4; publication of the recording; then Texas.

Seven days after the call with Mills, I drove to Galveston. My purpose, as I have consistently described it, was journalistic. I had received information concerning allegations of racial profiling there and was going to meet other journalists and look into it. I had been on the road most of August 10 and reached Galveston in the early morning hours of August 11.

The first correction is basic but important: **Officer William Osteen did not initiate the traffic stop. Officer Larry Murph did.** The Galveston records place the stop at approximately 1:52 a.m. Osteen arrived afterward to assist.

That matters because Osteen later wrote the affidavit used to obtain the warrant for my blood even though Murph was the officer who had observed the driving that preceded the stop.

The second correction is about the interstate calls.

At approximately **2:41 a.m.**, a caller identified himself to Galveston as Hoby James of the Lafayette County Sheriff's Office in Mississippi. He said he had watched my arrest unfold on a livestream. A few minutes later he called again and identified himself as Sergeant James.

At approximately **3:44 a.m.**, Galveston personnel were recorded discussing the prior convictions that would determine whether the new DWI allegation could be charged as a felony. One officer said that if there was a qualifying prior conviction and Lafayette County could provide the conviction date, cause number, and court information, *“this will be a felony.”* The same recording reflects difficulty locating the Mississippi conviction in the information they were reviewing.

At approximately **3:46 a.m.**, Galveston called Lafayette County seeking that information. James said he did not have access to it on his shift and could leave a note for someone to respond later that morning. The Galveston dispatcher stated that the information was being sought so they could *“call the DA.”*

At approximately **4:04 a.m.**, another caller identified herself as Deputy Beavers of the Lafayette County Sheriff’s Department and asked to be connected with the Galveston officer who had been dealing with me. The dispatcher asked whether she meant Officer Osteen. Beavers said yes. When the dispatcher reached Osteen and asked whether he had just been speaking with a woman from Mississippi, Osteen answered, *“Yes, I was.”*

Those recordings establish communication. They do not establish what Beavers said to Osteen during the conversation that followed, and I do not know what she told him. I am not going to write content into a call I do not possess.

What the recordings do establish is narrower and still important: within hours of my arrival in Galveston, Lafayette County personnel were communicating with Galveston Police while Galveston personnel were working to identify the prior convictions necessary to determine the level of the DWI charge.

The traffic-stop and warrant records then create a separate evidentiary problem.

Osteen’s search-warrant affidavit described signs he associated with intoxication. Among them, he marked a **moderate odor of an alcoholic beverage on my breath**, described my speech as **slurred and thick-**

tongued, and described my eyes as **watery and dilated**. He also treated my refusal of the requested blood specimen as evidence supporting the warrant.

I had repeatedly asked for a breath test. The recordings and later defense filings became important precisely because my willingness to take a breath test does not fit neatly with an affidavit framed around refusal evidence.

A magistrate signed the blood warrant at approximately **2:49 a.m.** I was then taken to UTMB, where officers restrained me while medical personnel drew my blood. I have consistently described the blood draw as forced. The records identify UTMB personnel involved in the procedure, and later litigation named a medical technician identified as McDougle.

The toxicology results require precision because earlier drafts of this book overstated what they proved.

The Texas laboratory report states **“No alcohol detected.”** That is directly relevant to Osteen’s sworn assertion that he detected a moderate odor of an alcoholic beverage on my breath. It does not, however, end the entire toxicology inquiry.

A separate confirmation analysis reported **methamphetamine at 0.13 milligrams per liter**. The report did not separately state an amphetamine concentration. The broader amphetamines screen had been referred for further analysis, and the confirmation result identified methamphetamine at 0.13 mg/L.

Campagna and I disputed that isolated result. From the beginning, our position was that the trace result was consistent with a false positive rather than proof that I was impaired. I continue to maintain that position. But I am labeling it correctly here: it is our asserted interpretation of the laboratory evidence, not a scientific finding made by the laboratory or a court.

There is a second, independently documented limitation that does not depend on accepting my interpretation. When Mississippi later used the 0.13 mg/L result at my July 2024 revocation hearing, the State presented **no expert testimony or other evidence establishing that 0.13 mg/L**

would impair my ability to operate a motor vehicle. That point appears expressly in the later post-conviction filing prepared by the MacArthur Justice Center.

So the toxicology record says three things that must be kept separate.

First, **no alcohol was detected.**

Second, **0.13 mg/L of methamphetamine was reported** in the confirmation analysis.

Third, **the revocation record contained no evidence establishing that this concentration caused impairment.**

The manuscript previously collapsed those three propositions into a much simpler claim: that the laboratory proved I was completely sober. The record does not support that wording. The laboratory conclusively undercuts an alcohol-based theory, but the methamphetamine result existed and must be confronted rather than omitted.

The contradictions in Osteen's descriptions became more pronounced later. In the warrant affidavit he described my pupils as dilated and my speech as slurred and thick-tongued. At the July 2024 Mississippi revocation hearing he described my pupils as very small or pinpoint and described me as talking extremely fast. He also testified that once I was outside the vehicle he could not detect an alcoholic odor coming from me.

Those are not my paraphrases of what I think he meant. They are materially different descriptions in records created at different points in the case.

The criminal case did not end when the laboratory report returned. The felony DWI prosecution remained pending until **May 24, 2024**, when the felony charge was dismissed. The later Mississippi record reflects that Osteen understood a misdemeanor matter to remain pending, but the precise Texas procedural path after the felony dismissal belongs in the next chapter and must be described from the actual Texas docket rather than inferred from shorthand testimony.

The bond history also requires care. Osteen's report reflects a recommended bond of **\$10,000** on the August 11 arrest. I bonded out several days later. I was then rearrested on August 17 after Lafayette County moved on the probation-revocation matter. The Texas bond was later set at **\$100,000**, while the Mississippi hold operated independently and prevented release regardless of the Texas amount.

That means the approximately eleven months I ultimately spent confined after the Galveston arrest cannot truthfully be attributed to one affidavit, one bond, or one jurisdiction. The Texas prosecution, the Mississippi revocation warrant, interstate rendition, and the later Mississippi proceedings overlapped. The chronology is damaging enough without pretending all of that custody had a single legal cause.

What I can say about August 11 without qualification is this: I arrived in Galveston in the early morning; Murph stopped me; Osteen took over the DWI investigation; Lafayette County officers communicated with Galveston during the same early-morning window; Osteen obtained a blood warrant containing specific sworn observations; the laboratory later reported no alcohol and 0.13 mg/L methamphetamine; and those records would eventually be placed beside Osteen's later sworn testimony.

That comparison is the subject of the next chapter.

CHAPTER 24 — OSTEEN LIED UNDER OATH

The title of this chapter rests on a later federal judicial statement, not on my characterization of Officer William Osteen.

On July 14, 2026, United States Magistrate Judge Andrew M. Edison wrote in *Reardon v. Osteen*: “*I take no pleasure in this result. The record shows that Osteen lied to Judge Tollison. That is disturbing.*” The district court later adopted Edison’s Report and Recommendation and entered judgment against me on August 10, 2026.

Those two facts belong together. The federal court did not enter judgment for me. It did not convict Osteen of perjury. It did not hold a criminal trial about his testimony. It nevertheless left in the federal record an express judicial statement that Osteen lied to Judge Tollison.

That is the line I am going to hold throughout this chapter. Where Benjamin Campagna’s motion accused Osteen of perjury, I will identify it as Campagna’s allegation. Where a federal judge later used the word *lied*, I will identify that as the judge’s finding. I will not turn either into a criminal adjudication that never occurred.

The comparison begins with the blood-warrant affidavit Osteen signed on August 11, 2023.

The affidavit stated that Officer Larry Murph had observed my vehicle fail to maintain a single marked lane and fail to signal a lane change. Osteen then supplied his own observations. The affidavit said he smelled an alcoholic beverage coming from the vehicle, described my eyes as watery and glossy, marked my walking as **heavy footed**, marked my speech as **slurred and thick-tongued**, marked my eyes as **watery and dilated**, and marked the odor of an alcoholic beverage on my breath as **moderate**. The affidavit also included refusal language stating that after arrest I had refused to provide a requested breath or blood sample.

That document produced the warrant signed at approximately 2:49 a.m.

The later evidence did not line up cleanly with it.

The Texas toxicology report stated **“No alcohol detected.”** A separate confirmation analysis reported **0.13 milligrams per liter of methamphetamine**. As Chapter 23 explains, I have disputed that isolated trace result and maintained that it indicated a false positive. Campagna and I have asserted that position from the beginning. But the laboratory did not itself call the result false, and I will not make it say that.

The stronger contradiction does not depend on the methamphetamine dispute at all.

On February 25, 2025, attorney Benjamin S. Campagna filed a motion for a *Franks* hearing in Galveston County Court No. 3. The motion placed Osteen’s affidavit beside the DWI case report, the toxicology report, body-camera footage, and Osteen’s later sworn testimony from the Mississippi revocation proceeding.

Campagna’s filing identified the discrepancies one by one.

The affidavit marked a **moderate odor of alcohol on my breath**. Campagna cited Osteen’s body camera for the proposition that Osteen repeatedly said he did not smell alcohol on my breath, only from the vehicle. Campagna also cited Osteen’s later sworn testimony that once I stepped out of the vehicle he could not detect an odor of alcohol coming from me.

The affidavit described my eyes as **dilated**. At the July 2024 revocation hearing, Osteen testified that my pupils were **very small** and **pinpoint**.

The affidavit described my speech as **slurred and thick-tongued**. At the revocation hearing, Osteen described me as **talking extremely fast**.

The affidavit described me as **heavy footed**. Campagna argued from the body-camera footage that Osteen had little opportunity to observe my walking before the arrest and later testified that I was **extremely jittery**.

The affidavit used **refusal evidence**. Campagna cited the body-camera footage showing me offering to take a breath test and consenting to being taken into custody for that purpose. The motion alleged that Osteen omitted my willingness to take a breathalyzer so that refusal could be used to support the warrant.

Those are Campagna's arguments, contained in a filed defense motion. They are not findings by the Texas criminal court because the requested *Franks* hearing was never held.

Campagna went further. His motion expressly accused Osteen of perjury at the Mississippi revocation hearing because Osteen testified that the toxicology had detected alcohol even though the laboratory report said no alcohol was detected. That accusation was made by my attorney in an adversarial filing. It was not a criminal conviction or a separate judicial finding of perjury.

The filed motion also documented the body-camera exchange that had mattered to me from the beginning. One of Osteen's first questions was, "*You an auditor man?*" Shortly afterward he told another officer, "*Hey, I'm doing this one, this is an auditor.*" Campagna alleged on information and belief that Galveston had a contentious relationship with auditors and argued that Osteen had decided to arrest me before making the observations later used to justify the warrant.

Again, that is the defense theory as pleaded. The recordings establish the words. Motive remains an inference unless a record supplies more.

The DWI case report created another set of internal comparisons.

According to Campagna’s motion, the narrative report described a **strong** odor of an alcoholic beverage coming **from the vehicle**. The warrant affidavit, by contrast, marked a **moderate** odor on **my breath**.

The report described my speech as slightly slurred; the affidavit added thick-tongued. The report described my eyes as watery and glossy; the affidavit added dilated. Later, under oath in Mississippi, Osteen described my pupils as pinpoint.

The most damaging feature of those discrepancies is not that I can prove what was in Osteen’s mind when he wrote them. I cannot. It is that the documents and testimony can be placed side by side without relying on my memory at all.

That distinction became critical in federal court.

In the 2026 civil litigation, the Galveston defendants’ reply acknowledged that Osteen “**stated on camera he could not smell alcohol.**” My objections to Magistrate Judge Edison’s R&R cited that concession alongside the blood-warrant affidavit’s moderate-odor statement.

Edison then addressed the contradictions himself. His ultimate recommendation still went against me. He concluded that even if disputed portions of the affidavit were disregarded, other facts supplied independent probable cause for the blood warrant and the DWI-related seizure. But while reaching that result, Edison wrote the sentence that now titles this chapter: “*The record shows that Osteen lied to Judge Tollison. That is disturbing.*”

That is a narrower proposition than the chapter once claimed, and it is more defensible because it is exactly what the federal record says.

There is another piece of the Galveston chronology that needs correction.

I have said at different times that I spent nearly eleven months in the Galveston County Jail because of Osteen’s affidavit. That formulation is too broad. The original DWI bond reflected in Osteen’s report was **\$10,000**. I bonded out several days after the August 11 arrest. I was rearrested on August 17, the same date Mississippi filed its second petition to revoke my suspended sentence. The Texas bond was later raised to **\$100,000**, but the Mississippi hold independently prevented my release.

The months that followed therefore resulted from overlapping Texas and Mississippi proceedings, not one document acting alone.

I also need to separate two Texas cases that earlier drafts blurred together.

The felony DWI prosecution was dismissed on **May 24, 2024**. By the time Campagna filed the *Franks* motion in February 2025, the motion itself states that I was charged with **misdemeanor Driving While Intoxicated**, Cause No. MD-0417962, in Galveston County Court No. 3. The *Franks* motion challenged the same August 11 blood-warrant affidavit in that misdemeanor case.

That procedural sequence matters. The felony dismissal did not erase the blood evidence or the warrant dispute. The fight continued in the misdemeanor prosecution, which is why Campagna was still litigating the affidavit in 2025.

I will not claim here that prosecutors reduced the case *in order to avoid a Franks* hearing unless a filing or judicial opinion says exactly that. The chronology by itself does not establish motive. What the record establishes is that the felony was dismissed, a misdemeanor prosecution remained, Campagna filed a detailed *Franks* motion, and no *Franks* hearing occurred before the Texas criminal matter ultimately ended.

Campagna's filing remains important because it did what a factual record should do: it put each sworn statement beside the evidence that contradicted it and asked a court to test the discrepancy in an evidentiary hearing.

The Texas court never gave us that hearing.

Mississippi, however, did something else with the same laboratory report. In July 2024, while the Texas felony charge had already been dismissed, Lafayette County put Osteen on a screen before Judge Tollison, admitted the toxicology paperwork, and used the 0.13 mg/L methamphetamine result as part of a second effort to revoke my probation.

That proceeding is where the next chapter goes.

CHAPTER 25 — THE SECOND REVOCATION

By the summer of 2024, the Galveston case and the Mississippi probation case had become one procedural chain.

The Texas felony DWI charge arising from August 11, 2023 had been dismissed on **May 24, 2024**. Mississippi nevertheless still had an August 17, 2023 Petition to Revoke Suspended Sentence pending against me in cause number LK22-358. That petition alleged that I had violated the good-behavior condition of my probation by being charged in Galveston with felony DWI.

The Mississippi warrant was not executed until **June 25, 2024**, roughly ten months after it issued.

The document itself contained an error that would later be acknowledged in open court. It described the original Mississippi charge as **possession of a controlled substance**. That was not my underlying conviction. My probation arose from the September 30, 2022 aggravated-stalking plea.

The warrant also used **2023-005559** as the identifier for the Texas matter. I initially attacked that number as fictitious. It was not. It was the Galveston Police Department offense-report number, not the Texas court cause number. That is an important correction: the predicate-charge description was wrong; the number itself came from an actual police file.

On **July 11, 2024**, Judge Grady Tollison convened the first revocation hearing. District Attorney Benjamin Creekmore told the court that Officer William Osteen could not appear by Zoom because Hurricane Beryl had disrupted power and communications in the Galveston area.

Before the matter was continued, I raised the lack of a preliminary revocation hearing and cited Mississippi law and federal due-process cases. I also challenged the warrant's false reference to possession of a controlled substance and asked Tollison to consider recusal because he had presided over the November 2022 revocation.

The record cuts both ways on counsel, and it needs to stay that way.

Tollison asked whether I wanted counsel. I said that if the case was going forward as a formal revocation hearing, I wanted assistance of counsel. The judge responded that I should be given that opportunity and continued the matter for a week. I objected to the delay because I believed Mississippi's revocation statute required a hearing within twenty-one days. But the delay I was objecting to was ordered for the purpose of obtaining counsel after I had just asked for it.

On **July 18**, attorney Mark McClinton appeared as a procedural advisor rather than as counsel conducting the hearing. I therefore questioned witnesses myself.

The State called Katreena Thompson, an investigator for the district attorney's office, and introduced records concerning prior DUI convictions and the Galveston matter. The May 24 Texas order dismissing the felony DWI was admitted without objection.

I renewed my attack on the Mississippi warrant. This time Tollison addressed the false predicate directly. His response, as reflected in the transcript, was that it **"should have been aggravated stalking"** and that, to his knowledge, I did not have a possession-of-a-controlled-substance

conviction. He treated the defect as moot because the petition to revoke — rather than the warrant — was the operative charging document before him.

Osteen then testified by Zoom.

His testimony supplied several of the contradictions later collected in Benjamin Campagna's *Franks* motion and eventually discussed by Magistrate Judge Andrew Edison.

Osteen testified that after I stepped out of the vehicle he could not detect an alcoholic odor coming from me. He described my pupils as very small or pinpoint and described me as talking extremely fast. Those descriptions did not match the August 2023 blood-warrant affidavit, which had described a moderate odor of alcohol on my breath, dilated pupils, and slurred and thick-tongued speech.

There was an additional contradiction in the toxicology testimony. At the revocation hearing Osteen testified that alcohol had been detected. The Texas laboratory report admitted into the same proceeding stated **"No alcohol detected."** The later MacArthur Justice Center PCR expressly identified that contradiction.

The toxicology did contain another result: **0.13 milligrams per liter of methamphetamine.**

I have disputed that isolated result and have maintained, along with Campagna, that it indicated a false positive. The laboratory itself did not make that finding, so I will not present our position as though it did. What the revocation record establishes independently is that the State presented **no evidence that 0.13 mg/L of methamphetamine would impair a person's ability to operate a motor vehicle.**

That absence became central later.

At the July 18 hearing, the State argued that the blood result independently established a probation violation even though the Texas felony charge had already been dismissed. I argued that the dismissal mattered and that an arrest or accusation alone did not prove the conduct necessary for revocation.

Tollison ruled for the State under the revocation proceeding's preponderance-of-the-evidence standard. The transcript reflects that he relied on the testimony, the evidence showing a 0.13 methamphetamine result, and the fact that I had been charged with felony DWI. He revoked the remaining suspended sentence and imposed **four years in MDOC custody with two years suspended**, leaving **two years to serve**, followed by two years of post-release supervision.

That sentence sent me back into Mississippi custody.

The legal defect that ultimately produced relief was narrower than the broader constitutional case I wanted the court to hear.

On **November 26, 2024**, attorney Jacob Howard of the MacArthur Justice Center filed a Motion for Post-Conviction Relief in Lafayette County Circuit Court, civil cause number **36CI1:24-cv-00388-JKL**.

Earlier drafts of this book described Howard's petition incorrectly. They said MacArthur used that filing to attack my September 2022 guilty plea, Deputy Beavers's 2022 testimony, ineffective assistance of counsel, and the banishment provision. **That is not what this petition did.**

The petition says so on its first page. It requested post-conviction relief **from the July 18, 2024 order revoking my unsupervised probation and imposing two years of the suspended sentence**. It did not seek to vacate the underlying 2022 conviction.

Howard's argument was statutory and powerful precisely because it did not require the court to resolve every disputed event that had brought me there.

The State had alleged a felony DUI. But by the time of the revocation hearing, that felony charge had been dismissed. Howard argued that even assuming Mississippi had proven by a preponderance of the evidence that I drove under the influence, the conduct the State actually proved would amount to a **misdemeanor** under the relevant law.

Under Mississippi's probation statute, a misdemeanor is treated as a **technical violation**. Howard then applied the graduated limits in Mississippi Code Section 47-7-37(5)(a).

Because this was the **second revocation** for technical violations, Howard argued that the maximum authorized period of imprisonment was **120 days** — not the two years Tollison had ordered me to serve.

The petition also contained a footnote that mattered enormously to the history of the case. Howard wrote that the **November 3, 2022 first revocation** had also imposed an illegal sentence. He characterized the banishment violation as a technical violation and stated that the maximum imprisonment authorized for that first technical revocation was **ninety days**. Tollison had imposed one year.

But Howard did not ask the court to undo the first revocation because I had already served that sentence. The petition expressly limited itself to the July 18, 2024 revocation order.

That is the actual scope of the MacArthur filing.

It was not the sweeping attack on the 2022 conviction that an earlier manuscript claimed. It was a focused argument that Mississippi had imprisoned me for substantially longer than its own technical-violation statute permitted.

And it worked.

The January 2025 order is covered in the next chapter, but one point belongs here because it defines what Howard accomplished. The court vacated the **July 18, 2024 revocation sentence**, resentenced me to the statutory 120-day period with credit for time served, and ordered my release.

It did **not** erase the September 30, 2022 aggravated-stalking conviction. It did **not** vacate the first November 2022 revocation. It did **not** dissolve the underlying probation or banishment conditions.

That narrower outcome is still consequential. Mississippi had sentenced me to two years to serve on a revocation for conduct that Howard demonstrated was governed by a 120-day statutory ceiling. By January 2025 I had already been confined beyond that ceiling.

The filing also changed how I understood one of the recurring problems in this story. For years I had argued broadly about retaliation, false testimony, unconstitutional orders, and collusion. Howard found a point the court could resolve without deciding any of those larger accusations: whatever anyone thought of me, and whatever they thought the blood result proved, **the sentence exceeded the punishment Mississippi law authorized for the violation the State had established.**

That was enough to open the prison door.

It was not enough to erase the conviction that had put the probation in place.

CHAPTER 26 — RELEASED, BUT NOT VACATED

On **January 21, 2025**, the Lafayette County Circuit Court granted the post-conviction relief requested by Jacob Howard and the MacArthur Justice Center from the **July 18, 2024 second-revocation sentence**.

The order was important. It was also narrower than I originally understood it to be.

The court did not vacate my September 30, 2022 aggravated-stalking conviction. It did not erase the first November 2022 revocation. It did not terminate the five-year term of unsupervised probation or the banishment condition.

What it corrected was the sentence imposed at the second revocation.

Howard's petition had argued that even if the State proved I committed a DUI offense in Texas, the conduct established in the revocation record amounted at most to a misdemeanor and therefore a **technical violation** under Mississippi's probation statutes. Because this was the second revocation for technical violations, the maximum authorized period of imprisonment was **120 days**.

Judge Tollison had sentenced me to four years in MDOC custody with two years suspended — two years to serve.

The January order replaced that with the statutory 120-day sentence, gave me credit for time served, and directed my release.

The written order also reinstated me to the underlying unsupervised probation. Its conditions remained in force, including the Lafayette County banishment.

That language matters because an earlier version of this book said the January ruling had vacated the 2022 conviction, probation, and banishment. That was wrong.

The relief was real: the court recognized that the July 2024 sentence exceeded the statutory ceiling and ended the excess imprisonment. But I did not walk out with the underlying conviction erased.

The order was entered January 21. My release occurred **January 22, 2025**.

That difference of one day is small in ordinary life and important in a chronology built for litigation. I am using the order date for the judicial act and the following day for the actual release from custody.

The first revocation remained untouched as well. Howard's petition had expressly noted that the November 2022 revocation appears to have imposed one year for a first technical violation even though the statutory maximum was ninety days. But because I had already served that sentence, the PCR did not ask the court to reopen it.

So by the time I left prison in January 2025, the record looked like this:

The July 2024 two-year-to-serve revocation sentence had been corrected to 120 days and was over.

The September 2022 conviction remained.

The probation remained.

The banishment remained.

And the first revocation remained part of the record despite Howard's statement that its one-year sentence also exceeded the technical-violation limit.

That was the legal posture in which I left Mississippi.

On **February 1, 2025**, I moved to Layton, Utah.

I did not understand that move, at the time, with the precision the January order now forces on the manuscript. I had been released from an unlawfully long sentence and was leaving Mississippi, but I was not moving as a man whose conviction and probation had been judicially erased. The order itself says otherwise.

That correction changes the opening premise of the next chapter. Layton was still an attempt to start over, but it was not a post-vacatur clean slate. It was the next place I went while the Mississippi conviction and probation remained on the books.

What happened after I arrived there is documented in a different set of records: the Zions Bank encounter, emails from Oxford Police Captain Hildon Sessums, the Layton Police distribution that followed, the public-records dispute, and eventually a federal lawsuit in Utah.

Those events begin four days after I moved into Layton.

CHAPTER 27 — LAYTON, UTAH

I moved to Layton, Utah on **February 1, 2025**, ten days after the Mississippi court entered the order correcting my second-revocation sentence and nine days after my actual release from custody.

An earlier version of this chapter opened by saying that I arrived in Utah after Mississippi had vacated my 2022 conviction, probation, and five-year banishment. The January 21 order does not say that. As Chapter 26 now explains, the court corrected the July 2024 revocation sentence to the statutory 120-day maximum and ordered my release, but it reinstated the underlying probation and its conditions, including banishment from Lafayette County.

I therefore arrived in Layton with the Mississippi conviction still on the books.

That legal posture matters because four days after I moved into my Layton address, an Oxford, Mississippi police captain was already writing to officials in my new city about me.

I had continued using **Don Matthews** publicly as a journalist and in records work. In the federal complaint I later filed, I swore that when I moved into the Layton residence late on February 1, I had not disclosed the

address publicly and had not yet memorized it myself. That is my sworn account. The records establish what happened next; they do not establish by themselves how Oxford police obtained the address.

On **February 3**, I recorded at a Zions Bank branch in Layton. Police were called. The responding Layton patrol officers were professional, and I said so on camera. I had no complaint about their conduct.

Two days later, on **February 5 at 8:09 a.m.**, Oxford Police Captain **Hildon Sessums** sent an email to Layton officials concerning me. In it he identified himself as an Oxford Police captain and FBI National Academy graduate, described me as a former Oxford resident, a convicted felon, and a persistent issue for his department, and said Oxford had discovered a YouTube video of the Layton bank encounter.

The email included my Layton street address. Sessums described the source as **“from our research.”**

That phrase became central to my later lawsuit because I had lived at the address for only four days. In my sworn declaration, I asserted that the address was not then available through a legal, official, or publicly accessible source and that I had not supplied it to Layton City. From those facts I alleged that Sessums must have obtained it through surveillance, confidential records, another agency, or misuse of government resources.

That was an allegation. The email proves that Sessums possessed and transmitted the address. My declaration establishes what I swore about its availability. Neither document proves the mechanism by which he obtained it.

At **9:46 a.m.**, roughly ninety-seven minutes after Sessums’s email, Layton Police Lieutenant **Riley Richins** forwarded the information through internal city and police distribution channels. My federal complaint identified the recipients as John Does 1 through 139.

Richins’s message included a statement that in 2017 I had been arrested for stalking the mayor in Lafayette County. That statement was false. The 2017 aggravated-stalking charge concerned Todd and Ashley Lynch, not the mayor of Oxford.

Richins also summarized the 2022 aggravated-stalking matter as arising after I entered Oxford City Hall with a camera in connection with the Tannehill restraining order. That compressed description was closer to the documented sequence, although Chapter 19 supplies the necessary chronology: the June 20 City Hall visit, June 23 referral to MBI, June 27 warrant, and June 28 arrest.

There is another part of Richins's email that belongs in the record. He told his colleagues that the Layton officers who handled the Zions Bank encounter had acted professionally and that I had expressed appreciation for their professionalism and given them a "pass." The same email therefore transmitted a false statement about my 2017 case while also reporting something favorable about my interaction with Layton officers. Both facts matter.

The address remained the question I could not answer.

I suspected federal involvement because Sessums referenced his FBI National Academy credential. I said so publicly and later in complaints. But the credential itself does not prove that anyone at the FBI supplied the address, and I have not located a record establishing that the FBI was its source. The manuscript will not turn that suspicion into a fact.

My next dispute with Layton involved Utah's public-records process, GRAMA.

The chronology in my own federal complaint is wrong on one date. The complaint says I went to Layton City Hall on **February 20** to follow up on the records from the bank incident. A preserved transcript of the actual interaction identifies it as **Thursday, February 13, 2025**. The transcript itself contains a useful internal check: a city employee says, "Happy Valentine's Day tomorrow." February 13 is therefore the date I am using here.

I first went to City Hall, then across to the police department, then back to City Hall. I was trying to obtain the police report, 911 audio, and body-camera recordings from the Zions Bank encounter. City staff told me the recordings were ready but that I would need to show identification to receive them.

I objected. I was using the name Don Matthews and took the position that a member of the public should not have to produce government identification simply to receive a public record. The recording captures me repeatedly grounding that refusal in my view of the Fourth Amendment.

The recording also shows that the city employees did not simply refuse to engage with me. They explained the fee schedule, directed me between departments, and ultimately referred the identification dispute to City Prosecutor **Mark Arrington**.

That distinction matters because the complaint I later drafted described Arrington in substantially more hostile terms than the recordings support.

On **February 21**, Arrington and I spoke by telephone. I pressed him on how he had connected Don Matthews to Matthew Reardon.

His explanation on the recording was straightforward. He said he watched the video I had published, saw material connecting me to Oxford, Mississippi, and searched for Matthew Reardon. His account did not require access to a secret law-enforcement database. It relied on material I had put online myself.

I had accused him of conducting an illegal search. On the recording, I do not have evidence for that accusation.

I was also the hostile party in part of that exchange. I left a voicemail accusing the city of wasting resources on illegal searches and used profanity while doing it. That recording is part of the record too. I am not removing my own conduct simply because it makes the dispute less one-sided.

On **March 5**, Layton Mayor **Joy Petro** called me in response to concerns I had raised. Her recording likewise does not fit a narrative in which every government official I encountered was acting against me.

Petro treated the inconsistent identification requirement as a legitimate concern and told me she had raised it within the city. She also explained limits on her authority over city personnel. When she relayed what she understood Arrington had told her about identifying me, she referred to Facebook rather than the YouTube/search explanation Arrington had given me directly.

I noticed the discrepancy. I still do not know whether it reflected a genuine difference in Arrington's accounts or simply Petro paraphrasing a conversation. Her own wording included uncertainty. The recordings support noting the discrepancy; they do not support declaring what caused it.

On **March 13**, I submitted a broader GRAMA request seeking calls, emails, and communications involving my name or pseudonym. My later complaint alleged that on March 25 the city produced only part of what I had requested, including the Sessums and Richins emails, while other material remained disputed or withheld.

Those records were how the February 5 communications became evidence rather than suspicion.

On **March 27**, I called Oxford Police Chief **Jeff McCutchen**. In my federal complaint I alleged that I confronted him about Sessums's acquisition of the Layton address, that he did not offer an explanation for its source, and that he refused my request for an internal investigation.

I have not located the underlying recording in the evidence set I am using for this red-team pass. Until I do, those propositions remain what they are in the present record: allegations I made in a signed federal pleading. The manuscript should not convert my characterization of that call into an independently verified transcript.

On **March 31, 2025**, I filed *Reardon v. City of Layton, Utah, et al.*, No. **1:25-cv-00041**, in the United States District Court for the District of Utah.

The defendants included the City of Layton, Layton Police Department, City of Oxford, Oxford Police Department, Sessums, McCutchen, Richins, Arrington, and John Does 1 through 139. I pleaded federal civil-rights and conspiracy theories along with state-law claims, including defamation and privacy-related claims.

A complaint is an allegation document. None of those counts was ever adjudicated on the merits.

The same day, I went to the FBI's Salt Lake City Field Office with a declaration concerning the Oxford-Layton events. In my later sworn account, I said agents would not accept the declaration or discuss the complaint without first obtaining identification for a background check; that I refused; and that agents then ordered me from the visitor parking area under threat of trespass enforcement while one recorded my license plate.

I have described recording portions of that encounter myself. For this manuscript pass, however, the source presently in hand is my sworn declaration and later OIG complaint; I am not treating unreviewed video as if I had independently verified every detail against it.

The federal civil case entered screening immediately.

Magistrate Judge **Jared C. Bennett** temporarily granted my request to proceed in forma pauperis, ordered screening under 28 U.S.C. § 1915(e) (2), tolled the time for service until further order, and restricted further filing while screening was pending.

I filed a motion to lift the stay on **April 9** and an emergency renewed motion on **April 15**. The case had not moved to service.

On **April 23**, I sought to withdraw consent to magistrate jurisdiction and moved for recusal. The clerk issued a notice of non-consent, and the matter was reassigned to District Judge **David Barlow**.

That reassignment was not a judicial finding that Bennett was biased. It followed the non-consent procedure. Earlier drafts blurred those two things; this one does not.

The next date is now confirmed from the project's evidence ledger: **April 25, 2025**. That is when I filed my Notice of Voluntary Dismissal Without Prejudice. The archive identifies the source document as 2025-04-25 - Notice Of Voluntary Dismissal... (Reardon V Layton).pdf.

My notice relied on Rule 41(a)(1)(A)(i). No defendant had been served or filed an answer. The screening stay had never progressed into an adversarial merits proceeding.

That procedural ending controls how every allegation in this chapter must be described.

The Sessums and Richins emails exist. Their text can be examined. The false statement that my 2017 arrest involved stalking the mayor can be compared with the 2017 charging record. My February interaction with Layton and the Arrington and Petro calls can be compared with preserved transcripts and recordings.

But the central accusations in my complaint — illegal surveillance, conspiracy, retaliatory coordination, unconstitutional acquisition of the Layton address, and municipal liability — were **never tested in discovery and never adjudicated by the Utah federal court**. I dismissed the case before any defendant was required to answer them.

That does not make the underlying emails disappear. It defines what can responsibly be said about them.

Four days after I moved to Utah, an Oxford police captain had my new address and sent it to officials in Layton, saying it came “from our research.” Ninety-seven minutes later, a Layton lieutenant circulated the information internally and included a false statement about the crime for which I had been arrested in 2017. Those are document-based facts.

How Sessums obtained the address remains unresolved on the record presently before me.

That unresolved question followed me out of Utah and into the next phase of the story.

CHAPTER 28 — THE ALERTS: TWO MONTHS BEFORE

On **June 23, 2025**, I entered the John M. Shaw United States Courthouse in Lafayette, Louisiana and recorded in the lobby.

The U.S. Marshals Service later documented the encounter in two different records: a Court Facility Incident Report dated June 24 and a Field Operational Report dated July 16. Those records are more useful than any reconstruction from memory because they include the government’s own account of why I was not arrested and why the building closed.

The June 24 incident report places the encounter at approximately **4:05 p.m.** and identifies the location as the courthouse lobby. It records my position that the lobby was an unrestricted area open to the public during business hours and that I believed no standing order prohibited photography there.

The later Field Operational Report supplies more detail. It says a deputy called a supervisory deputy marshal about an unknown individual recording outside the court-security screening station. I identified myself as “Don,” said I had no official courthouse business, and maintained that I had a First Amendment right to record in the public area.

The report also records the government's adverse account of my conduct. It says I insulted deputies and Lafayette police officers, refused requests to leave, and suggested that the supervisory marshal arrest me.

Then comes the sentence that matters most for understanding the first encounter. According to the U.S. Marshals Service's own report, the supervisory deputy told me I **would not be arrested because I had not done anything that warranted an arrest.**

The report says the deputy nevertheless wanted me to leave because I had no official business. I refused.

After discussing the situation with the criminal chief in the U.S. Attorney's Office and another assistant U.S. attorney, the supervisory marshal decided to close the building because the courts had adjourned for the day. At approximately **4:48 p.m.**, court security officers were instructed to close the building to the public, and I left after being told the courthouse was closing.

Earlier versions of this chapter tried to infer why officials chose closure rather than arrest. The government record already gives a better answer. The marshal wrote that I had done nothing warranting arrest and that he closed the building after the courts had adjourned in order to get me to leave. I do not need to speculate beyond that.

The next day, **June 24 at 4:17 p.m.**, a supervisory deputy U.S. marshal in the Western District of Louisiana circulated an email with the subject **"1st Amendment Auditor Matthew Reardon."** The distribution shown in the FOIA production included federal courthouse personnel and addresses associated with the U.S. Marshals Service, the U.S. Attorney's Office, Constellis, and GSA.

The email said that I had been in the lobby the previous day recording or livestreaming near the security station. It attached a court-security report and a draft report of the incident and asked recipients to remind staff to report **"any suspicious behavior no matter how small"** to USMS personnel, court security, or an outside guard.

That is the first documented internal dissemination in this sequence.

On **June 26**, I returned to the courthouse with another person. The July 16 Field Operational Report added this second encounter to the same narrative.

The government's report says I initially stated that I wanted to file a complaint concerning the supervisory marshal. I was told to contact U.S. Marshals Service headquarters in Washington. The report says I then maintained that I had the right to stand in the public building and record.

The supervisory marshal wrote that he placed a hand on my upper back while directing me toward posted rules. The report quotes my response: **“don't put your hands on me mother fucker, that's assault and I will have to defend myself.”**

The report then characterizes my companion and me as loud and disruptive, says our conduct diverted court-security officers from screening duties, and says two people who entered during the confrontation were later identified as DEA agents there on official business.

The report also says the marshal asked whether I had been drinking because, in his description, I was behaving erratically and was difficult to reason with. It quotes me replying, **“I haven't had a drink in 5 years mother fucker,”** and saying I had been with my companion all day.

I am preserving that exchange as the government's recorded account of what was said. I am not using the alcohol question to manufacture a broader pattern or infer a motive that the document does not establish.

The same report says the marshal asked about me **“stalking a public official in Oxford, MS”** because he hoped I would take note of the legal consequences and leave. Whatever the marshal understood about the Mississippi case, the significant point for this chronology is that a federal officer in Louisiana was already discussing my Mississippi history during the June 26 confrontation.

The two encounters were consolidated in the U.S. Marshals Service Field Operational Report dated **July 16, 2025**. Earlier drafts treated the time between the June incidents and the July report as evidence of deliberate intelligence-file construction. The dates alone do not establish why the report was completed on July 16, so that inference is removed.

What the FOIA production does establish is an information-sharing chain that expanded after the Lafayette encounters.

On **June 27**, federal personnel circulated emails concerning me across Mississippi and Louisiana. One message said: **“Apparently this guy is hitting the Federal Courthouses in Mississippi and Louisiana. We will try and Get a BOLO Packet together but until then use this as a FYI to the Guys.”**

Another forwarding message to Constellis personnel said: **“FYI; be aware. Once I get a BOLO I will send it out.”**

Those words matter because they distinguish what existed at that moment from what was still being prepared. The record shows that officials were discussing a BOLO packet; it should not be rewritten to make every June 27 document itself a BOLO.

What did exist on June 27 was a formal **District Alert Notice** from the U.S. Marshals Service’s Northern District of Mississippi.

The notice was marked **LIMITED OFFICIAL USE / LAW ENFORCEMENT SENSITIVE**. Its stated purpose was to inform Northern District operational employees and court security officers about me. It instructed recipients that if I appeared in person they should **“monitor this subject closely”** and notify the redacted contact identified in the notice.

Its background section said that I had recently been frequenting local, state, and federal courthouses to conduct what I described as First Amendment audits. It also said that I had been **“more cooperative”** in the past than my current videos showed and instructed personnel to follow training and local judiciary rules when handling such encounters.

The notice included identifying information and photographs. The FOIA copy redacts the identity of the official who prepared or distributed it. I am therefore not assigning authorship to a specific marshal without a source that does so.

A June 27 email from a supervisory deputy marshal in Northern Mississippi also transmitted conviction documents and stated that I was on unsupervised release. The writer discussed the Mississippi case and asked

where the DUI arrest mentioned during the Lafayette encounter had occurred. The same writer said he was reviewing local rules in preparation for the possibility that I might appear at Northern District suboffices.

The correspondence continued on **June 30**.

In one message, the Northern District supervisory deputy wrote: **“I put this out Friday to all my CSOs on REARDON. He is banished from Oxford until September 30, 2027, but I expect he will show up in Greenville or Aberdeen sooner than later.”**

That statement is particularly notable in hindsight because I was later arrested at the federal courthouse in Aberdeen in June 2026. The 2025 email proves that a Northern District marshal anticipated the possibility of my appearing there. It does not prove that the later arrest was preplanned a year in advance, and the manuscript will not say that it does.

The June records therefore establish something narrower and stronger than the old chapter’s language about a multi-state surveillance apparatus.

They establish that after the June 23 Lafayette courthouse encounter, a Western District supervisory marshal circulated reports concerning me. Within days, federal personnel in Mississippi and Louisiana were forwarding my information, discussing a BOLO packet, sharing photographs, distributing a formal Northern District Alert Notice, reviewing my Mississippi conviction and release status, and instructing court-security personnel to monitor me closely and report my appearance.

The documents also preserve facts that cut against a one-sided account. The June 23 report says I insulted officers and refused to leave after being asked. The June 26 report describes my conduct as disruptive, records my profanity, and says court-security officers’ attention was diverted from screening other visitors. Those are the government’s allegations about my conduct and belong beside my own position that I was recording in a public courthouse lobby.

What the documents do **not** establish is equally important. They do not establish that every agency receiving an email surveilled me. They do not establish that every later encounter was caused by the alert. They do not

establish an unlawful conspiracy. And they do not, standing alone, resolve the First Amendment or courthouse-policy questions surrounding recording inside a federal building.

They do establish notice and information sharing before **August 25, 2025**.

By the time I returned to the Lafayette courthouse that day, the Western District had documented two prior encounters with me, and the Northern District of Mississippi had circulated a law-enforcement-sensitive alert instructing personnel to monitor me closely if I appeared.

The August 25 arrest therefore did not begin with federal officials encountering an unknown visitor for the first time.

That is the factual point this chapter can prove.

CHAPTER 29 — THE GOVERNOR’S MANSION

On **July 3, 2025**, I stood outside the Mississippi Governor’s Mansion in Jackson with a sign and a livestream running.

The sign said **FUCK THE GOVERNOR**.

I called the stream “**National Fuck the Governor Day.**” There is no reason to clean that up after the fact. The recording exists, and the language is part of what happened.

I was there for more than one reason.

Two days earlier, on July 1, Mississippi’s **Safe Solicitation Act**, House Bill 1197, had taken effect. I described it on the livestream as a law forcing panhandlers to pay twenty-five dollars every day for a permit. The enacted text is more precise than that description.

The statute defined covered “solicitation” as requesting money or something of value while positioned on specified roads, streets, highway medians, traffic islands, or highway intersections. It required a solicitation permit for the covered activity and authorized the relevant government

authority to charge a permit fee **not exceeding \$25**. It also limited permits by location and time and provided that only one permit would issue for an intersection on a given day.

So my livestream description — “\$25 a day to panhandle” — captured what I believed the practical effect of the law to be, but it overstated the text. The law authorized a fee **up to** twenty-five dollars for the regulated roadside solicitation; it did not say every person asking for money anywhere in Mississippi must pay a flat twenty-five dollars every day.

I objected to the law on First Amendment grounds. The constitutional analysis belongs in the Legal Analysis section rather than being announced here as though the U.S. Supreme Court had already struck down this particular Mississippi statute. What matters to this chapter is that the law was one reason I chose to protest at the Governor’s Mansion.

The other reason was personal.

On **November 9, 2023**, Governor Tate Reeves signed a Request for Interstate Rendition addressed to Texas Governor Greg Abbott concerning me. The document is now in the evidence archive.

It says that the annexed papers were “**duly authenticated under Mississippi law**” and that I stood charged in Lafayette County with **violation of the terms of probation in connection with a conviction**, Cause No. **LK22-358**, with a bench warrant issued.

That part needs correcting from what I said on the July 3 livestream.

On camera I called the cause number fictitious and the stated charge fictitious. They were not. LK22-358 was the actual cause number for the 2022 aggravated-stalking case, and violation of probation was the basis of the rendition request.

The supporting bench warrant contained the real defect.

The August 17, 2023 bench warrant in LK22-358 commanded that I be brought before the court to answer for a probation violation “**on the original charge of Possession of a controlled substance.**” That was wrong. My underlying conviction in LK22-358 was aggravated stalking, not possession of a controlled substance.

The discrepancy was later confronted in open court. At the July 18, 2024 revocation hearing, Judge Grady Tollison acknowledged that the warrant should have referred to aggravated stalking and stated, to his knowledge, that I did not have a conviction for possession of a controlled substance.

That is enough. I do not need to call the entire rendition packet forged or fictitious, because the documents do not support that characterization.

The Governor's request contains a second statement that does not fit the documented chronology cleanly. It says it had been represented to Reeves that I was in Mississippi at the time of the alleged offense, **"thereafter fled from Mississippi and has taken refuge"** in Texas, and was then in the Galveston County Jail.

The underlying probation allegation, however, arose from the August 11, 2023 Galveston DWI arrest. I had been released from Mississippi custody on August 1 and was arrested in Texas ten days later. By November 9, when Reeves signed the rendition request, I was already confined in the Galveston County Jail.

I have described that recital as fraudulent. The documentary record establishes the mismatch; it does not establish who supplied the language, whether it was standardized extradition wording, or whether Reeves or Secretary of State Michael Watson knew it was inaccurate. I am therefore describing the discrepancy and stopping there.

The rendition request appointed **Sheriff Joey East and/or his duly authorized agents** to receive me from Texas and convey me to Mississippi. A cover letter from the Governor's Office extradition coordinator likewise directed Texas authorities to notify East when I became available for release.

Earlier versions of this chapter said Reeves and Watson "never read" the papers beneath the seal. I do not know that. Their signatures establish authentication of the request; they do not establish what either man personally reviewed before signing it.

The record is strong enough without inventing their state of mind: a governor's rendition packet certified supporting papers that included a bench warrant falsely identifying the underlying conviction, and the request itself contained a flight-from-Mississippi recital that does not match the chronology reflected in the case records.

That was the personal grievance I carried to the Governor's Mansion on July 3.

The livestream records what happened there.

I was outside the mansion grounds when a Mississippi Highway Patrol trooper told me to move across the street. The exchange escalated quickly.

The transcript captures the trooper telling me: **"Get your stuff and go the fuck across the street. You understand me?"**

I asked whether I was under threat of arrest.

He answered: **"Yeah, you under threat of arrest."**

I asked whether he knew what the First Amendment was.

His response began: **"I don't give a fuck what the first—"** before the exchange moved on.

I demanded his name and badge number. I called him a tyrant. I repeatedly insisted that I was standing on the sidewalk and challenged him to act.

My own language became confrontational too. The recording contains profanity, taunts, and repeated challenges from me. At one point I told the trooper that if he came out and put his hands on me I would defend myself. That is part of the record and belongs here rather than being omitted to make me sound more restrained than I was.

The most important correction in this chapter concerns physical contact.

An earlier draft said the trooper punched me, knocked my camera phone off the gimbal, stepped on it, and later had to be physically restrained by three officers while trying to break loose and attack me again.

The preserved transcript does **not** support that account.

When a supervisor arrived and asked me directly, **“Did he physically touch you?”** I answered: **“No, he didn’t.”** I then explained that my complaint was about what I perceived as a threat of violence and an attempted unlawful detention, not completed physical contact.

That contemporaneous answer controls the manuscript unless another authenticated recording establishes a separate physical-contact event that the current source set does not show.

I therefore cannot accurately describe this incident as the trooper punching me, damaging my phone, or committing a completed battery. Those claims are removed.

What the recording does support is still serious enough to describe without embellishment: while I was protesting with a profane political sign, a state trooper ordered me across the street, expressly placed that command under threat of arrest, responded to my First Amendment question with profanity, declined to give me the identification I was demanding, and approached closely enough that I complained to his supervisor that I believed I was being threatened with physical seizure.

The supervisor’s response is also on the recording.

He asked what happened. I told him the trooper had tried to “aggress” me and had come within about an arm’s length. The supervisor asked the critical factual question — whether the trooper had actually touched me — and I said no.

I continued demanding that the matter be treated as misconduct. My delivery was angry. I complained about what I viewed as a double standard for police officers and insisted that the incident not be swept aside.

That is a much more accurate account than calling it an assault-and-battery event already proven on video.

The livestream also preserves an important correction to my own rhetoric about the rendition packet. During the protest, I told viewers that Reeves had authenticated “fake documents,” that the cause number was bogus, and that the charge was bogus. The source documents now available show that those two specific statements were wrong. I am correcting them here rather than repeating an accusation the records do not sustain.

What remains is narrower:

The cause number was real.

The probation-violation proceeding was real.

The bench warrant's description of my original conviction as possession of a controlled substance was false.

And the interstate rendition request described me as having fled Mississippi and taken refuge in Texas even though the documented sequence is that Mississippi released me on August 1 and Galveston arrested me on August 11.

Those are document-to-document comparisons. They do not depend on accepting my interpretation of anyone's motive.

I later sought accountability for the July 3 confrontation and publicly criticized the response I received from state and federal offices. Those requests and any agency responses need to be tied to the actual correspondence before the final publication master states that a particular office ignored, denied, or failed to investigate them. I am not treating my later commentary as proof of what an agency did internally.

The same rule applies to legal conclusions. I believed the trooper's threat of arrest violated my First Amendment rights and that the confrontation could support civil-rights claims. No court adjudicated those questions. No prosecution arising from the encounter established a crime by the trooper. The current evidentiary record is the recording itself, my contemporaneous complaint, and the surrounding public documents.

That is what this chapter can prove.

By July 2025, I was publicly confronting state officials in Mississippi while federal court-security personnel in Mississippi and Louisiana were already circulating alerts concerning my courthouse activity. Seven weeks later I returned to the federal courthouse in Lafayette.

That encounter would not end with the building closing.

CHAPTER 30 — LAFAYETTE: AUGUST 25

On **August 25, 2025**, I returned to the John M. Shaw United States Courthouse in Lafayette, Louisiana.

It was my **third** documented visit that summer, not my fourth. The first had been June 23. The second was June 26. By the third visit, U.S. Marshals personnel in Louisiana and Mississippi had already circulated the emails and alert material described in Chapter 28.

I went back angry about that record and intending to protest the Marshals Service while continuing to assert what I believed was my right to record in the public portions of the courthouse.

That is not simply my reconstruction. The federal court later found that I returned on August 25 to exercise what I understood to be First Amendment rights and to express my “extreme discontent” with the U.S. Marshals Service after learning through FOIA that federal law-enforcement personnel had been communicating about me.

I brought cameras, a tripod, two smartphones, and handwritten protest signs containing profanity directed at the Marshals Service. My own recordings documented the encounter and were introduced at trial.

The criminal charge that followed has to be stated precisely.

The government charged me by Bill of Information with one count under **41 C.F.R. § 102-74.390(a)-(b)**, the federal regulation governing disturbances on federal property. Subsection (a) concerns loud or unusual noise or nuisance. Subsection (b) concerns conduct that unreasonably obstructs the usual use of entrances, foyers, lobbies, corridors, offices, elevators, stairways, or parking lots.

At trial, however, the government proceeded **only on subsection (b)** — obstruction of entrances. That was the theory on which I was ultimately convicted.

That distinction matters because an earlier draft described the case as though my profanity and confrontation were themselves the charged offense. They were part of the factual context and the court's mens-rea analysis, but the government's trial theory was obstruction.

The physical layout matters too.

The courthouse's exterior entrance consists of several sets of glass double doors. The federal court's January 16, 2026 Reasons for Judgment identifies two center-area doors as emergency exits, EE-1 and EE-2, and another pair as the customary Entrance/Exit Door. The two emergency exits ordinarily remained locked from the outside but could be opened by court-security personnel when necessary.

When I arrived, I initially protested nearer the street and displayed my signs to people passing the courthouse.

At some point I saw a deputy marshal make a gesture from inside. On my livestream I interpreted the gesture as an invitation to enter and told my audience that I had been waved inside.

The later federal judgment is careful about that point. It does **not** find that a marshal actually invited me into the building. It says I observed a gesture that **I interpreted as an invitation**.

I gathered my equipment and moved toward the courthouse.

I first tried two doors that were locked — the emergency exits. I then went through the ordinary Entrance/Exit Door with signs under my arm and a recording device operating.

Deputy U.S. Marshal **Hayden Nugent**, who had been present during the prior courthouse encounters, met me as I approached the interior lobby. According to the court’s findings, Nugent told me I had **not** been invited inside and that I would be arrested if I attempted to film inside the courthouse.

I believed I had been baited. I protested loudly, used profanity, and exited the building.

That was not the arrest.

This is another significant correction from the prior manuscript. I was **not arrested inside the public lobby immediately after entering**. I went back outside to the covered portico and continued the protest.

My own recording captures me saying, “**now they just asked for it,**” and later, “**there’s a big part of me that wants to go back in and take the arrest.**” I also said, “**They want it. They want it.**”

Those statements were later cited by the court in assessing whether my actions were deliberate rather than accidental.

I then began displaying the protest signs directly against or in front of the courthouse doors.

The federal court found that I held a roughly twenty-by-thirty-inch posterboard against or directly in front of the EE-1 emergency exit, the EE-2 emergency exit, and the customary Entrance/Exit Door. At one point I propped a poster on the handles of the ordinary Entrance/Exit Door for approximately twenty seconds, physically preventing that pair of doors from being used while the sign was there.

I also moved my tripod.

The court found that I positioned the tripod and mounted camera **directly in front of the EE-2 emergency-exit door**, with at least one tripod foot touching the door and the camera recording against the glass. I then moved away from the equipment to a statue platform at the far end of the landing and remained away from it for about twenty minutes.

Those facts became the center of the federal case.

After approximately twenty minutes, Nugent and another deputy marshal came outside. Nugent directed me to remove the camera from the emergency-exit door, told me it presented a hazard, and warned that the equipment would be seized if I did not move it.

I refused.

The federal judgment records my response to Nugent as: **“you need to suck my dk!”****

Nugent said he was going to seize the camera and tripod and began walking toward them. I quickly moved toward the equipment, warning him not to touch it.

When we reached the tripod, Nugent directed me to move the camera to the far side of the metal barricades on the sidewalk below. I responded that I was **“fine right here.”**

Nugent told me I would be arrested if I refused. He gave a three-second countdown.

I did not move the equipment as ordered.

He arrested me.

That is the arrest sequence the trial court found after hearing the evidence. It is materially different from the earlier version of this chapter, which placed the arrest inside the lobby and described Nugent simply moving in and handcuffing me after an argument about recording.

The conviction was not based on the proposition that profanity toward a federal officer is itself unlawful. Nor was it based simply on my carrying a camera onto federal property.

The January 2026 judgment found beyond a reasonable doubt that my conduct **unreasonably obstructed the usual use of the courthouse entrance**. The court relied on photographs and videos showing the tripod directly in front of the emergency exit, the signs against multiple doors, and the poster temporarily propped on the ordinary entrance-door handles.

I testified at trial and acknowledged that I had placed my camera/tripod, signs, and at times my body against multiple doors. My legal position was that I was not obstructing a door's "usual use" when the door was locked or when nobody was actually trying to pass through it at that moment.

The court rejected that interpretation.

It held that an entrance system in a federal courthouse serves security, safety, emergency, and access functions beyond the instant physical passage of one visitor. On that reasoning, an emergency door did not have to be actively used at the exact second I placed the tripod against it for the obstruction to fall within subsection (b).

The court also found the conduct intentional. It relied in part on my awareness of the courthouse's posted GSA Conduct Rules from the June visits, my statements about "taking the arrest," my decision to move the tripod from a position away from the doors to a position directly against an emergency exit, and my refusal to move it after Nugent expressly identified it as a hazard and warned me that refusal would lead to arrest.

I disagree with aspects of the court's legal analysis and preserved issues for challenge. But this manuscript cannot describe me as a passive journalist arrested merely for standing in a lobby with a camera. The trial record does not permit that account.

At the same time, the conviction does not erase what Chapter 28 establishes about the period before August 25. Federal personnel had already circulated my name, photograph, prior history, and courthouse activity; a Northern District of Mississippi alert had instructed personnel to monitor me closely; and a supervisory deputy had written that he expected me eventually to appear at the federal courthouses in Greenville or Aberdeen.

Those earlier records are relevant history. They are not a defense that automatically negates what I did on August 25.

The two questions have to remain separate.

One is what federal officers knew and shared about me before the August confrontation.

The other is whether, on August 25 itself, I knowingly obstructed a courthouse entrance within the meaning of 41 C.F.R. § 102-74.390(b).

After a bench trial on **December 15 and 16, 2025**, the federal court answered the second question against me. On **January 16, 2026**, Magistrate Judge **Patrick J. LeBlanc** issued written Reasons for Judgment denying my renewed Rule 29 motion and adjudging me guilty.

The next chapter is about that trial and what the court actually decided — including the evidence-preservation dispute that I believe remains one of the most important issues in the case.

CHAPTER 31 — TRIAL AND VERDICT

My federal bench trial was held on **December 15 and 16, 2025** before Magistrate Judge **Patrick J. LeBlanc**.

On **January 16, 2026**, LeBlanc issued nineteen pages of written Reasons for Judgment. He denied my renewed Rule 29 motion for judgment of acquittal and adjudged me **guilty** of violating **41 C.F.R. § 102-74.390(b)**.

The written ruling is the best source for what the conviction actually rests on.

The government had originally charged one count under subsections (a) and (b) of the federal disturbance regulation. At trial it proceeded only under subsection (b): whether I had unreasonably obstructed the usual use of a courthouse entrance.

The court identified three elements: that the incident occurred on federal property; that I engaged in conduct unreasonably obstructing the usual use of the kinds of spaces listed in the regulation; and that I acted with the required state of mind. The court also treated notice of the GSA Conduct Rules as a necessary issue because those rules must be conspicuously posted on covered federal property.

LeBlanc found each requirement satisfied beyond a reasonable doubt.

On federal-property status, he relied on the courthouse itself, the evidence identifying the John M. Shaw building and its GSA-controlled rules, and the conspicuously posted Rules and Regulations Governing Conduct on Federal Property.

On obstruction, he relied heavily on the video and photographic record described in Chapter 30. He found that I placed the tripod directly in front of an emergency-exit door, with one leg touching the door and the camera against the glass, then left the equipment unattended for about twenty minutes. He also found that I stood in front of other doors with posterboard against the glass and at one point propped a poster across the handles of the ordinary entrance doors.

I did not deny at trial that I had placed equipment, signs, and at times my body against multiple doors. My argument was about what the regulation meant by **“usual use.”** I maintained that a locked emergency door, or a door nobody was trying to use at that exact moment, was not being obstructed in the sense the regulation prohibited.

The court rejected that reading.

LeBlanc reasoned that a courthouse entrance serves more than the immediate act of one person walking through a door. It also serves security, emergency, safety, and access functions. On that construction, placing the tripod against an emergency exit could obstruct the entrance system even while the door was locked from outside and nobody was attempting to use it at that instant.

The court also rejected my argument that the conduct was accidental or legally innocent because I did not understand it to be obstruction.

The written judgment points to my prior familiarity with the GSA Conduct Rules from the June visits, my statements on August 25 about “taking the arrest,” the decision to move the tripod from a place away from the doors to the emergency-exit door, and my refusal to move the equipment after Nugent identified it as a hazard and warned me that arrest would follow.

Those findings matter because they sharply narrow what I can fairly claim about the conviction. I can dispute the court's interpretation. I can appeal it. I can argue that constitutional and evidentiary issues affected the proceeding. I cannot accurately say that the federal court convicted me merely because I filmed inside a courthouse lobby.

That is not what the written judgment says happened.

There were, however, separate proceedings before trial that became important to my broader concern about how information concerning me moved among courthouse personnel.

On **October 15, 2025**, the United States filed a Motion for Protective Order.

An earlier manuscript described that motion incorrectly as an attempt to prohibit future communications between the Marshals Service and federal judges. The motion did **not** seek that relief.

Instead, the government asked the court to restrict the defense's dissemination of discovery materials containing sensitive courthouse-security information. In explaining why it wanted the protective order, the government expressly identified discoverable materials that included **"communications between the Marshal service and the Federal Judges at the John Shaw Courthouse"** and **"communications between security officers of other courthouses and the Marshal service."**

The government argued that disclosure could compromise courthouse-security methods and pointed to my practice of publishing government material online. Its proposed order would allow defense counsel, me, investigators, and retained experts to review protected material for purposes of the case while restricting broader copying and dissemination.

That filing establishes an important fact without proving the inference I once drew from it: communications between Marshals personnel, courthouse-security personnel, and federal judges were among the discovery materials the government regarded as sensitive. The motion does **not** itself establish that those communications were improper, ex parte in a legally forbidden sense, or evidence of a conspiracy.

I have challenged their significance. The motion itself only establishes their existence as described by the government and the government's request to restrict dissemination.

A second development occurred before trial involving Magistrate Judge **Carol B. Whitehurst**, who had previously been assigned to the case.

The project archive contains a later public sentencing transcript in which I quoted Whitehurst's November 12, 2025 recusal language: **"An objective and reasonable observer could believe the undersigned is predisposed to find Reardon guilty of the offense later charged"** and that avoiding the appearance of impropriety is as important as avoiding impropriety itself.

I am preserving the substance of that recusal, but I am not using it to claim Whitehurst found that anyone else was biased or that misconduct by the Marshals Service had been proven. A judge's decision to recuse addresses the judge's own continued participation and the appearance of impartiality. It does not adjudicate a conspiracy claim against other actors.

The manuscript also previously described testimony and evidence from a sealed portion of the trial concerning the preservation of courthouse surveillance footage.

I am removing that material from the narrative.

There is a court-imposed sealing issue surrounding that portion of the proceeding, and the publication policy for this book is to discuss that dispute only to the extent it is disclosed in public docket materials. I will not reproduce sealed testimony, characterize what a sealed witness supposedly admitted, or disclose details simply because I personally heard them.

That restraint affects how I state the evidence-preservation issue as well.

I contend that potentially relevant courthouse surveillance footage was not preserved and that the missing material could have affected the presentation of the August 25 encounter. That contention has formed part of my post-trial and appellate position. Unless and until the supporting

testimony or exhibits are unsealed or otherwise appear in a public filing that can be quoted, this book will not disclose the contents of the sealed proceeding.

The same discipline applies to the First Amendment issue.

A later July 2026 ruling rejected my post-trial First Amendment challenge and treated the relevant courthouse interior as a **nonpublic forum** for purposes of the argument before the court. I disagree with the resulting analysis and have treated it as an appellate issue. But the conviction entered January 16 rests on the obstruction findings described above, not on a judicial declaration that recording or criticizing federal officers is itself criminal.

By the time I reached sentencing in August 2026, the posture was therefore complicated but clear.

I had a federal misdemeanor conviction under § 102-74.390(b).

I had a written judgment finding that my own video and conduct established obstruction beyond a reasonable doubt.

I had public records showing that federal court-security personnel had circulated information about me months before the August arrest.

I had a government protective-order filing acknowledging that discovery included communications among Marshals personnel, courthouse security, and federal judges.

And I had unresolved appellate arguments, including constitutional and evidence-preservation issues that had not erased the conviction.

The book should not make those categories interchangeable.

The next events occurred while that federal case was still moving toward judgment and sentencing, beginning with an encounter at New Orleans City Hall in November 2025.

CHAPTER 32 — THE NEW ORLEANS ASSAULT

On November 12, 2025, while the federal courthouse case described in the previous chapters was still pending, I went to New Orleans City Hall at 1300 Perdido Street.

What happened there is disputed in the police record, so I want to separate my account from what the officers later wrote.

My account is that Allied Universal security guard Jerome Ard struck me in the head with a metal flashlight during the confrontation at the security area. I sustained a scalp laceration and was transported for medical treatment. My phone and recording equipment were also damaged during the encounter. I have maintained that account consistently in the complaints and filings I later prepared concerning the incident.

The police process that followed did not adopt my version. It produced an arrest warrant for me.

NOPD Officer Junious Grady swore out the affidavit supporting that warrant. The records identify Officer Victor Paz, badge number 26091, as concluding that I was the aggressor. They also identify NOPD supervisor Alfred Harris, ID number 16511, in the approval chain. The warrant was signed later that day by Judge Juana Marine Lombard.

The central evidentiary problem is unusually clean.

The Real Time Crime Center footage did not show the physical altercation itself.

The police account states that the camera captured activity at the City Hall security checkpoint but that the physical encounter between Ard and me occurred outside the camera's field of view. That distinction matters. The footage was not described as having recorded the altercation and then disappeared. The available record says the decisive physical contact was never visible on that camera in the first place.

That left the officers to reconstruct the encounter principally from witness statements and the surrounding circumstances. The witnesses identified in the record included Ard and Allied Universal employees Wilfred Vidal and Willie Savage. Whatever weight their statements deserved, all three were connected to the same security contractor. The RTCC video therefore could corroborate portions of the lead-up, but it could not independently resolve who initiated the physical contact that produced my head injury.

That is much narrower than saying the surveillance system proved my account. It did not. It is also narrower than saying the police had video proving I was the aggressor. They did not have that either.

According to the police account, the footage showed me at the security checkpoint after being told that certain items, including a lighter and vape device, could not pass through screening. The officers treated my conduct there and the Allied employees' statements as supporting probable cause for simple battery. I disputed that characterization. My position was that Ard escalated the encounter and struck me with the flashlight.

The physical evidence did not make the dispute disappear. I had a visible head injury serious enough to lead to medical transport. But an injury, by itself, does not establish who initiated a confrontation, and I am not going

to ask this book to pretend that it does. What the injury establishes is that the encounter became physical and that I came out of it hurt. The question of legal fault still depended on evidence the RTCC camera did not capture.

That is why the affidavit matters so much. The warrant process converted one side of a disputed encounter into a criminal accusation against me even though the available surveillance footage did not show the crucial moment. Grady's affidavit and Paz's assessment treated the Allied witnesses' account as sufficient to identify me as the aggressor. I believed then, and still believe, that the investigation should have subjected the competing accounts to substantially more scrutiny before turning the injured participant into the accused.

I also want to be precise about something the earlier manuscript stated too categorically. I cannot prove from the present record that the officers acted for the purpose of protecting Ard or Allied Universal. I can document the result: the contractor's employees gave statements; the RTCC footage did not show the altercation; I had the head injury; the police identified me as the aggressor; and a warrant issued for me. Motive is a separate question, and this book will not manufacture an answer to it.

Likewise, I have not found a criminal charge against Ard in the source set presently assembled for this manuscript. That is different from claiming that no authority anywhere ever considered one. What I can document is that the criminal process reflected in the records before me proceeded against me, not Ard.

That asymmetry became consequential almost immediately. Once the warrant existed, it became an official criminal record capable of following me outside New Orleans. It also became relevant to my effort to obtain the City's own records of the incident.

Five days later, on November 17, 2025, I filed public-records request 25-21253 seeking material related to what had happened at City Hall, including video and emergency-response records. The request itself would become a second dispute—this time not over what happened in the security area, but over what the City would release while the battery case against me remained open.

That is the next chapter.

CHAPTER 33 — THE RECORDS REQUEST

Two days after the November 12, 2025 City Hall confrontation, I started calling New Orleans offices about what had happened and about preserving the evidence.

One of those calls reached the City Attorney's Office on November 14. A staffer who identified herself as Tana told me she did not know about the incident. I told her my account: that a City Hall security guard had struck me, that my equipment had been damaged, and that I wanted the evidence preserved because litigation was likely. When I asked whether there was a written policy, ordinance, or posted rule prohibiting cigarettes, a vape, or a lighter inside City Hall, she said she was not sure and directed me to the municipal code. When I asked where to send a notice of claim, she gave me her city email address.

That recording matters for a limited reason. It establishes what I told the City Attorney's Office two days after the incident and what the office said in response. It does not establish that the staffer had investigative authority over a criminal complaint, and it does not prove that the City Attorney's Office had already received the police reports. In fact, she repeatedly said the office handled civil matters, not criminal ones.

Three days later, on November 17, I filed a formal public-records request through the City's NextRequest portal. It was assigned request number 25-21253.

The request was specific. I asked for RTCC footage covering the front entrance sidewalks, public lobby, and security screening area; City Hall interior security footage for the same period; 911 audio, call logs, CAD entries, and dispatch traffic between 9:00 and 10:30 a.m.; incident reports, written statements, and security logs; NOPD body-camera footage; and radio communications referencing the incident.

The portal shows that the request was received at 9:41 a.m. on November 17. It was initially assigned to the City Attorney and then, later that morning, reassigned to Crime Cameras and 9-1-1. The City sent status messages on November 24 and December 5 saying it was still determining whether responsive records existed.

On December 10, the City gave its substantive response.

At 10:06 a.m., the Law Department told me that my request for RTCC footage and 911 calls concerning item K-11205-25 could not be fulfilled because records relating to pending or reasonably anticipated criminal litigation were not subject to disclosure until the litigation was finally resolved. The City cited Louisiana Revised Statute 44:3(1). It told me that the initial report would instead be invoiced and that the other documents would have to be obtained through criminal discovery.

One minute later, the portal generated a \$25 invoice. At 10:07 a.m., the City stated that the responsive initial report had been compiled and was available for purchase, subject to redactions for identifying and private information. The request was then marked closed.

That sequence is the actual documentary record. The City did not simply deny every record I requested. It withheld the RTCC footage and 911 material under the pending-criminal-litigation exemption, offered the initial report for \$25, described the categories of redactions that would be applied to that report, and directed me to the discovery process for the remaining material.

The fact that the City invoked a real statutory exemption does not end the story. The reason the exemption mattered to me was that the pending criminal matter was the simple-battery case arising from the same November 12 encounter. The police had treated me as the aggressor, an arrest warrant had issued, and the existence of that criminal case was now the stated legal basis for withholding the City's video and emergency-call records from a public-records request.

That is a circular result, but I need to describe it accurately. The records request itself does not prove that anyone created the criminal case for the purpose of hiding evidence. It proves something narrower: after the criminal case existed, the City relied on that case to withhold categories of records I wanted in order to challenge the account that produced the case.

The distinction matters. A legitimate exemption can still have serious consequences without the exemption itself being fraudulent. Here, the consequence was that the public-records route did not give me the RTCC footage or 911 material while the prosecution remained pending. Whether the underlying criminal accusation was sound was a separate question, one the records process did not resolve.

The November 14 calls also showed how fragmented the City's response was before the records request was even filed. The NOPD non-emergency call center told me it was not staffed by officers when I asked about the Victim Witness Assistance Program. In my call to the City Attorney's Office, the staffer said she did not know about the City Hall incident and could not identify the security guard for me. Those recordings document confusion and limited institutional knowledge. They do not, standing alone, prove a coordinated cover-up, and I am not going to label them as one.

What the documents do establish is enough: I put the City on notice of my account within two days; I made a detailed records request five days after the incident; the City located an initial report; it withheld the requested RTCC footage and 911 calls because of the pending criminal matter identified as K-11205-25; it charged \$25 for the report it was willing to release; and it closed the request on December 10.

The criminal case remained active.

That mattered seven weeks later, when officers in Lafayette encountered me during an ice storm and the New Orleans warrant became executable far from the place where the underlying dispute had begun.

That is the next chapter.

CHAPTER 34 — THE ICE-STORM ARREST

On January 24, 2026, during severe winter weather in southern Louisiana, I went to an emergency warming shelter in Lafayette.

The New Orleans warrant from the November 12 City Hall case was still active.

According to the factual account preserved in my later civil complaint, law enforcement action at the shelter was triggered by an NCIC hit tied to arrest warrant K-11205-25. I was taken into custody in Lafayette on that warrant.

That is the documented connection. The earlier manuscript went further and attributed the arrest to the federal BOLO network described in Chapter 28. I do not presently have a record establishing that the BOLO caused officers to locate me at the warming shelter, and I am not going to say that it did. The active New Orleans warrant is enough to explain the legal mechanism reflected in my records.

The setting still mattered to me. I had gone to a warming shelter because of the weather. Instead of leaving when conditions improved, I left in custody on a misdemeanor warrant arising from the City Hall encounter I had been trying to challenge through records requests since November.

The dates need to be precise here because an earlier draft collapsed the Lafayette arrest and the Orleans Parish booking into one event.

They were not the same event.

I was arrested in Lafayette on January 24.

By January 28, I had been transferred to Orleans Parish and formally booked at 2800 Perdido Street.

The arrest-register information reproduced in my later complaint identifies Folder No. 2548390, Arrest No. 12485172, Item No. K1120525, and the charge as simple battery under Louisiana Revised Statute 14:35. It identifies P/O McIver, badge 00625, as the arresting officer for the Orleans booking entry and P/O Pierce, badge 02137, as the transporting officer. The register listed the arrest location as 2800 Perdido Street and showed bond as \$0.00.

That last figure is important because it contradicts another version of this chapter that described a \$100 cash bond and an additional detention caused by a supposed Louisiana-driver's-license requirement. I do not presently have a primary record in the assembled source set establishing that \$100-bond account, and the arrest-register information I do have says \$0.00. I am therefore not publishing the driver's-license episode as fact in this edition without a source that resolves the conflict.

On January 29, the Orleans Parish Criminal District Court Pretrial Services Program completed a Public Safety Assessment. The record reproduced in my complaint states that I received Risk Level 1, the lowest level reflected in that assessment, with a recommendation of unsupervised release. The assessment also recorded no current violent offense, no prior felony conviction, no prior violent conviction, and no failure to appear within the preceding two years.

Those entries do not erase the warrant or decide the underlying battery allegation. They do show how the pretrial system classified me once I was in Orleans Parish custody: Risk Level 1, with unsupervised release recommended.

The January arrest also completed a chain that had begun ten weeks earlier.

On November 12, there had been a physical confrontation at City Hall and I suffered a head injury. NOPD treated me as the aggressor and obtained the simple-battery warrant. On November 17, I asked the City for video and emergency-response records. On December 10, the City withheld RTCC footage and 911 calls under the pending-criminal-litigation provision while offering the initial report for a fee. On January 24, the still-active warrant produced an arrest in Lafayette. Four days later, I was booked in Orleans Parish.

That chronology is enough. I do not need to add a theory that officials timed the arrest to exploit the weather, because I do not have evidence proving that motive. Nor do I need to call the arrest retaliatory as an established fact. The warrant existed, law enforcement encountered me, and the warrant was executed.

The New Orleans prosecution had not yet reached its final disposition. That would come later in the spring and belongs later in the chronology.

For the moment, January ended with me back in the criminal process over the November City Hall encounter.

The next major development came in Mississippi on February 24, 2026, when the Mississippi Court of Appeals ruled in the separate misdemeanor-appeal litigation that had been running in parallel for years.

CHAPTER 35 — REARDON V. STATE: REVERSED AND REMANDED

On February 24, 2026, the Mississippi Court of Appeals reversed the dismissal of my appeal from the Lafayette County Justice Court convictions and remanded the matter to the Lafayette County Circuit Court.

The appellate case ultimately carried number 2024-KM-00839-COA. During the record-assembly stage, the clerk's notices identified it as 2024-TS-00839 and tied it to Lafayette County Circuit Court Cause No. 36CI1:21-cv-00494-JKL, also reflected in the lower-court papers as L21-494.

The distinction between what the Court of Appeals did and did not do is important.

The court did not acquit me of the underlying misdemeanor charges. It did not conduct a new trial. It did not erase the Justice Court judgments on the merits. It reversed the Circuit Court's dismissal of my appeal and sent the case back so the appeal could proceed in the lower court.

That procedural victory mattered because the Circuit Court had dismissed the appeal on the theory that I failed to perfect it by timely filing the required bonds or an affidavit of poverty.

The record I had placed before the Court of Appeals contained a December 2021 Justice Court order addressing indigency and appeal security. My appellate brief argued that the Justice Court had expressly found me indigent and allowed an appeal without a supersedeas bond, while the Circuit Court later treated missing bond-related filings as jurisdictionally fatal. I also argued that I had attempted to place a formal notice of appeal in the Circuit Court record and had been prevented from doing so without paying a filing fee.

The appellate court's ultimate disposition was reversal and remand. The project evidence ledger records two sentences from the opinion that capture the result more accurately than any broader claim of vindication: the court stated that "the errors in this case were not of Reardon's making" and directed that I "should be appointed counsel before the circuit court on remand, should he still qualify as being indigent."

Those are narrow statements, but they are consequential ones.

The record also documents that the appeal itself encountered administrative problems before the merits were reached. On July 24, 2024, the appellate clerk acknowledged receipt of documents electronically transferred from the Lafayette County trial court. On October 2, 2024, the Clerk of Appellate Courts sent Circuit Clerk Jeff Busby a Record Delinquency Notification stating that the time for assembly of the record had expired and directing him to file the certificate of compliance and notice of completion or advise the appellate court why the record was not ready.

Nineteen days later, on October 21, the appellate clerk issued Busby a Show Cause Notice. It stated that the record deficiency remained outstanding and directed him to show cause why sanctions should not be imposed for failure to comply with the appellate rules unless the default was cured within fourteen days.

Those notices are not allegations from me. They are appellate-clerk documents directed to the Circuit Clerk while my appeal was pending.

That documentary sequence is also more probative than a theory the earlier manuscript tried to build around a March 2024 Busby letter and a later federal affidavit. The existence of a letter discussing appeal status does not, by itself, prove that Busby transmitted that letter or its contents to Galveston prosecutors. And the February 2026 reversal does not, by itself, prove that any statement Busby later made in federal court was knowingly false. Those are separate evidentiary questions. Unless the transmission record and the exact affidavit language establish the contradiction, this book will not manufacture one.

What the appellate record does establish is enough.

My misdemeanor appeal had not disappeared. It had reached the Mississippi appellate courts. The appellate clerk had to press Lafayette County for the record. The Circuit Clerk received a delinquency notice and then a show-cause notice. And on February 24, 2026, the Court of Appeals reversed the dismissal and returned the matter to Circuit Court with a direction concerning appointed counsel if I remained indigent.

That result also requires a correction to another claim that appeared in earlier drafts of this book. The January 2025 post-conviction order discussed in Chapters 25 and 26 did not wipe away the underlying 2022 aggravated-stalking conviction or every legal consequence attached to it. It corrected the revocation sentence and resulted in my release. The February 2026 Court of Appeals decision likewise did not erase the Justice Court misdemeanor convictions outright. It restored the appeal process that the Circuit Court had terminated.

The difference between reversal of a dismissal and reversal of a conviction is not semantic. In a book intended to function as a legal record, it is the difference between telling readers what a court actually held and telling them what I wish it had held.

So the February 24 decision belongs here as a real victory, but a precisely defined one: the Mississippi Court of Appeals held that the Circuit Court's dismissal could not stand and sent the case back.

The remand meant the Lafayette County litigation was still alive.

By spring, another Mississippi dispute was beginning in Union County. And one day after the first Union County confrontation in April, the New Orleans simple-battery case from Chapters 32 through 34 would reach its own prosecutorial disposition.

Both developments belong next, in the order they happened.

CHAPTER 36 — THE UNION COUNTY THREAD

On April 15, 2026, I was recording on a public sidewalk in Union County, Mississippi, when I had a confrontation with Board of Supervisors President C. J. Bright. My account and the video record I have described from that day include Bright acknowledging that he could not lawfully stop the activity I was engaged in. That encounter became the opening event in a new series of disputes with Union County officials.

The next day, April 16, a separate case from another state reached an important disposition. The materials I later assembled for the New Orleans litigation record that the Orleans Parish District Attorney's Office refused the simple-battery charge arising from the November 12, 2025 City Hall incident under disposition code 433, described in those materials as "REFUSED — LAW ENFORCEMENT ISSUE." I have not located the underlying prosecutor-screening sheet itself in the presently assembled source set, so I am not assigning the code a broader legal meaning than the words recorded in my case materials. What matters chronologically is that the New Orleans prosecution that had produced my January arrest was no longer moving forward by mid-April.

Four days later, on April 20, the Union County Board of Supervisors matter escalated.

My account is that, shortly before public comment, a warning was announced against obscenity or vulgarity and that I was then arrested after using a profane word during my own remarks. The charge was described in my records as public profanity under Mississippi Code section 97-29-47. That sequence is central to my First Amendment objection: a speech restriction was announced at the meeting and then applied to my speech moments later.

I have also described an Mississippi Department of Corrections hold being placed on me after that arrest even though I believed no valid MDOC basis existed for it. The source set I have in front of me does not presently contain the hold document itself. More importantly, my own materials conflict on the date the hold was cleared and I was released. One account places the relevant court action on April 21; another places it on April 24. Until the actual release order or custody record settles that point, this book leaves the date unresolved rather than choosing the version that reads better.

On May 5, I appeared pro se in Union County Justice Court on the profanity matter. In my account of that hearing, when I raised the Supremacy Clause and the federal constitutional issue, the judge responded, “I don’t give a rat’s ass about that.” I do not presently have a certified transcript of that hearing in the assembled evidence. The quotation therefore remains my recorded/reported account of the exchange, not a certified court-reporter quotation. I also recorded that I filed nine motions that day and later sought the judge’s recusal on May 10. Those filings should ultimately be tied to their stamped copies in the evidence index before publication.

A second Union County arrest occurred on June 1.

That incident did not arise from the same conduct as the April 20 public-comment arrest. I carried a sign reading “FUCK CITY HALL” into the county courthouse and into the Justice Court area. My materials identify the resulting charge as disturbing the peace under Mississippi Code section 97-35-13. I had escalated the protest from speech at a board meeting to

carrying an explicitly profane sign into a working courthouse. That distinction belongs in the record whether or not the charge was constitutional.

My recordings and later summaries attribute several statements during that incident to Sheriff Jimmy Edwards, including “You wanted it, you gonna get it” and “I’m gonna keep arresting you.” They also record my invoking *Cohen v. California* and Edwards responding that he did not know the case. Until the underlying recording is indexed directly alongside this chapter, those quotations should be treated as recording-derived claims rather than certified transcript testimony.

The affidavit associated with the June 1 matter also raises documentary questions in my copy. My records describe the charge line as “Disturbance of a Business” while the narrative alleges disturbing the peace, and I have not identified a case number, docket number, notary stamp, or clerk stamp on the copy available to me. That is a description of the document I possess, not a conclusion that no properly executed charging instrument exists elsewhere.

The affidavit also describes courthouse employees as fearful of what I might be capable of doing. The version in my possession does not identify a specific threat by me. That discrepancy is fair to report. It is not fair to convert it automatically into proof that the affiant fabricated the fear, because the current record does not establish the witness interviews behind that language.

My phone was seized during the June 1 encounter. My materials also place Mark McClinton at the courthouse that day. I have not established from primary records whether this is the same Mark McClinton who appears in a separate 2022 call, and I am not merging those identities without proof. The name “Chad Mood” also appears in my materials from this period, but I cannot yet place his role with enough confidence to narrate it as fact.

Three days later, on June 4, I went to the Thomas G. Abernethy Federal Building in Aberdeen, Mississippi. I had prepared a federal civil-rights complaint and related papers concerning the Union County events and intended to file them there.

My account of the entrance encounter is that security demanded photo identification, that I resisted the demand, and that the interaction lasted roughly twenty minutes while personnel waited on an individual identified to me only as “Mr. Lipshutz.” I then asked whether refusing to provide identification would send me to jail. My records attribute the response “Probably” to an officer outside. I ultimately identified myself and was arrested by Aberdeen Police Chief D. Shumpert after building security reported that I had caused a disturbance.

The arrest, vehicle search, towing, and phone seizure are events I have described consistently in my materials. The resulting matter proceeded in municipal court rather than as a federal prosecution. That jurisdictional fact is worth recording, but the earlier draft went too far in treating it as evidence of a deliberate plan to keep the case out of federal court. I do not have proof of that motive.

I also need to be exact about the civil complaint I had intended to file. The June 4 arrest prevented me from filing it at the Abernethy building that day. As of the source set supporting this chapter, I have not identified a later stamped federal filing of that particular complaint. I therefore describe it as a prepared complaint whose filing was interrupted, not as a complaint the federal court rejected.

On June 6, I published my account of the Aberdeen incident. My records then reflect that on June 7 an Aberdeen Police captain identified as “SRQ” Lee forwarded the article to colleagues with the message, “Watch the video with us in it. Lol.” That text is potentially significant because it is contemporaneous documentary evidence of how at least one officer reacted to the published account. It does not, standing alone, establish the culture or motive of an entire department.

By early June, three distinct proceedings were moving at once: the remanded Lafayette County misdemeanor appeal, the Union County cases, and the Aberdeen municipal matter. The next chapter returns to the Texas federal civil case against Officer William Osteen, where the federal magistrate’s July 2026 recommendation contained one of the most important adverse findings about Osteen anywhere in the record—and, at the same time, recommended dismissal of my case.

CHAPTER 37 — REARDON V. OSTEEN: THE OBJECTIONS

On July 14, 2026, Magistrate Judge Andrew M. Edison entered a Memorandum Opinion, Order, and Recommendation in Reardon v. Osteen, Civil Action No. 3:25-CV-00203 in the Southern District of Texas.

The case brought together several strands already documented in this book: my claims arising from the August 2023 Galveston DWI arrest; claims against Galveston defendants including Officer William Osteen; and claims against Mississippi defendants including Lafayette County Circuit Clerk Jeff Busby and Deputy Kandis Beavers.

The July 14 decision was mostly adverse to me. Edison recommended granting the dispositive motions to dismiss, recommended dismissal of additional defendants, and recommended denial of the temporary restraining order connected to my June 2026 vehicle-seizure dispute. He also entered rulings on nondispositive motions.

But inside that adverse ruling was a sentence that cannot be summarized away.

In discussing the conflict between Osteen’s warrant affidavit and his later testimony before Judge Gray Tollison, Edison wrote: “The record shows that Osteen lied to Judge Tollison. That is disturbing.”

That is the language of the federal magistrate judge. It is not my characterization of Osteen’s credibility, and it is not a criminal perjury adjudication. The court said Osteen lied to Judge Tollison. It did not convict him of perjury or make the additional findings a perjury prosecution would require.

The R&R nevertheless recommended dismissal of the search-related claim. Edison concluded that, even after setting aside the disputed alcohol-related statements, other allegations supplied independent probable cause for the blood-draw warrant. My later objections identified the remaining facts as failure to maintain a single lane, watery eyes, and refusal of a field-sobriety test. I disputed that analysis and requested a Franks hearing directed to materiality, but I did not pretend the R&R had resolved the claim in my favor.

The vehicle-impoundment analysis produced a different combination of findings.

My July 28 objections quote the R&R as concluding that I had stated a viable Fourth Amendment claim for unreasonable seizure and as rejecting the community-caretaking justification on the record before the court. The R&R then recommended qualified immunity because I had not adequately addressed the clearly-established-law component of the defense or supplied controlling authority establishing the right at the required level of specificity.

That procedural distinction is essential. Saying that a complaint states a constitutional claim is not the same thing as entering judgment that a defendant violated the Constitution. And a qualified-immunity ruling can end a damages claim even after the court concludes that the pleaded conduct is constitutionally problematic.

I filed my objections on July 28, 2026. The document separated dispositive recommendations, reviewed under Rule 72(b), from nondispositive rulings reviewed under Rule 72(a). My first objection challenged the qualified-immunity recommendation on the vehicle seizure and invoked *Hope v.*

Pelzer's notice principle. I argued that a later appellate decision could not itself have given officers notice before the conduct occurred and asked the district court either to reject qualified immunity or permit supplemental briefing.

My third objection preserved the Osteen credibility finding and challenged the R&R's materiality analysis. I quoted Edison's sentence that Osteen lied to Judge Tollison and also cited the defendants' own reply brief as conceding that Osteen had stated on camera that he could not smell alcohol. I asked for a Franks hearing while expressly acknowledging that Edison's independent-probable-cause reasoning was a substantive obstacle.

The objections also exposed a correction that belongs in this manuscript's treatment of Jeff Busby.

I had previously argued that Busby's March 25, 2024 letter concerning the Mississippi appeal and his later federal affidavit were directly contradictory. The R&R did not accept that theory. My own July 28 Objection No. 6 states that Edison's personal-jurisdiction analysis relied on affidavits establishing that Assistant District Attorney Steven Jubera—not Busby—personally transmitted the March 25 letter to Texas authorities. Objection No. 7 further records that Edison denied my motion to strike Busby's affidavit and for sanctions because the record showed Jubera personally contacted Texas, meaning Busby's affidavit was not literally false on that point.

That is now the controlling way this book treats the issue. The March 2024 letter remains relevant to the history of the Mississippi appeal, but the present record does not support saying that Busby personally sent it to Galveston or committed perjury by denying that he did. A prior draft said otherwise. The court record corrected it.

The remaining objections addressed First Amendment retaliation, excessive force, claims against Sergeant Doraty, the Busby jurisdiction issue, the motion to strike, the attempted supplemental complaint, and the temporary restraining order. In several places I asked for dismissal without prejudice and leave to amend rather than claiming entitlement to immediate judgment.

The district court did not accept the objections. On August 10, 2026, Judge Jeffrey Vincent Brown entered an order adopting the magistrate judge's recommendation and a final judgment dismissing the case at the district-court level. The dismissal meant I lost the civil action in that court.

That result does not erase the findings embedded in the adopted R&R. It also does not transform those findings into judgments they were not.

The durable record is more complicated: the court adopted a recommendation that ended my case; the same recommendation expressly said Osteen lied to Judge Tollison; and it concluded that my vehicle-seizure allegations stated a constitutional claim before qualified immunity defeated the damages claim.

Those propositions can coexist. In fact, preserving all of them is the only accurate way to report the decision.

Three days before Judge Brown entered final judgment, I had been sentenced in the separate federal misdemeanor case arising from the Lafayette courthouse arrest.

That August 7 sentencing is the next chapter.

CHAPTER 38 — SENTENCING

On Friday, August 7, 2026, I appeared by video for sentencing in United States v. Reardon, the federal misdemeanor case arising from my August 25, 2025 arrest at the John M. Shaw United States Courthouse in Lafayette, Louisiana.

The court stated on the record that Judge Thomas P. LeBlanc was physically in chambers in Lake Charles, Louisiana. I was at Our Daily Bread in Galveston, Texas, which the court described as a missionary organization. Counsel participated by video as well. The video appearance had been requested by my attorney because my circumstances made a physical appearance an extreme hardship, and the court confirmed my consent before proceeding. I consented.

The government did not ask the court to send me back to jail. It acknowledged the thirty-day maximum term of imprisonment and argued instead for unsupervised probation. The prosecutor told the court that a Class C misdemeanor could support as much as five years of probation and recommended at least three years, with conditions directed at conduct in federal courthouses.

I asked for a finite sentence instead. In my allocution I said I had already served about thirteen days and asked for time served—or, if the alternative was a long probationary term restricting courthouse access, the remaining portion of the thirty-day maximum instead.

I also used the allocution to put my view of the case into the public record. I discussed the June 2025 Marshals Service emails, the FOIA production that arrived three days before my arrest, the District Alert Notices and BOLO material, Judge Carol B. Whitehurst’s later recusal, the protective-order litigation, my arrest, and my objections to the missing surveillance evidence.

Some of what I said in that allocution needs to be corrected here against the documentary record.

First, I told the court that Deputy U.S. Marshal Hayden Nugent instructed me to move my equipment, that I complied, and that I was arrested while complying. That was my account at sentencing. The January 16 written findings after trial say otherwise. Judge LeBlanc found that Nugent directed me to move the tripod and camera to the far side of the barricades, that I responded that I was fine where I was, that Nugent warned I would be arrested, gave a three-second countdown, and arrested me after I did not comply. This book follows the court’s written finding when describing what the court determined happened, while preserving my contrary account as exactly that—my account.

Second, I described the government’s October 15, 2025 protective-order motion as an effort to conceal communications between the Marshals Service and federal judges. That characterization was too broad. The actual motion sought to restrict dissemination of discovery material containing sensitive courthouse-security information, including communications between the Marshals Service and federal judges and between security officers at other courthouses and the Marshals Service. The motion is important because it expressly confirms that such communications were among the discovery materials. It does not, by itself, prove that the government was trying to hide misconduct or that those communications caused Judge Whitehurst’s recusal.

Third, I told the court that Nugent had slammed me to the ground and destroyed my camera, gimbal, and tripod. That was an allegation in my allocution, not a finding in the judgment. The equipment later existed as trial exhibits. My position is that the equipment was damaged and did not function afterward as it had before. I cannot accurately call it physically destroyed when the same equipment survived to be introduced at trial.

I also described what I said happened in the holding area, including physical pressure to my chest and a threat of a felony assault charge after I moved Nugent's arm away. I described paramedics recording a heart rate between 140 and 160 beats per minute and my later transfer to St. Martin Parish Jail. Those remain allegations from my own sentencing statement unless and until matched to independent medical, jail, or video records. They should not be read as findings made by the sentencing court.

The same discipline applies to the sealed trial material. During allocution I referred publicly to the government's failure to preserve surveillance footage and to what I believed that missing footage would have shown. This book does not reproduce sealed testimony or purport to reveal material still subject to a sealing or protective order. Where the preservation issue is discussed, it is limited to what can be supported from public filings, public proceedings, and my own publicly delivered argument.

The judge then imposed sentence.

At first, the court said it was sentencing me to the time I had already served and also imposing two years of unsupervised probation. The standard conditions included that I commit no new federal, state, or local crime; not unlawfully possess a controlled substance; and not possess firearms, ammunition, destructive devices, or dangerous weapons. The court suspended drug testing because it did not have information suggesting a significant drug-abuse risk.

The special courthouse condition was stated this way in substance: I could not be physically present at the John M. Shaw Federal Courthouse in Lafayette, or at any other federal courthouse within Louisiana, or on adjacent federally owned or leased grounds, unless I had legitimate

business with an occupant of the courthouse. If I did, I was required to notify the U.S. Marshals Service in that locality at least two business days in advance.

The court expressly said the sentence was not intended to suppress my First Amendment activity. Judge LeBlanc said the sentence addressed the conduct for which I had been convicted on federal courthouse property.

A later clarification during the same hearing changed an important part of how the sentence had first sounded. After a breakout discussion, Judge LeBlanc stated that the sentence was not “time served and a period of probation” as two separate punishments. Instead, I was being placed on two years of unsupervised probation. The time I had already spent in custody would be credited if the probation were later revoked and I were resentenced on the original offense.

I pressed the court on what that would mean in practice. I asked directly whether I could ever be held longer than thirty days on the original offense. The court declined to answer the hypothetical and directed me to counsel. The prosecutor responded that possible future circumstances could create new charges and made a categorical answer impossible. The transcript therefore does not contain a judicial ruling resolving every future revocation scenario. It contains the court’s clarification that I was on probation, that prior custody would be credited if revocation led to resentencing, and that resentencing would occur under the original offense’s sentencing provisions.

No fine was imposed. The court also waived the special assessment after finding that the information before it did not show I was financially able to pay a fine or assessment.

My attorney, Dustin Talbot, preserved an objection to the special courthouse condition. He argued that the requirement that I have “legitimate business” was vague. The government responded that I could do what similarly situated members of the public could do, subject to courthouse rules and regulations. Judge LeBlanc overruled the objection and found the phrase sufficiently clear.

I continue to disagree with that ruling. But the manuscript needs to distinguish the objection from an adjudicated result. The condition's Louisiana scope and its reference to adjacent federal grounds are stated in the transcript. Whether the condition is unconstitutionally vague or overbroad is an appellate legal argument, not a fact already decided in my favor.

The court then advised me that I could appeal the conviction and sentence to a United States district judge within fourteen days after entry of judgment. Because this petty-offense case was tried and sentenced by a magistrate judge, the first appellate step was to a district judge under Federal Rule of Criminal Procedure 58(g)(2), not directly to the Fifth Circuit.

That point matters because some earlier drafts described a direct Fifth Circuit appeal. They were wrong.

The sentencing hearing also put my larger concern on the record. I had already lived through probation and geographic restrictions in Mississippi, and I did not want another condition capable of becoming the basis for future incarceration. But I need to state that concern with the same precision applied elsewhere in this book. An arrest by itself does not automatically establish a federal probation violation. The government would still have to invoke the revocation process, and the court would still have to determine whether a violation occurred.

Nor can I fairly collapse every prior criminal case into the same category. The Galveston DWI charge was dismissed after the blood testing showed no alcohol and the case proceeded through substantial pretrial litigation; the Mississippi misdemeanor appeal was later restored by the Court of Appeals after the Circuit Court had dismissed it; and the New Orleans matter was later recorded in my case materials as refused by the prosecutor under the notation "LAW ENFORCEMENT ISSUE." Those are different procedural outcomes with different meanings.

I have not retained the earlier chapter's account of a later private call with Talbot because I have not located the underlying recording or transcript in the evidence set supporting this edition. That conversation may ultimately be recoverable and useful. Until it is, the public sentencing transcript and filed docket are the record this chapter can safely stand on.

The August 7 hearing ended with two years of unsupervised probation, the Louisiana federal-courthouse access condition, no fine, no special assessment, and an express right to seek review by a district judge.

Three days later, in the separate Texas civil case, Judge Jeffrey Brown entered the order and final judgment discussed in the previous chapter.

The legal fights were narrowing. The financial consequences were not.

CHAPTER 39 — THE FINANCIAL COST OF THE FIGHT

By the time of the August 2026 sentencing, the disputes described in this book had moved through local, state, and federal systems in Mississippi, Texas, Utah, and Louisiana. The records document arrests, detention, bonds, towing, filing costs, travel, and years of litigation. They do not reduce neatly to one dollar figure, and I am not going to manufacture one.

Some amounts can be stated precisely.

After the May 26, 2017 aggravated-stalking arrest, the Oxford Eagle reported that Lafayette County Justice Court Judge Carolyn Bell set bond at \$150,000. The article said release required ten percent—\$15,000—plus collateral for the balance. That is a contemporaneous published report; until the underlying bond order is placed in the evidence archive, I treat the amount as reported rather than as a court-order quotation.

The Galveston felony DWI case produced another documented bond problem. A March 7, 2024 motion filed by my attorney, Myron G. Davis, states that the bond in Cause No. 23-CR-2981 was then \$100,000 and had previously been \$10,000. The motion sought a reduction. The request was

denied. Whatever theory one applies to bond generally, the practical effect in my case was continued detention because I could not post the amount required for release.

The DWI charge was later dismissed on May 24, 2024. That dismissal should not be rewritten as a reduction to a lesser offense; it was a dismissal. Nor should the toxicology result be turned into a complete explanation for why the prosecutor dismissed the case unless the dismissal record itself says so. The laboratory evidence and the disposition are both important. They are separate facts.

The smaller numbers mattered too.

In June 2026, after Galveston officers arrested me in a separate incident and my 2016 Mitsubishi Outlander was towed, my records reflect a \$373.94 charge associated with approximately two days at Marty's City Auto. Several hundred dollars is small beside a six-figure bond. For a person relying on a vehicle for transportation and, at times, shelter, it can be the amount that decides whether the vehicle comes back at all.

That is where the financial story becomes harder to quantify without becoming less real.

I have said publicly that I lost four houses over a period of years while these cases and disputes were consuming my time and money. That is my account. I have not assembled deeds, mortgage records, foreclosure records, sale documents, or a property-by-property financial ledger proving the cause and timing of each loss. This book therefore does not state that a particular official or lawsuit caused the loss of four houses as an independently proven fact.

What the record does establish is prolonged interruption of ordinary life. I spent extended periods in custody. I traveled repeatedly between jurisdictions. I filed and defended cases without counsel for substantial stretches. I paid or faced filing fees, records fees, bond requirements, transportation costs, towing charges, and the ordinary costs of trying to maintain work and housing while litigation continued.

The difference between having counsel and proceeding alone also appears repeatedly in the record, but an earlier version of this chapter overstated the lesson.

My 2022 federal civil-rights case in the Northern District of Mississippi was dismissed with prejudice. In 2024, Jacob Howard of the MacArthur Justice Center filed a post-conviction petition attacking the July 18, 2024 revocation sentence. That representation led to the January 2025 order correcting the illegal revocation sentence and to my release the following day.

It did not produce a full vacatur of the underlying 2022 aggravated-stalking conviction. Earlier drafts said it did. They were wrong.

The contrast between those cases still shows why legal representation matters, but it does not prove that counsel alone determines outcomes or that the two cases involved identical claims. They did not. Different causes of action, procedural postures, records, standards, and remedies were involved. What I can say from experience is simpler: trained counsel can identify procedural routes and legal arguments that are difficult for a pro se litigant to discover while simultaneously living through the events being litigated.

My own filings became more sophisticated over time because I spent years reading rules, cases, statutes, transcripts, and dockets. That education was not free. It consumed time that otherwise could have gone to ordinary employment, family life, reporting, or rebuilding financial stability. Government defendants, by contrast, ordinarily appear through salaried public lawyers or retained counsel paid by the governmental entity or insurer. That institutional difference is structural; it does not require proof that anyone deliberately set out to bankrupt a litigant.

That is why I am narrowing the title's older phrase, "financial warfare," into something I can prove more cleanly: financial cost.

I cannot show that every fee, bond, tow, or delay was imposed for the purpose of exhausting me financially. I can show that the costs accumulated. I can show that detention prevented work. I can show that high bonds kept me in custody when I could not post them. I can show

towing and records charges in actual documents. And I can show years in which I was simultaneously trying to litigate, report, travel, work, and maintain basic stability.

For an institution, litigation is an operational expense. For an individual, litigation can become the operating environment of an entire life.

That is the economic fact this record supports without needing a conspiracy theory to explain it.

The epilogue does not end with every case resolved. It ends with a record much cleaner than the one I started with: victories described as victories, losses described as losses, allegations separated from findings, and contradictions corrected where the documents require it.

EPILOGUE — THE RECORD

This book began with a 2016 flag petition and followed what happened afterward through arrests, family-court litigation, criminal prosecutions, civil commitments, public-records fights, federal lawsuits, interstate detention, and appellate proceedings in Mississippi, Texas, Utah, and Louisiana.

The ending is not a verdict that makes every event line up on one side.

It is a record.

On August 7, 2026, Judge Thomas P. LeBlanc sentenced me in the Lafayette federal-courthouse case. After clarifying the sentence on the record, the court placed me on two years of unsupervised probation. Time I had already served would be credited if the probation were later revoked and resentencing occurred. The court imposed no fine and waived the special assessment. It also prohibited my presence at the John M. Shaw Federal Courthouse, other federal courthouses in Louisiana, and adjacent federally owned or leased grounds unless I had legitimate business with a courthouse occupant and gave the U.S. Marshals Service two business days' notice.

My attorney objected that the “legitimate business” condition was vague. The court overruled the objection. The judge also told me that the sentence was not intended to suppress my First Amendment activity and advised me of my right to appeal the conviction and sentence to a United States district judge after entry of judgment.

Three days later, on August 10, 2026, Judge Jeffrey V. Brown adopted Magistrate Judge Andrew M. Edison’s recommendation in *Reardon v. Osteen* and entered final judgment against me in the Texas federal civil-rights case.

I lost that case at the district-court level.

The loss does not erase what the adopted recommendation said. Edison wrote that “the record shows that Osteen lied to Judge Tollison” and called that fact disturbing. The same recommendation concluded that my allegations concerning the later vehicle impoundment stated an unreasonable-seizure claim before recommending qualified immunity. It also rejected my effort to characterize Jeff Busby’s affidavit as literally false on the theory I had advanced, relying on evidence that Assistant District Attorney Steven Jubera—not Busby—personally transmitted the March 2024 letter to Texas.

That is what this manuscript has become by the end: not a brief that keeps only the helpful rulings, but a record that keeps the adverse ones too.

The January 2025 post-conviction order did not vacate my underlying 2022 aggravated-stalking conviction. It corrected the July 2024 revocation sentence and led to my release on January 22. The February 24, 2026 Mississippi Court of Appeals decision did not acquit me of the Lafayette County Justice Court misdemeanors. It reversed the Circuit Court’s dismissal of my appeal and remanded the matter so the appeal could proceed. The appellate clerk’s own records show that Lafayette County Circuit Clerk Jeff Busby had earlier received a record-delinquency notice and then a show-cause notice while that appeal was being assembled.

Those distinctions matter because the strongest version of this story is not the version in which every setback becomes a vindication and every inconsistency becomes corruption.

The strongest version is the one the documents can survive.

The documents establish that the Criminal Information in the 2017 aggravated-stalking case alleged AR-15 conduct “on or before May 8, 2017,” while the bill of sale in my records shows that I acquired the rifle on May 20. They establish that the precise May 8 allegation appears in the later charging instrument and plea record; they do not, from the material currently located, establish that the same date appeared in the pre-arrest warrant paperwork used on May 26. That difference is now preserved rather than blurred.

The documents establish that Oxford Police referred the June 20, 2022 City Hall incident to the Mississippi Bureau of Investigation on June 23, that Agent Joey Mauney obtained the arrest warrant on June 27, and that deputies arrested me at the Chancery Court the following morning because they knew I had court there. The Chancery Court was the arrest location, not the conduct that generated the warrant.

The documents establish that the Galveston toxicology testing did not show alcohol and that the DWI prosecution was dismissed on May 24, 2024. They also establish that a federal magistrate later wrote that Osteen lied to Judge Tollison. They do not permit me to call that finding a criminal conviction for perjury, and this book no longer does.

The documents establish that the U.S. Marshals Service was circulating information about me in June 2025, including material labeling me a First Amendment auditor, before the August 25 Lafayette arrest. They do not establish that the BOLO itself caused that arrest. The January 2026 federal judgment separately found that on August 25 I blocked courthouse doors and refused an instruction to move my tripod before I was arrested. Both records belong in the same book.

The documents establish that the New Orleans RTCC camera did not capture the physical altercation at City Hall. They do not establish that the footage was deliberately lost. They establish that New Orleans later withheld requested RTCC and 911 material under a pending-criminal-litigation exemption while offering an initial report for a fee. That is different from proving that the City created the criminal case in order to hide the evidence.

The documents also forced corrections to me.

At the Mississippi Governor's Mansion in July 2025, the contemporaneous recording has me telling the supervisor that the trooper did not physically touch me. An earlier manuscript said he struck me, knocked down my phone, and stepped on it. That version is gone.

At sentencing in August 2026, I told the court that I moved my courthouse equipment when Nugent ordered me to do so and was arrested while complying. The written trial findings say I refused, was warned, heard a countdown, and was arrested after failing to move it. This book reports that conflict instead of quietly choosing the version most useful to me.

I also described the government's October 2025 protective-order motion too broadly in public. The filing sought restrictions on dissemination of sensitive discovery, including Marshal-judge communications. It did not itself prove an effort to conceal misconduct. That correction is now part of the manuscript as well.

That is what accountability has to mean if I am going to demand it from anyone else.

I remain the narrator of this book. I am also an interested party in much of the litigation it describes. Those facts make source discipline more important, not less. Memory can explain why an event mattered to me. It cannot be allowed to override a transcript, a signed order, a laboratory report, or a contemporaneous recording when the two disagree.

There are still unresolved matters in this record. Some cases remain subject to further review or proceedings. Some documents have not been located. Some recordings still need direct verification before quotations should be treated as publication-grade. Where the evidence stops, this book stops with it.

I chose the title *American Injustice* because the question running through these pages is larger than whether every accusation I made was right. The question is what happens when a citizen keeps demanding records, hearings, review, and accountability from institutions that possess far more

money, legal expertise, and coercive power than he does—and what those same institutions owe him even when he is angry, profane, difficult, or wrong about part of his own case.

The Constitution does not require a citizen to be likable before the government has to obey it.

It also does not excuse a citizen from telling the truth about his own conduct.

That is the standard I am leaving on the page.

LEGAL ANALYSIS

A note on what this section is. This is an explanation of the legal doctrines that shaped the events described in the manuscript. It is written for a reader, not as a brief and not as legal advice. Where a doctrine cuts against my position, I say so. Where the law remains unsettled or the record is incomplete, I do not convert uncertainty into a holding.

I. RETALIATORY ARREST: PROBABLE CAUSE, NIEVES, AND GONZALEZ

A central allegation running through this book is retaliation: that protected speech, recording, reporting, and criticism influenced decisions to investigate, arrest, charge, or restrict me. Federal law makes that kind of claim difficult even when motive evidence exists.

In *Nieves v. Bartlett*, 587 U.S. 391 (2019), the Supreme Court held that a retaliatory-arrest plaintiff generally must plead and prove the absence of probable cause. The Court recognized a narrow exception where objective evidence shows that the plaintiff was arrested while otherwise similarly situated people not engaged in the protected speech were not.

That exception was clarified in *Gonzalez v. Trevino*, 602 U.S. 653 (2024). The Supreme Court rejected the Fifth Circuit’s demand for virtually identical, individually identified comparators. Objective evidence can take other forms. In *Gonzalez*, a survey showing that a longstanding criminal statute had never been used for comparable conduct was the kind of evidence a court could consider.

That matters to my own civil-rights litigation. The lesson is not simply that I needed a list of named people who did the exact same thing and were not arrested. The stronger lesson is that retaliation claims need objective proof of differential enforcement. Motive evidence may matter, but under *Nieves* it often does not carry the claim by itself when probable cause exists.

II. QUALIFIED IMMUNITY: A CLAIM THAT SURVIVED ONE STEP AND STILL LOST

Earlier versions of this book said I “won” a Fourth Amendment seizure claim on the merits in *Reardon v. Osteen*. That overstated the ruling.

Magistrate Judge Andrew Edison wrote that because impounding my vehicle was unreasonable on the facts alleged, I had **stated a constitutional claim for unreasonable seizure**. That was a pleading-stage determination in a Report and Recommendation addressing motions to dismiss. It was not a final merits judgment and it did not establish damages liability.

Edison nevertheless recommended qualified immunity because I had not carried the separate burden of identifying clearly established law sufficient to overcome the defense. Judge Jeffrey V. Brown later adopted the recommendation and entered final judgment against me.

Qualified immunity therefore creates two distinct questions: whether the alleged conduct states a constitutional violation, and whether the right was clearly established with sufficient specificity at the time of the conduct. A plaintiff can clear the first question and lose on the second. In my case, the court concluded that my pleading cleared the constitutional-claim threshold on the impoundment issue but did not overcome qualified immunity.

My objections invoked *Hope v. Pelzer*, 536 U.S. 730 (2002), and its warning that officials can have fair notice even without a prior case containing identical facts. The district court adopted the R&R despite those objections. Whatever I may argue on review, the publication record must describe the actual result: I did not obtain a merits judgment in my favor.

III. WHY AN EARLY PRO SE §1983 CASE FAILED

One of my earlier federal cases arising from Olive Branch was dismissed for failure to state a claim. I have sometimes folded that dismissal into a broader story of institutional resistance. The pleading itself shows more ordinary legal problems.

Section 1983 does not provide damages against a state simply because a state actor is alleged to have violated federal rights. States generally retain sovereign immunity from federal damages suits absent waiver or valid congressional abrogation, and a State is not a “person” for ordinary §1983 damages purposes. Prospective relief against an appropriate state official presents a different question, but that was not how I framed the case.

Municipal liability presents another barrier. Under *Monell v. Department of Social Services*, 436 U.S. 658 (1978), a city is not automatically liable under §1983 for every constitutional wrong committed by an employee. The plaintiff must connect the violation to a municipal policy, custom, or qualifying decision by a final policymaker. My early pleading did not do that adequately.

I also used a “federal corporation” theory that had no sound basis in §1983 doctrine. That language weakened the pleading instead of helping it.

Those defects matter because they distinguish a lost constitutional claim from a complaint that never pleaded the required legal elements. A fair account of my litigation has to admit when procedure and pleading—not a factual finding against me—ended the case.

IV. JUDICIAL IMMUNITY AND THE OLIVE BRANCH CONTEMPT ARREST

Judges generally have absolute immunity from damages for judicial acts performed within their jurisdiction, even where the act is alleged to have been erroneous, malicious, or in excess of authority. *Stump v. Sparkman*,

435 U.S. 349 (1978); *Mireles v. Waco*, 502 U.S. 9 (1991). Immunity does not extend to nonjudicial acts or acts taken in the complete absence of jurisdiction.

That doctrine makes a damages claim arising directly from a courtroom contempt ruling exceptionally difficult. The stronger constitutional issue in my Olive Branch episode concerned impartiality. *In re Murchison*, 349 U.S. 133 (1955), and *Mayberry v. Pennsylvania*, 400 U.S. 455 (1971), recognize that due process can require a different judge when the presiding judge has become personally embroiled in the contempt controversy.

The contempt charge against me was later dismissed. That disposition does not itself establish civil liability, and judicial immunity does not disappear because a charge was dismissed. The episode therefore illustrates a distinction repeated throughout this book: conduct can be subject to serious constitutional criticism while a damages remedy remains unavailable.

V. THE GALVESTON BLOOD WARRANT: THE ISSUE IS VALIDITY, NOT WHETHER A WARRANT EXISTED

Earlier drafts treated the August 2023 blood draw as though the existence of a warrant were unresolved. The present record does not support that framing.

Osteen signed a blood-warrant affidavit. The case record reflects that a magistrate signed a warrant at approximately 2:49 a.m., and Osteen later testified under oath that he filed a blood warrant that was signed by a judge. I was not shown the warrant at the hospital, but failure to hand me a copy at the moment of the draw is not the same thing as absence of a warrant.

The legal dispute is therefore closer to *Franks v. Delaware*, 438 U.S. 154 (1978): whether an affidavit contained deliberately or recklessly false material statements or omissions, and, if so, whether the corrected affidavit would still establish probable cause.

The contradictions are documented. Osteen's affidavit marked a moderate odor of alcohol on my breath and described dilated pupils. Later testimony said he could not smell alcohol coming from me once I was outside the vehicle and described my pupils as very small or pinpoint. The laboratory

reported **no alcohol detected**. At the July 2024 Mississippi hearing, Osteen nevertheless testified that alcohol had been detected. The same laboratory production separately reported methamphetamine at 0.13 mg/L. No expert testimony at that revocation hearing established that the reported concentration caused impairment.

My attorney later sought a *Franks* hearing in the Texas misdemeanor case. That hearing was not held. In the subsequent federal civil case, Edison concluded that probable cause remained even after addressing disputed portions of the affidavit, but he also wrote that “the record shows that Osteen lied to Judge Tollison.” Those are separate propositions. The federal court’s use of the word *lied* is not a criminal adjudication of perjury, and the absence of alcohol does not erase the separate methamphetamine result.

The publication-safe legal conclusion is therefore narrow: the blood draw was warrant-based; the affidavit and later testimony contain documented contradictions; materiality was contested; and no Texas *Franks* hearing resolved that dispute before the criminal matter ended.

VI. THE TEXAS FELONY ENHANCEMENT AND ITS DISMISSAL

The Texas indictment charged DWI third or more and alleged two prior offenses. That enhancement therefore did not appear from nowhere. The dispute was whether the alleged priors could legally support the felony level.

One of the alleged predicates was the Lafayette County misdemeanor DUI conviction that I had been trying to appeal since December 2021. The later MacArthur Justice Center PCR petition cited Texas authority for the proposition that an appealed prior conviction used for enhancement does not become final until the appellate mandate issues. The same petition attached the Texas motion to dismiss and described the State’s stated reason as that it “cannot prove up jurisdictional enhance[ment]s.”

The felony prosecution in Cause No. 23-CR-2981 was dismissed without prejudice on May 24, 2024. The later record reflects that a misdemeanor DWI matter arising from the same August 11 stop remained pending and became the vehicle for the February 2025 *Franks* motion.

That chronology is stronger than the old rhetoric. I do not need to call the felony a fabricated enhancement or infer why prosecutors acted beyond what their filing says. The documentary point is that Texas indicted the felony, later moved to dismiss because it could not prove the jurisdictional enhancements, and the felony case was dismissed.

VII. THE 2017 COVENANT NOT TO SUE

The signed covenant is not missing. It is in the appellate record for LK17-295. It states that, as a specific condition of the guilty plea, I agreed not to file civil claims against Lafayette County, the sheriff and deputies, the City of Oxford and its officials, and Todd and Ashley Lynch for matters through the arrest.

Release-dismissal agreements are not automatically unenforceable. *Town of Newton v. Rumery*, 480 U.S. 386 (1987), requires a case-specific inquiry that includes voluntariness, prosecutorial overreaching, and the public interest.

That is the proper framework for the facts I describe: a \$150,000 bond, a negotiated guilty plea, banishment, and a covenant signed as part of the disposition. My later account is that I accepted the bargain under intense pressure. The plea record also contains my sworn answers at the time denying coercion and acknowledging the rights I was giving up. Both pieces belong in any honest analysis.

The book cannot adjudicate whether the covenant would be enforceable in a later civil action. It can document that criminal disposition and civil release were linked in the same bargain and identify the doctrine that would govern a challenge.

VIII. NOTICE AND ACCESS TO THE ACCUSATION

The Sixth Amendment guarantees a criminal defendant the right to be informed of the nature and cause of the accusation. How that right applies depends on the stage of the case and the documents at issue.

Several episodes in this manuscript involve my complaint that I could not obtain the document being used against me when I believed I needed it: the initiating paperwork in the 2017 Lafayette case; charging material in the

2020 Olive Branch matter; and affidavit-related filings in Galveston. The records do not support collapsing those episodes into a single judicial finding that three courts denied notice in the same legal sense.

The stronger way to present the pattern is evidentiary rather than conclusory: identify what I requested, when I requested it, what the court or agency produced, and what remained unavailable. A reader can then see the recurring access problem without the manuscript declaring a constitutional violation that no court decided.

IX. MISSISSIPPI REVOCATION PROCESS: 72 HOURS, 21 DAYS, 30 DAYS, AND TECHNICAL VIOLATIONS

Morrissey v. Brewer, 408 U.S. 471 (1972), established minimum due-process protections for parole revocation, and *Gagnon v. Scarpelli*, 411 U.S. 778 (1973), extended that framework to probation.

Mississippi now states important timing rules directly in Miss. Code Ann. § 47-7-37. For an offender arrested on a probation-violation warrant, the Department must ordinarily hold an informal preliminary hearing within seventy-two hours unless an exception or waiver applies. If reasonable cause is found, detention pending the revocation hearing is generally limited to twenty-one days; if the hearing is not held in that period, the statute directs release back to probation status. A separate subsection provides that the revocation charge shall be dismissed if the revocation hearing is not held within thirty days of the warrant's issuance unless good cause for delay is established in the record.

The same statute caps incarceration for technical violations: up to ninety days for a first technical revocation, 120 days for a second, 180 days or the remainder for a third, and up to the remainder for a fourth or later revocation.

Those distinctions correct one of the most important errors in earlier editions. The January 21, 2025 post-conviction order did **not** vacate my underlying 2022 aggravated-stalking conviction. It vacated the July 2024 two-year revocation sentence, treated the violation as technical, resentenced me to 120 days, ordered my immediate release because I had served more than that, and reinstated the original unsupervised probation and banishment terms. The MacArthur petition separately argued that the

earlier November 2022 one-year technical-revocation sentence exceeded the statutory first-revocation cap, but that already-served sentence was not the relief granted by the January 2025 order.

The timing issues surrounding my 2024 detention still require exact arrest, warrant, continuance, and hearing dates. The statute supplies the clocks. The record supplies the dates. The manuscript should not invent tolling rules or call a violation established until those two are matched precisely.

X. MISSING OR UNPRESERVED EVIDENCE

The law distinguishes evidence that is exculpatory from evidence that is merely potentially useful.

Brady v. Maryland, 373 U.S. 83 (1963), concerns suppression of material exculpatory evidence in the government's possession. *California v. Trombetta*, 467 U.S. 479 (1984), addresses evidence whose exculpatory value was apparent before destruction. *Arizona v. Youngblood*, 488 U.S. 51 (1988), generally requires a showing of bad faith when the State fails to preserve only potentially useful evidence.

That framework matters because missing video cannot honestly be described as proof of what the video would have shown. The December 2020 security-camera dispute, the Lafayette sallyport/dash-camera questions, the New Orleans RTCC camera that did not capture the City Hall altercation, and the federal courthouse preservation issue are not interchangeable.

The safe rule for this book is simple: if a camera did not cover the event, say so; if footage once existed but was not preserved, say that; if a request produced only part of what was sought, identify what was produced; and never write the contents of footage that nobody has seen.

XI. THE RIGHT TO RECORD AND ITS LIMITS

In *Turner v. Driver*, 848 F.3d 678 (5th Cir. 2017), the Fifth Circuit recognized a First Amendment right to record police officers performing official duties in public, subject to reasonable time, place, and manner restrictions. That decision predates the May 2017 events in this book and governs Mississippi, Louisiana, and Texas.

The scope matters. *Turner* does not establish an unlimited right to film anywhere government business occurs. It does not eliminate neutral security rules, obstruction laws, restricted areas, or reasonable facility regulations. Recording a police officer on a public sidewalk and placing equipment in a federal courthouse entrance present different legal questions.

That distinction is especially important in the 2025 federal courthouse case. My First Amendment activity formed part of the factual context, but the conviction was for conduct under 41 C.F.R. § 102-74.390(b). The trial court found prohibited conduct at the courthouse. Whether that conviction survives review is a separate question from the general existence of a right to record police in public.

XII. COMMUNICARE AND THE STATE-ACTION QUESTION

Section 1983 reaches conduct under color of state law. Private entities do not become state actors merely because they participate in a heavily regulated field or use a state-created procedure.

Cases such as *Lugar v. Edmondson Oil Co.*, 457 U.S. 922 (1982), and *West v. Atkins*, 487 U.S. 42 (1988), show that state action can exist where private conduct is fairly attributable to the State—through joint participation, delegation of a public function, or other sufficiently close connection. But the inquiry is fact-specific.

My commitment history involved affidavits, chancery-court process, and execution of writs by law enforcement. Rachel Alcorn also told me in a recorded call that Communicare was not a county agency and described its relationship to the Mississippi Department of Mental Health. Those facts do not by themselves answer whether Communicare or a particular employee acted under color of state law for a particular act.

That question remains unresolved in the present source archive. The publication version therefore should not label Communicare a government agency or announce that §1983 liability is established. It should document what each actor did and leave the legal classification where the evidence leaves it: open.

XIII. CIVIL COMMITMENT AND DUE PROCESS

Civil commitment is not criminal punishment, but it is a serious deprivation of liberty. *O'Connor v. Donaldson*, 422 U.S. 563 (1975), limits confinement of a nondangerous person capable of living safely in freedom. *Addington v. Texas*, 441 U.S. 418 (1979), requires clear and convincing evidence for civil commitment. Other cases recognize procedural protections appropriate to the nature of the confinement.

My December 7, 2021 recording documents a narrower issue: the deputy serving the writ told me he did not have the accompanying affidavit and the paperwork in hand did not identify who had signed it. Later court records show that an affidavit did exist.

That evidence supports saying the service packet I received did not include the affidavit. It does **not**, without a statute or controlling case requiring contemporaneous service of that affidavit, establish by itself that the seizure was unconstitutional. Earlier drafts crossed that line. This version does not.

XIV. FAVORABLE TERMINATION AFTER THOMPSON v. CLARK

Thompson v. Clark, 596 U.S. 36 (2022), held that for the favorable-termination element of the Fourth Amendment claim recognized there, a plaintiff need show that the criminal prosecution ended without a conviction; an affirmative indication of innocence is not required.

That rule can matter to proceedings in this book that actually terminated without a conviction—for example, a charge that was dismissed or refused. It does not convert every procedural success into favorable termination.

The February 24, 2026 decision in *Reardon v. State* is a good example. The Mississippi Court of Appeals reversed the Circuit Court's dismissal of my misdemeanor appeal and remanded. It did **not** reverse the underlying Justice Court convictions. Likewise, the January 2025 PCR order corrected a revocation sentence; it did not terminate the underlying 2022 stalking conviction.

A remand, a sentence correction, and a dismissal are legally different dispositions. The manuscript now keeps them separate.

XV. PROSECUTORIAL IMMUNITY

Under *Imbler v. Pachtman*, 424 U.S. 409 (1976), prosecutors generally have absolute immunity from §1983 damages for advocative conduct intimately associated with the judicial phase of a prosecution. *Buckley v. Fitzsimmons*, 509 U.S. 259 (1993), distinguishes investigative or administrative functions, and *Kalina v. Fletcher*, 522 U.S. 118 (1997), recognizes that personally swearing to facts can place a prosecutor in the role of a complaining witness rather than an advocate.

That functional distinction matters more than the prosecutor's title. Filing and arguing a motion to revoke are ordinarily advocative acts. Investigating facts before probable cause, administering policy, or personally attesting to facts can present different questions.

The careful conclusion is not that prosecutors are categorically beyond accountability. It is that §1983 damages are generally unavailable for core prosecutorial advocacy, even when the plaintiff alleges serious misconduct in presenting the case.

XVI. BANISHMENT AS A SENTENCING CONDITION

The 2022 sentencing order imposed five years of unsupervised probation and banishment from Lafayette County, subject to stated exceptions. I accepted that condition in a negotiated plea.

Banishment conditions are not automatically unconstitutional, and Mississippi has permitted them in appropriate circumstances. Their validity can depend on the relationship between the condition and legitimate sentencing purposes, the scope of the restriction, and the record supporting it.

The November 2022 revocation transcript adds an important factual limit to my own argument. Deputy Beavers confirmed that I told the Sheriff's Department in advance that I intended to go to the FBI office. Advance notice is documented. But the order did not say that notice alone automatically authorized entry into Lafayette County for any purpose. Judge Tollison found that my presence fell outside the permitted purposes and revoked the suspended sentence.

I continue to dispute that outcome and the evidence used to reach it. The manuscript no longer claims that the phone call itself conclusively established legal authorization under the order.

XVII. PRESERVATION, SPOILIATION, AND WHAT A MISSING RECORD PROVES

The word *spoliation* can hide several different legal problems. Criminal due process, civil discovery sanctions, evidentiary inferences, and a court's inherent authority do not all use the same test.

In the criminal context, *Trombetta* and *Youngblood* set demanding standards for destroyed or unpreserved evidence. In civil litigation, rules governing discovery and sanctions can operate differently. And sometimes the factual answer is simpler: a requested camera never recorded the relevant area in the first place.

That last point changed the New Orleans chapters. The RTCC record did not establish that footage of the actual altercation was destroyed. It established that the camera produced did not capture the altercation itself. Calling that "lost footage" would create evidence that the source does not contain.

The same discipline applies everywhere else: absence of evidence may matter, but it does not supply the missing evidence's contents.

XVIII. SPEEDY TRIAL AND REVOCATION DEADLINES ARE DIFFERENT QUESTIONS

Constitutional speedy-trial claims are governed by *Barker v. Wingo*, 407 U.S. 514 (1972), which balances length of delay, reason for delay, assertion of the right, and prejudice. Pretrial incarceration is one recognized form of prejudice, along with anxiety and impairment of the defense. Delay attributable to the defense also matters in the balance.

Mississippi's 72-hour, 21-day, and 30-day revocation rules are statutory deadlines addressing probation-revocation procedure. They should not be blended into a *Barker* analysis merely because both concern delay.

Earlier versions of my arguments sometimes mixed those frameworks. The corrected manuscript keeps them separate: *Barker* for constitutional speedy-trial analysis; § 47-7-37 for Mississippi probation-revocation timing; and the actual docket for which party requested which continuance.

XIX. WHAT THE RECORD TAUGHT ME ABOUT CIVIL-RIGHTS LITIGATION

The clearest lessons from my own cases are narrower than the conclusions I once drew.

First, motive evidence is not enough by itself in many retaliatory-arrest cases. Objective enforcement evidence matters, especially after *Nieves* and *Gonzalez*.

Second, stating a constitutional claim is not the same as obtaining a judgment that a constitutional violation occurred, and neither is the same as overcoming qualified immunity.

Third, immunities and pleading rules can end civil-rights cases without a trial on the underlying factual dispute.

Fourth, precise documents are stronger than grand theories. A signed order, a transcript line, a laboratory report, a docket notice, or a dated recording can survive adversarial review in a way an inferred motive often cannot.

Fifth, favorable termination, reversal, remand, vacatur of a sentence, vacatur of a conviction, and dismissal are not synonyms. This manuscript once used some of them as if they were. It no longer does.

Sixth, many of my pro se losses turned on procedure, jurisdiction, immunity, or pleading sufficiency. That does not prove the underlying grievances were meritless. It also does not entitle me to rewrite those losses as victories.

That distinction—between what I believe happened, what the documents establish, what a court actually held, and what the law permits me to infer—is the discipline this book ultimately required.

APPENDIX

A source-and-record guide to the preceding narrative. The purpose of this appendix is not to repeat every allegation in the book. It is to identify the principal proceedings, documents, recordings, unresolved source gaps, and corrections necessary to understand what the record actually establishes.

A. CASES AND CAUSE NUMBERS

Mississippi — Lafayette County

Cause	Court	Matter
CV2016-422(W)	Chancery Court	Paternity, custody, and support litigation involving Phyllis Crowder and Matthew Reardon.
CV2017-217A	Chancery Court	<i>Robyn M. Tannehill and J. Rhea Tannehill Jr. v. Matthew Reardon</i> — petition for temporary and permanent restraining relief filed May 22, 2017.

Cause	Court	Matter
LK17-295	Circuit Court	2017 aggravated-stalking prosecution involving Todd and Ashley Lynch. Guilty plea July 6, 2017; plea materials, Criminal Information, transcript, sentence, and covenant not to sue are preserved in the appellate record.
L17-233	Circuit Court	Habeas-corpus/bail-reduction proceeding filed during the 2017 detention; later dismissed as a stale case on November 30, 2018.
L20-316 / LK20-316	Circuit Court	Post-conviction proceedings challenging the 2017 plea and conviction. The file naming varies in later records; it is separate from LK17-295 itself.
9291202	Justice Court	D.U.I. 1st Offense arising from the February 2021 stop; conviction entered November 24, 2021.
36CI1:21-cv-00494-JKL / L21-494	Circuit Court	De novo appeal from Lafayette County Justice Court convictions. Initiated in December 2021; Circuit Court dismissed the appeal June 28, 2024 for failure to perfect. The Mississippi Court of Appeals later reversed that dismissal and remanded.
LK22-358	Circuit Court	2022 aggravated-stalking prosecution. Guilty plea September 30, 2022; five-year suspended sentence/ unsupervised probation, banishment, and no-contact terms. First revocation proceeding followed in November 2022; a second revocation proceeding followed in 2024.

Cause	Court	Matter
L24-388 / 36C11:24-cv-00388-JKL	Circuit Court	Post-conviction relief concerning the 2024 revocation sentence in LK22-358. Order entered January 21, 2025 vacated the two-year revocation sentence, resentenced Reardon to 120 days for a technical violation, ordered immediate release because more than 120 days had been served, and reinstated the original probation and banishment terms. The underlying 2022 aggravated-stalking conviction was not vacated.
2024-KM-00839-COA	Mississippi Court of Appeals	<i>Matthew D. Reardon v. State of Mississippi</i> . Decision February 24, 2026 reversed the Circuit Court’s dismissal of the Justice Court appeal and remanded. It did not reverse the underlying Justice Court convictions. The opinion directed appointment of counsel on remand if Reardon still qualified as indigent.

Mississippi — other proceedings

Cause	Court	Matter
LK2022-310MISC	Third Judicial District / Holly Springs	Competency/commitment-related proceeding referenced in the source archive.
—	Olive Branch Municipal Court	Phyllis Crowder false-reporting prosecution. No-contest disposition September 22, 2020. The municipal order assesses a \$1,000 fine plus a \$149.25 assessment, \$1,149.25 total.

Cause	Court	Matter
S2020-0024(CD)	DeSoto County Court	Crowder’s appeal from the Olive Branch disposition. Formal appeal filed after the deadline; County Court dismissed it November 23, 2020 and returned the matter to Municipal Court for execution of judgment.
—	Olive Branch Municipal Court	Contempt proceeding involving Reardon in October 2020; later dismissed.

Federal

Cause	Court	Matter
3:22-cv-00050-SA-JMV	N.D. Mississippi	<i>Reardon v. Lafayette County, Mississippi, et al.</i> Civil-rights action. The handwritten More Definitive Statement filed March 20, 2023 is a major source for the author’s then-current allegations and chronology. The action was dismissed with prejudice June 28, 2023.
1:25-cv-00041	District of Utah	<i>Reardon v. Layton City, et al.</i> Civil-rights case filed March 31, 2025. The author later sought voluntary dismissal without prejudice after relocating.
3:25-cv-00203	S.D. Texas, Galveston Division	<i>Reardon v. Osteen, et al.</i> Magistrate Judge Andrew M. Edison’s Memorandum Opinion, Order, and Recommendation entered July 14, 2026 (Dkt. 90); Judge Jeffrey V. Brown adopted the recommendation and entered final judgment August 10, 2026 (Dkts. 93–94).

Cause	Court	Matter
6:25-cr-00227	W.D. Louisiana	<i>United States v. Reardon</i> , 41 C.F.R. § 102-74.390(b). Guilty verdict entered January 16, 2026 after a bench trial. At sentencing August 7, 2026, the court imposed two years of unsupervised probation and clarified that prior custody would be credited if probation were later revoked and resentencing occurred; no fine was imposed and the special assessment was waived.

Texas

Cause	Court	Matter
23-CR-2981	56th District Court, Galveston County	Felony DWI-third-or-more prosecution arising from the August 11, 2023 stop. Indictment filed December 7, 2023. The State moved to dismiss and the court dismissed the felony case May 24, 2024; the later Mississippi PCR record quotes the stated reason as inability to prove the jurisdictional enhancements.
MD-0417962	Galveston County Court No. 3	Later misdemeanor DWI matter arising from the same August 11, 2023 stop, identified in the February 25, 2025 defense motion requesting a <i>Franks</i> hearing.

Georgia

Cause	Court	Matter
13T15752	Cobb County State Court	DUI offense dated December 25, 2012; conviction entered November 3, 2014.

B. PRINCIPAL PEOPLE

The book names public officials and other adults when their conduct is documented in the record and relevant to the narrative. It does not treat being named as proof of wrongdoing.

Lafayette County / Oxford: Deputy Timmy Pruitt; Scott Mills; Alan Wilburn; Jared Bundren; Sheriff Joseph “Joey” East; Deputies Courtney Dixon, Ethan Tidwell, Jacob Williford, Kandis Beavers, Hoby James, and Joe Quarles; MBI Lt. Joey Mauney; OPD Chief Jeff McCutchen; Capt. Hildon Sessums; Lt. Kevin Parker; and other officials identified in the cited records.

Judicial officers: Judge Carolyn Bell; Chancellor Glenn Alderson; Circuit Judges John Kelly Luther, Kent E. Smith, Gray Tollison, and others identified in the docket and transcripts; Olive Branch Municipal Judge Leslie Shumake.

Attorneys: J. Rhea Tannehill Jr.; Brennan Horan; Kristian A. McCray; Mitchell Driskell; Christi McCoy; Bela J. Chain III; Dustin Talbot; Benjamin Campagna; and Jacob W. Howard of the MacArthur Justice Center.

Texas: Galveston Police Officer Larry Murph, who initiated the August 11, 2023 traffic stop; Officer William Osteen, who conducted the DWI investigation and signed the blood-warrant affidavit; Sgt. Jack Doraty; and other participants identified in the Texas records.

Federal: Deputy U.S. Marshal Hayden Nugent; Magistrate Judge Andrew M. Edison; District Judge Jeffrey V. Brown; Magistrate Judge Carol B. Whitehurst; and other federal officials identified in the public docket or produced records.

Private parties central to the record: Phyllis “Liz” Crowder; Todd Lynch; Ashley Lynch; Robyn Tannehill; and J. Rhea Tannehill Jr. where acting as a private petitioner or attorney.

The author’s children are identified by first name only where the dedication or chronology makes that identification necessary. Details about them are limited to information the author chose to include because it bears directly on the events being described; unrelated private information is omitted.

C. KEY DOCUMENTS AND RECORDINGS

2017 prosecution and related civil proceedings

- Tannehill Petition for Emergency, Temporary Restraining Order and Permanent Restraining Order, filed May 22, 2017, with affidavits and exhibits.
- Lafayette County Sheriff's Office May 24/May 30 narrative concerning the Lynch complaint.
- Major John Hill's May 30, 2017 Sheriff's Office narrative documenting the post-hearing hallway confrontation with Rhea Tannehill.
- Criminal Information in LK17-295 filed July 6, 2017, alleging aggravated stalking involving "an AR15 rifle" and the handwritten date "or before May 8, 2017."
- July 6, 2017 plea and sentencing transcript.
- Guilty-plea petition and sentence documents.
- Signed Covenant Not To Sue, executed as a specific condition of the plea.
- Private bill of sale dated May 20, 2017 for a Del-Ton AR-15, serial S086662, purchased from Larry D. Watkins for \$550. The document dates that particular transaction; it does not by itself prove that no other AR-pattern rifle existed before that date.

Crowder / Olive Branch

- Olive Branch Police Department investigation of Crowder's November 2018 rape allegation and the later false-reporting case.
- September 22, 2020 Municipal Court order assessing \$1,149.25 total.
- DeSoto County Court order dismissing Crowder's untimely appeal November 23, 2020.
- Chancery filings and communications in CV2016-422(W).

2021–2022 Lafayette proceedings

- Justice Court orders, filings, and later Circuit Court record concerning the December 2021 appeal.
- December 7, 2021 commitment writ and the author’s contemporaneous recording of service.
- Recorded call with Communicare employee Rachel Alcorn.
- MBI Case No. 22-00000897, including the June 20, 2022 City Hall allegations, June 23 referral, and June 27 warrant process.
- Lafayette County Sheriff’s Office June 28, 2022 warrant-service report showing the MBI arrest warrant already existed when deputies encountered Reardon at Chancery Court.
- LK22-358 plea/sentence records and November 2022 revocation transcript.

Galveston and later Mississippi revocation

- Osteen’s August 11, 2023 blood-warrant affidavit/application and related DWI reports.
- Texas DPS Houston laboratory report HOU-2308-10286: **“No alcohol detected.”**
- Separate confirmation analysis reporting methamphetamine at 0.13 mg/L.
- July 18, 2024 certified Mississippi revocation transcript.
- November 26, 2024 MacArthur Justice Center petition for post-conviction relief and exhibits.
- January 21, 2025 Order & Judgment granting post-conviction relief as to the 2024 revocation sentence.
- February 25, 2025 *Franks* motion filed by attorney Benjamin Campagna in the Texas misdemeanor case.

2025–2026 federal and interstate record

- U.S. Marshals Service FOIA/records production concerning alerts and inter-office communications.

- Federal criminal docket in 6:25-cr-00227 and the August 7, 2026 sentencing recording/transcript source used in Chapter 38.
- *Reardon v. Osteen* Dkt. 90, Dkt. 93, and Dkt. 94.
- Mississippi appellate clerk notices concerning delinquent assembly of the record in the Justice Court appeal, including the October 2, 2024 delinquency notice and October 21, 2024 show-cause notice to Circuit Clerk Jeff Busby.
- Mississippi Court of Appeals opinion of February 24, 2026 reversing the Circuit Court’s dismissal and remanding.
- New Orleans records concerning the November 2025 City Hall incident, NextRequest production, January 2026 booking, and April 2026 disposition.

Recordings

Contemporaneous audio and video are primary sources throughout the book, including recordings of arrests, courthouse encounters, telephone calls, hearings where recording was permitted, and published livestreams. Machine transcription is used as a research aid, not automatically as a verbatim source. Quotations intended to be verbatim should be checked against the underlying audio or an official/certified transcript whenever available.

D. CONDENSED CHRONOLOGY

2008 — Marine infantry-training period and the Camp Devil Dog event discussed in the Prologue.

2011 — End of Marine Corps service.

2012–2014 — Georgia DUI offense and later conviction.

2016 — Paternity/custody proceeding begins; Mississippi flag petition.

May 1, 2017 — Lafayette County sidewalk/flag arrest.

May 20, 2017 — Dated private bill of sale for the Del-Ton AR-15.

May 22, 2017 — Tannehill restraining-order petition filed.

May 24, 2017 — Bundren begins Lynch investigation according to the surviving Sheriff’s Office narrative.

May 25, 2017 — FBI meeting; final Marine Corps legal demand later that

day.

May 26, 2017 — Marine Corps FOIA request receives full-grant disposition; Reardon arrested later that day for aggravated stalking.

May 30, 2017 — Initial appearance; \$150,000 bond; Tannehill Chancery hearing and the hallway confrontation documented by Major John Hill.

June 2017 — Habeas/bail-reduction proceeding filed; Board of Aldermen agenda places Reardon on June 6 agenda while he remains jailed.

July 6, 2017 — Criminal Information filed; guilty plea; banishment and covenant not to sue.

2018–2020 — Crowder false rape allegation, investigation, false-reporting prosecution, and no-contest disposition; related family-court litigation.

December 28, 2020 — Lafayette County parking-lot arrest.

February 2021 — DUI stop during winter weather.

November 24, 2021 — Justice Court convictions entered.

December 2021 — Appeal initiated; first civil commitment.

June 20, 2022 — Oxford City Hall visit later used in MBI stalking investigation.

June 23–27, 2022 — OPD referral to MBI and warrant process.

June 28, 2022 — Arrested on the preexisting MBI warrant while arriving at Chancery Court.

September 30, 2022 — Guilty plea in LK22-358; suspended sentence, unsupervised probation, banishment, and no-contact terms.

November 2022 — First revocation proceeding; one-year sentence imposed.

August 1, 2023 — Released from Mississippi custody.

August 11, 2023 — Galveston traffic stop and DWI investigation; blood warrant executed.

August 17, 2023 — Rearrest/overlapping Mississippi revocation process.

December 7, 2023 — Texas felony DWI indictment filed.

May 24, 2024 — Texas felony DWI prosecution dismissed.

June 28, 2024 — Lafayette Circuit Court dismisses Justice Court appeal.

July 18, 2024 — Second Mississippi revocation hearing.

January 21, 2025 — Two-year revocation sentence vacated; resentenced to 120 days; immediate release ordered; underlying probation/banishment reinstated.

March 31, 2025 — Utah federal civil-rights complaint filed.

June–August 2025 — U.S. Marshals/court-security alert and BOLO communications documented in later productions.

August 25, 2025 — Arrest at John M. Shaw United States Courthouse in Lafayette, Louisiana.

November 12, 2025 — New Orleans City Hall incident.

January 16, 2026 — Guilty verdict in the federal petty-offense case.

January 24–28, 2026 — Louisiana arrest and later Orleans Parish booking on the New Orleans warrant.

February 24, 2026 — Mississippi Court of Appeals reverses dismissal of Justice Court appeal and remands.

April 16, 2026 — New Orleans battery prosecution disposed of as “Refused — Law Enforcement Issue” in the produced case record.

April–June 2026 — Union County/Aberdeen events described in Chapter 36.

July 14, 2026 — Edison R&R entered in *Reardon v. Osteen*.

August 7, 2026 — Federal sentencing: two years unsupervised probation; no fine; special assessment waived; prior custody addressed as credit in event of later revocation/resentencing.

August 10, 2026 — District court adopts Edison R&R and enters final judgment in *Reardon v. Osteen*.

E. SELECTED LEGAL AUTHORITIES

This list is a reader’s guide, not an exhaustive table of authorities.

Retaliatory arrest: *Nieves v. Bartlett*, 587 U.S. 391 (2019); *Gonzalez v. Trevino*, 602 U.S. 653 (2024).

Right to record: *Turner v. Driver*, 848 F.3d 678 (5th Cir. 2017).

Qualified immunity: *Harlow v. Fitzgerald*, 457 U.S. 800 (1982); *Pearson v. Callahan*, 555 U.S. 223 (2009); *Hope v. Pelzer*, 536 U.S. 730 (2002).

Municipal liability / state action: *Monell v. Department of Social Services*, 436 U.S. 658 (1978); *Lugar v. Edmondson Oil Co.*, 457 U.S. 922 (1982); *West v. Atkins*, 487 U.S. 42 (1988); *Will v. Michigan Department of State Police*, 491 U.S. 58 (1989).

Judicial / prosecutorial immunity: *Stump v. Sparkman*, 435 U.S. 349 (1978); *Mireles v. Waco*, 502 U.S. 9 (1991); *Imbler v. Pachtman*, 424 U.S.

409 (1976); *Buckley v. Fitzsimmons*, 509 U.S. 259 (1993); *Kalina v. Fletcher*, 522 U.S. 118 (1997).

Contempt and impartial adjudication: *In re Murchison*, 349 U.S. 133 (1955); *Mayberry v. Pennsylvania*, 400 U.S. 455 (1971).

Blood-warrant affidavit: *Franks v. Delaware*, 438 U.S. 154 (1978); *Missouri v. McNeely*, 569 U.S. 141 (2013); *Birchfield v. North Dakota*, 579 U.S. 438 (2016).

Preservation / disclosure: *Brady v. Maryland*, 373 U.S. 83 (1963); *California v. Trombetta*, 467 U.S. 479 (1984); *Arizona v. Youngblood*, 488 U.S. 51 (1988).

Revocation process: *Morrissey v. Brewer*, 408 U.S. 471 (1972); *Gagnon v. Scarpelli*, 411 U.S. 778 (1973); Miss. Code Ann. § 47-7-37.

Favorable termination: *Thompson v. Clark*, 596 U.S. 36 (2022).

Release-dismissal agreements: *Town of Newton v. Rumery*, 480 U.S. 386 (1987).

Constitutional speedy trial: *Barker v. Wingo*, 407 U.S. 514 (1972).

Earlier drafts and filings also invoked legal theories that this edition withdraws. In particular, Section 802 of the USA PATRIOT Act is not a civil cause of action against a county sheriff, and 26 U.S.C. § 7214 concerns federal revenue officers rather than Mississippi county officials. Those theories are not relied upon here.

F. SOURCE GAPS AND DELIBERATE LIMITS

The following are genuine gaps or publication limits. They should not be confused with documents that have now been located.

1. **The original pre-arrest affidavit, complaint, or warrant application underlying the May 26, 2017 Lynch arrest has not been located in the present archive.** The July 6 Criminal Information and plea transcript independently establish the later “on or before May 8, 2017” allegation. The book therefore does not attribute that May 8 allegation to the May 26 arrest warrant unless the pre-arrest instrument is produced.
2. **The signed Texas blood-warrant instrument itself has not been located in the present archive.** Osteen’s affidavit/application and

his later sworn testimony establish that a judge signed a blood warrant; the book therefore does not characterize the blood draw as warrantless.

3. The project does not possess the FBI 302 from the May 25, 2017 meeting.
4. Some audio/video sources survive only through published or archived copies and machine transcripts. Where exact wording matters, official transcripts or direct audio verification take precedence over ASR.
5. Several recordings or camera angles requested in earlier proceedings were not produced or have not been located, including portions of the December 2020 and February 2021 video record. Their absence does not establish what they would have shown.
6. Communicare's precise legal status for federal state-action purposes remains unresolved in the source archive.
7. The sealed portions of the 2025–2026 federal criminal record are intentionally not reproduced or narrated beyond what the public docket and permitted sources establish.
8. The book does not claim that an unidentified source, a missing recording, or an unproduced document proves a conspiracy merely because the record is incomplete.

The following documents were once listed as missing but have now been located and are **not** source gaps: the July 2017 plea transcript, plea petition, signed covenant not to sue, and Major John Hill's May 30, 2017 Sheriff's Office report.

G. RECORDING AND TRANSCRIPTION METHOD

The manuscript uses contemporaneous recordings extensively. Their evidentiary value depends on how they are handled.

- An official or certified court transcript controls over an automatic transcript of the same proceeding.
- A direct recording controls over later recollection where the two conflict.

- Automatic speech recognition is treated as a search and drafting aid. It is not treated as verbatim merely because software produced quotation marks around it.
- Proper names, dates, and legally significant quotations are checked against the underlying recording or another primary source whenever possible.
- A gap in a recording is described as a gap. A camera that did not cover an event is not described as having “lost” footage of that event.
- A document generated after an arrest is not described as the pre-arrest probable-cause instrument unless the record establishes that it served that function.

H. HOW TO CHECK THE BOOK’S CENTRAL DOCUMENTARY CLAIMS

Claim	Principal record
The 2017 formal charging paper alleged an AR-15 offense “on or before May 8, 2017”	July 6, 2017 Criminal Information and plea transcript, LK17-295
The identified Del-Ton rifle was purchased May 20, 2017	Dated private bill of sale for serial S086662
Major John Hill documented a threat by Rhea Tannehill after the May 30 Chancery hearing	Hill’s May 30, 2017 Sheriff’s Office narrative
Crowder’s false-reporting disposition totaled \$1,149.25	September 22, 2020 Olive Branch Municipal Court order
Crowder’s County Court appeal was untimely and dismissed	November 23, 2020 DeSoto County Court order
The June 28, 2022 arrest warrant existed before Reardon arrived at Chancery Court	MBI file and Lafayette County Sheriff’s Office June 28 warrant-service report
What Beavers actually said at the November 2022 revocation hearing	Certified revocation transcript
The Texas laboratory found no alcohol	Texas DPS report HOU-2308-10286
The same toxicology production separately reported methamphetamine at 0.13 mg/L	Confirmation analysis in the Texas/ Mississippi exhibit record
Osteen later testified alcohol had been detected	July 18, 2024 certified revocation transcript

Claim	Principal record
The January 2025 order corrected a revocation sentence, not the underlying conviction	January 21, 2025 L24-388 Order & Judgment
The Mississippi Court of Appeals reversed the dismissal of the Justice Court appeal, not the convictions themselves	February 24, 2026 opinion in 2024-KM-00839-COA
Edison wrote that “the record shows that Osteen lied to Judge Tollison”	July 14, 2026 Dkt. 90 in <i>Reardon v. Osteen</i>
Edison also concluded that the complaint stated an unreasonable-seizure claim before recommending qualified immunity	Dkt. 90, read together with Dkts. 93–94
The New Orleans RTCC camera did not capture the actual altercation	Produced RTCC/NOPD records discussed in Chapters 32–33
The federal sentencing court imposed probation and later clarified the role of prior custody	August 7, 2026 sentencing recording/transcript source

I. STANDING CORRECTIONS FROM EARLIER EDITIONS

This section records claims that earlier drafts made too strongly or incorrectly. They remain listed because silent correction would defeat the archival purpose of the book.

1. **Rachel Alcorn did not identify Sheriff Joey East by name as her source.** The recorded call refers to local law enforcement. Any attribution to a particular officer requires separate evidence.
2. **The November 2022 revocation cannot accurately be summarized as “Beavers committed perjury and that sent me to prison.”** Her testimony contained disputed and hearsay-based assertions, but she also confirmed that Reardon called the Sheriff’s Department in advance, and the court’s ruling rested on its interpretation of the banishment condition and Reardon’s presence.
3. **Reardon was not simply denied counsel at the 2022 revocation hearing.** The transcript shows a waiver of counsel after questioning by the court.

4. **No evidence connects a docket-assignment irregularity to ballot tampering.** That inference is withdrawn.
5. **The USA PATRIOT Act domestic-terrorism provision and 26 U.S.C. § 7214 theories previously asserted against county officials were legally misplaced.** They are withdrawn.
6. **Emails following the 2017 Marine Corps records dispute do not establish implied threats merely because their timing was suspicious to the author.** That characterization is withdrawn absent direct evidence.
7. **The author did not know PFC Bradley Foust personally.** The Prologue now separates the author's recollection of the training environment from Jay Andrews's independent affidavit and the Marine Corps records.
8. **Communicare is not described as a proven governmental or quasi-governmental entity.** Its federal state-action status remains an unresolved legal and factual question.
9. **The January 21, 2025 PCR order did not vacate the 2022 aggravated-stalking conviction.** It vacated the 2024 two-year revocation sentence, resentenced the technical violation to 120 days, ordered release, and reinstated the original probation/banishment terms.
10. **The February 24, 2026 Mississippi Court of Appeals decision did not reverse the underlying Justice Court convictions.** It reversed the Circuit Court's dismissal of the appeal and remanded.
11. **The New Orleans City Hall case does not contain proof that RTCC footage of the altercation was destroyed or "lost."** The produced camera material did not capture the altercation itself.
12. **Magistrate Judge Edison's statement that Osteen "lied to Judge Tollison" is not a criminal adjudication of perjury.** The manuscript uses the judge's actual word and no stronger one.
13. **Edison's unreasonable-seizure discussion was not a final merits judgment for Reardon.** The R&R said the complaint stated a constitutional claim, then recommended qualified immunity; the district court adopted the recommendation and entered judgment against Reardon.

14. **The federal record does not establish that Circuit Clerk Jeff Busby personally transmitted the March 25, 2024 letter to Texas.** The R&R relied on evidence that Assistant District Attorney Steven Jubera transmitted it. Earlier claims of literal falsity in Busby's affidavit are withdrawn to the extent they depended on Busby personally sending the letter.
15. **The August 7, 2026 federal sentence should not be described simply as "time served plus probation."** The judge clarified that Reardon was placed on two years of unsupervised probation and that prior custody would be credited if probation were later revoked and resentencing occurred.
16. **The "on or before May 8, 2017" AR-15 allegation is documented, but not in a pre-arrest affidavit presently in the archive.** It appears in the July 6 Criminal Information and plea record. Earlier versions wrongly treated it as a fact sworn into the May 26 arrest warrant.
17. **Major John Hill's May 30, 2017 report has been located.** It records Reardon's profanity, Rhea Tannehill approaching with a water bottle and saying "I'LL BASH YOUR HEAD IN," and Hill stepping in front of Rhea and telling him to leave. It does not say Hill physically restrained Rhea or that an assault occurred.
18. **Brennan Horan and Rhea Tannehill are not established to have attended law school together.** A June 27, 2020 message from attorney Christi McCoy states that Brennan graduated roughly ten years before Rhea and that they were not in law school together. The contrary claim is withdrawn.
19. **The Galveston toxicology did not establish "zero drugs."** It reported no alcohol and separately reported methamphetamine at 0.13 mg/L. The author disputes the significance and reliability of that result, but the laboratory result itself is not omitted.
20. **The roughly eleven months of custody following the August 2023 Galveston arrest cannot be attributed solely to Osteen's affidavit or a single Texas bond.** Texas and Mississippi proceedings, including the Mississippi revocation hold, overlapped.

J. SOURCE HIERARCHY USED FOR THIS EDITION

When sources conflict, this edition uses the following order of confidence:

1. Signed court orders, certified transcripts, filed pleadings, official agency records, laboratory reports, and authenticated public-record productions.
2. Contemporaneous audio/video recordings and contemporaneous written communications.
3. Later sworn statements and later recorded recollections, identified as such.
4. The author's unsworn recollection where no stronger source exists.
5. Secondary summaries, prior manuscript drafts, AI-generated analyses, news coverage, and internal timelines as research leads—not as substitutes for the underlying record.

A later document can be more complete without being more trustworthy. A recent upload date does not make an old summary authoritative. Where the book cannot resolve a conflict from the source record, the conflict is left visible rather than silently reconciled.